THE SPECIAL MARRIAGE ACT, 1872

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[1]THE SPECIAL MARRIAGE ACT, 1872

[2]ACT No. III OF 1872

[*22nd March, 1872*]

An Act to provide a form of Marriage in certain cases

Preamble. WHEREAS it is expedient to provide a form of marriage for persons who do not profess the Christian, Jewish, Hindu, Muhammadan, Parsi, Buddhist, Sikh or Jaina religion, [3][and for persons who profess the Hindu, Buddhist, Sikh or Jaina religion] and to legalize certain marriages the validity of which is doubtful; It is hereby enacted as follows:

[4][**1. Local extent**. This Act extends to the whole of Pakistan.]

2. Conditions upon which marriages under Act may be celebrated. Marriages may be celebrated under this Act between persons neither of whom professes the Christian or the Jewish, or the Hindu or the [5][Muslim], or the Parsi or the Buddhist, or the Sikh or the Jaina religion, [6][or between persons each of whom professes one or other of the following religions, that is to say, the Hindu, Buddhist, Sikh or Jaina religion] upon the following conditions:—

(1) neither party must, at the time of the marriage, have a husband or wife living:

(2) the man must have completed his age of eighteen years, and the woman her age of fourteen years, according to the Gregorian calendar:

(3) each party must, if he or she has not completed the age of twenty-one years, have obtained the consent of his or her father or guardian to the marriage:

(4) the parties must not be related to each other in any degree of consanguinity or affinity which would, according to any law to which either of them is subject, render a marriage between them illegal.

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1*st Proviso.— No* such law or custom, other than one relating to consanguinity or affinity, shall prevent them from marrying.

2*nd Proviso.— No* law or custom as to consanguinity shall prevent them from marrying, unless a relationship can be traced between the parties through some common ancestor, who stands to each of them in a nearer relationship than that of great-great-grand-father or great-great-grand mother, or unless one of the parties is the lineal ancestor, or the brother or sister of some lineal ancestor, of the other.

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[1]Short title given by the Short Title Act, 1897 (14 of 1897)

[2]There was no Statement of Objects and Reasons; the Bill as introduced was published in the Gazette of India, 1868, p. 1403; for the Report of the Select Committee, dated 21st December 1871, see ibid., 1871., Pt. V, p. 519 ; for discussions in Council, see ibid., 1868, Supplement, pp.890 and 1197; ibid.,1871, Extra., Supplement, pp. 16 and 42 ; ibid., 1872, Supplement, pp. 2, 57, 193 and 261.

This Act has been declared in force in Balochistan by the British Balochistan Laws Regulation, 1913 (2 of 1913), s. 3.

This Act has been extended to the Leased Areas of Balochistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950) ; and also applied in the Federated Areas of Balochistan, see Gazette of India, 1937, Pt. I, p. 1499.

[3]Ins. by the Special Marriage (Armdt.) Act, 1923 (30 of 1923), s.2.

[4]This section has successively been amended by the Repealing Act, 1874 (16 of 1874), s. 1 and Sch., Pt. I, A. O., 1949 ; and the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), to read as above.

[5]Subs. by F.A.O., 1975, Art. 2 and Table for "Muhammadan".

[6]Ins. by Act 30 of 1923, s. 3.

3. Appointment of Marriage Registrars. The[1][Provincial Government] may appoint one or more Registrars under this Act, either by name or as holding any office for the time being, for any portion of the territory subject to its administration. The officer so appointed shall be called "Registrar of Marriages under Act III of 1872," and is hereinafter referred to as "the Registrar". The portion of territory for which any such officer is appointed shall be deemed his district.

4. One of the parties to intended marriage to give notice to Registrar. When a marriage is intended to be solemnized under this Act, one of the parties must give notice in writing to the Registrar before whom it is to be solemnized.

The Registrar to whom such notice is given must be the Registrar of a district within which one at least of the parties to the marriage has resided for fourteen days before such notice is given.

Such notice may be in the form given in the first schedule to this Act.

5. Notice to be filed and copy entered in the Marriage Notice Book. The Registrar shall file all such notices and keep them with the records of his office, and shall also forthwith enter a true copy of every such notice in a book to be for that purpose furnished to him by the [2][Provincial Government], to be called the "Marriage Notice Book under Act III of 1872," and such book shall be open at all reasonable times, without fee, to all persons desirous of inspecting the same.

6. Objection to Marriage. Fourteen days after notice of an intended marriage has been given under section 4, such marriage may be solemnized, unless it has been previously objected to in the manner hereinafter mentioned.

Any person may object to any such marriage on the ground that it would contravene some one or more of the conditions prescribed in clauses (1), (2), (3) or (4) of section 2.

The nature of the objection made shall be recorded in writing by the Registrar in the register, and shall, if necessary, be read over and explained to the person making the objection, and shall be signed by him or on his behalf.

7. Procedure on receipt of objection. On receipt of such notice of objection the Registrar shall not proceed to solemnize the marriage until the lapse of fourteen days from the receipt of such objection, if there be a Court of competent jurisdiction open at the time, or, if there be no such Court open at the time, until the lapse of fourteen days from the opening of such Court.

8. Objector may file suit. The person objecting to the intended marriage may file a suit in any Civil Court having local jurisdiction (other than a Court of Small Causes) for a declaratory decree, declaring that such marriage would contravene some one or more of the conditions prescribed in clauses (1), (2), (3) or (4) of section 2.

9. Certificate of filling of suit to be lodged with Registrar. The officer before whom such suit is filed shall thereupon give the person presenting it a certificate to the effect that such suit has been filed. If such certificate be lodged with the registrar within fourteen days from the receipt of notice of objection, if there be a Court of competent jurisdiction open at the time, or, if there be no such Court open at the time, within fourteen days of the opening of such Court, the marriage shall not be solemnized till the decision of such Court has been given and the period allowed by law for appeals from such decision has elapsed; or, if there be an appeal from such decision, till the decision of the Appellate Court has been given.

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[1]Subs. by A. O., 1937, for "L. G.".
[2]Subs. ibid., for "Govt.".

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If such certificate be not lodged in the manner and within the period prescribed in the last preceding paragraph, or if the decision of the Court be that such marriage would not contravene anyone or more of the conditions prescribed in clauses (1), (2), (3) or (4) of section 2, such marriage may be solemnized.

If the decision of such Court be that the marriage in question would contravene anyone or more of the conditions prescribed in clauses (1), (2), (3) or (4) of section 2, the marriage shall not be solemnized.

10. Court may fine when objection not reasonable. Any Court in which any such suit as is referred to in section 7 is filed may, if it shall appear to it that the objection was not reasonable and *bona fide,* inflict a fine, not exceeding one thousand rupees, on the person objecting, and award it, or any part of it, to the parties to the intended marriage.

11. Declaration by parties and witnesses. Before the marriage is solemnized, the parties and three witnesses shall, in the presence of the Registrar, sign a declaration in the form contained in the second schedule to this Act. If either party has not completed the age of twenty-one years, the declaration shall also be signed by his or her father or guardian, except in the case of a widow, and, in every case, it shall be countersigned by the Registrar.

12. Marriage how to be solemnized. The marriage shall be solemnized in the presence of the Registrar and of the three witnesses who signed the declaration. It may be solemnized in any form, provided that each party says to the other, in the presence and hearing of the Registrar and witnesses, "I[A], take thee [*B*], to be my lawful wife *(or* husband.)"

13. Place where marriage may be solemnized. The marriage may be celebrated either at the office of the Registrar or at such other place, within reasonable distance of the office of the Registrar, as the parties desire: Provided that the [1][Provincial Government] may prescribe the conditions under which such marriages may be solemnized at places other than the Registrar's office, and the additional fees to be paid thereupon[2].

13. Certificate of marriage. When the marriage has been solemnized, the Registrar shall enter a certificate there of in a book to be kept by him for that purpose and to be called the "Marriage Certificate Book under Act III of 1872," in the form given in the third schedule to this Act, and such certificate shall be signed by the parties to the marriage and the three witnesses.

[3][13A. Transmission of certified copies of entries in marriage certificate book to the Registrar General of Births, Deaths and Marriages. The Registrar shall send to the Registrar General of Births, Deaths and Marriages for the territories within which his district is situate, at such interval as the [4][Provincial Government] from time to time directs[5], a true copy certified by him, in such form as the [4][Provincial Government] from time to time prescribes, of all entries made by him in the said marriage-certificate book since the last of such intervals[6].]

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[1]Subs. by A. O., 1937, for " L. G.".
[2]For rules framed under this section, see the different Local Rules and Orders.
[3]S. 13A ins. by the Births, Deaths and Marriages Registration Act, 1886 (6 of 1886), s. 29.
[4]Subs. by A.O., 1937, for "L.G." which had been subs. for "G.G. in C." by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I.
[5]For orders issued under this section, see Gazette of India, 1889, Supplement, p. 921.
[6]As to duty of the Registrar General to make and keep indexes of the certified copies sent to his office under this section, see the Births, Deaths and Marriages Registration Act, 1886 (6 of 1886), s. 7.

14. Fees. The [1][Provincial Government] shall prescribe the fees to be paid to the Registrar for the duties to be discharged by him under this Act[2].

The Registrar may, if he thinks fit, demand payment of any such fee before the solemnization of the marriage or performance of any other duty in respect of which it is payable.

The said Marriage-Certificate Book shall at all reasonable times be open for inspection, and shall be admissible as evidence of the truth of the statements therein contained. Certified extracts there from shall on application be given by the Registrar on the payment to him by the applicant of a fee to be fixed by the [4][Provincial Government] for each such extract.

15. Penalty on married person marrying again under Act. Every person who, being at the time married, procures a marriage of himself to be solemnized under this Act, shall be deemed to have committed an offence under section 494 or section 495 of the Pakistan Penal Code (XLV of 1860), as the case may be; and the marriage so solemnized is void.

16. Punishment of bigamy. Every person married under this Act who, during the life time of his or her wife or husband, contracts any other marriage, shall be subject to the penalties provided in sections 494 and 495 of the Pakistan Penal Code (XLV of 1860) for the offence of marrying again during the lifetime of a husband or wife, whatever may be the religion which he or she professed at the time of such second marriage.

17. Divorce Act to apply. The Divorce Act shall apply to all marriages contracted under this Act (IV of 1869), and any such marriage may be declared null or dissolved in the manner therein provided, and for the causes therein mentioned, or on the ground that it contravenes some one or more of the conditions prescribed in clauses (1), (2), (3) or (4) of section 2 of this Act.

18. Law to apply to issue of marriages under Act. The issue of marriages solemnized under this Act shall, if they marry under this Act, be deemed to be subject to the law to which their fathers were subject as to the prohibition of marriages by reason of consanguinity and affinity, and the provisos to section 2 of this Act shall apply to them.

19. Savings of marriages solemnized otherwise than under Act. Nothing in this Act contained shall affect the validity of any marriage not solemnized under its provisions; nor shall this Act be deemed directly or indirectly to affect the validity of any mode of contracting marriage; but, if the validity of any such mode shall hereafter come into question before any Court, such question shall be decided as if this Act had not been passed.

20. [*Registry of marriages contracted before passing of Act.*] *Rep. by the Repealing Act,* 1876 *(XII of* 1876).

21. Penalty for signing declarations of certificates containing false statements. Every person making, signing or attesting any declaration or certificate prescribed by this Act, containing a statement which is false, and which he either knows or believes to be false or does not believe to be true, shall be deemed guilty of the offence described in section 199 of the Pakistan Penal Code. (XLV of 1860).

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[1]Subs. by A. O., 1937, for "the L. G.".
[2]For scales of fees to be paid to Registrars of marriages prescribed by different Provincial Governments, see the Local Rules and Orders.

[1][**22. Effect of certain marriages on coparcenary**. The marriage under this Act of any member of an undivided family who professes the Hindu, Buddhist, Sikh or Jaina religion shall be deemed to effect his severance from such family.

23. Rights of succession in certain cases of marriages under Act. A person professing the Hindu, Buddhist, Sikh or Jaina religion who marries under this Act shall have the same rights and be subject to the same disabilities in regard to any right of succession to any property as a person to whom the Caste Disabilities Removal Act, 1850 (XXI of 1850), applies:

Provided that nothing in this section shall confer on any person any right to any religious office or service, or to the management of any religious or charitable trust.

24. Succession to the property of parties married under Act. Succession to the property of any person professing the Hindu, Buddhist, Sikh or Jaina religion who marries under this Act, and to the property of the issue of such marriage, shall be regulated by the provisions of the [Succession Act, 1925 (XXXIX of 1925)][2].

25. Person marrying under Act not to have right of adoption. No person professing the Hindu, Buddhist, Sikh or Jaina religion who marries under this Act shall have any right of adoption.

26. Adoption by father or person marrying under Act. When a person professing the Hindu, Buddhist, Sikh or Jaina religion marries under this Act, his father shall, if he has no other son living, have the right to adopt another person as a son under the law to which he is subject.]

FIRST SCHEDULE
(*See* section 4)
NOTICE OF MARRIAGE

To a Registrar of Marriages under Act III of 1872 for the District.

I hereby give you notice that a marriage under Act III of 1872 is intended to be had, within three calendar months from the date hereof, between me and the other party herein named and described (that is to say):–

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Names	Condition	Rank or profession	Age	Dwelling place	Length of residence
A B	Unmarried Widower	Landowner	Of full age	..	23 days
C D	Spinster	..	Minor	..	..

Witness my hand, this day of 187.

(Signed) A. B.

[1]22 to 26 were added by the Special Marriage (Amdt.) Act, 1923 (30 of 1923), s. 4.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981(27 of 1981), s. 3 and 2nd Sch. for "Indian Succession Act, 1865".

SECOND SCHEDULE

(*See* section 10)

DECLARATION TO BE MADE BY THE BRIDEGROOM

I, A, B, hereby declare as follows:–

(1) I am at the present time unmarried:

(2) I do not profess the Christian, Jewish, Hindu, Muhammadan, Parsi, Buddhist, Sikh or Jaina religion; [1][or (as the case may be) I profess the Hindu, or the Buddhist, or the Sikh, or the Jaina religion].

(3) I have completed my age of eighteen years:

(4) I am not related to *CD* [*the bride*] in any degree of consanguinity or affinity which would, according to the law to which I am subject, or to which the said *CD* is subject, and subject to the provisos of clause (4) of section 2 of Act III of 1872, render a marriage between us illegal:

[*And when the bridegroom has not completed his age of twenty one years:*

The consent of my father [*or* guardian, *as the case may be*] has been given to a marriage between myself and *CD,* and has not been revoked:]

I am aware that, if any statement in this declaration is false, and if in making such statement I either know or believe it to be false, or do not believe it to be true, I am liable to imprisonment, and also to fine.

(Signed) A B [*the bridegroom*]

DECLARATION TO BE MADE BY THE BRIDE

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(1) I, C *D,* hereby declare as follows:–

(2) I am at the present time unmarried:

(3) I do not profess the Christian, Jewish, Hindu, Muhammadan, Parsi, Buddhist, Sikh or Jaina religion: [1][or (as the case may be) I profess the Hindu, or the Buddhist, or the Sikh, or the Jaina religion].

(4) I have completed my age of fourteen years:

I am not related to *A B* [*the bridegroom*] in any degree of consanguinity or affinity which would, according to the law to which I am subject, or to which the said *A B* is subject, and subject to the provisos of clause (4) of section 2 of Act III of 1872, render a marriage between us illegal:

[*And when the bride has not completed her age of twenty one years, unless she is a widow:*

(5) The consent of *M N,* my father [*or* guardian, *as the case may be*] has been given to a marriage between myself and *A B* and has not been revoked:]

[1]Ins. by the Special Marriage (Amdt.) Act, 1923 (30 of 1923), s. 5.

I am aware that, if any statement in this declaration is false, and if in making such statement, I either know or believe it to be false, or do not believe it to be true, I am liable to imprisonment, and also to fine.

(Signed) C *D* [*the bride*]

Signed in our presence by the above-named *A* B and *CD:*

G H,
I J, [three witnesses]
K L,

[*And when the bridegroom or bride has not completed the age of twenty-one years, except in the case of a widow:*

Signed in my presence and with my consent by the above-named *A B* and *C D:*

M. N., the father [or guardian]
of the above-named *A B(or CD,*
as the case may be).]
(Countersigned) E F,
Registrar of Marriages under Act III *of*
1872 *for the District of*

Dated the day of 18.

THIRD SCHEDULE
(See section 13)
REGISTRAR'S CERTIFICATE

I, *E F,* certify that, on the of 18, appeared before me *A B* and C *D,* each of whom in my presence and in the presence of three credible witnesses, whose names are signed hereunder, made the declarations required by Act III of 1872, and that a marriage under the said Act was solemnized between them in my presence.

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(Signed) E F,
Registrar of Marriages under Act III of
1872, *for the District of*
(Signed) A B,
C D.

G H,
I J, [three witnesses]
K L,

Dated the day of 18.

FOURTH SCHEDULE
[*Rep. by the Repealing Act*, 1876 (XII *of* 1876).]

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Date: 16-09-2024

THE PARSI MARRIAGE AND DIVORCE ACT, 1936

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THE PARSI MARRIAGE AND DIVORCE ACT, 1936

ACT No. III OF 1936

[23rd *April*, 1936]

An Act to amend the law relating to marriage and divorce among Parsis.

WHEREAS it is expedient to amend the law relating to marriage and divorce among Parsis; It is hereby enacted as follows:—

I.— PRELIMINARY

1. Short title, extent and commencement.— (1) This Act may be called the Parsi Marriage and Divorce Act, 1936.

[1][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date as the [2][Federal Government] may, by notification in the [3][Official Gazette], appoint.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(1) "Chief Justice" includes senior Judge;

(2) "Court" means a Court constituted under this Act;

(3) to "desert", together with its grammatical variations and cognate expressions, means to desert the other party to a marriage without reasonable cause and without the consent, or against the will, of such party ;

(4) "grievous hurt" means—

(*a*) emasculation;

(*b*) Permanent privation of the sight of either eye;

(*c*) permanent privation of the hearing of either ear ;

(*d*) privation of any member or joint ;

(*e*) destruction or permanent impairing of the powers of any member or joint ;

(*f*) permanent disfiguration of the head or face; or

(*g*) any hurt which endangers life ;

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch.
[2]Subs. by F. A. O. 1975, Art. 2and Table.
[3]Subs, by A.O., 1937.

(5) "husband" means a Parsi husband ;

(6) "marriage" means a marriage between Parsis whether contracted before or after the commencement of this Act ;

(7) a "Parsi" means a Parsi Zoroastrian ;

(8) "priest" means a Parsi priest and includes Dastur and Mobed ; and

(9) "wife" means a Parsi wife.

II.—MARRIAGES BETWEEN PARSIS

3. Requisites to validity of Parsi marriages. No marriage shall be valid if—

(a) the contracting parties are related to each other in any of the degrees of consanguinity or affinity set forth in Schedule I ; or

(b) such marriage is not solemnized according to the Parsi form of ceremony called "Ashirvad" by a priest in the presence of two Parsi witnesses other than such priest ; or

(c) in the case of any Parsi (whether such Parsi has changed his or her religion or domicile or not) who has not completed the age of twenty-one years, the consent of his or her father or guardian has not been previously given to such marriage.

4. Remarriage when unlawful.— (1) No Parsi (whether such Parsi has changed his or her religion or domicile or not) shall contract any marriage under this Act or any other law in the lifetime of his or her wife or husband, whether a Parsi or not, except after his or her lawful divorce from such wife or husband or after his or her marriage with such wife or husband has lawfully been declared null and void or dissolved, and, if the marriage was contracted with such wife or husband under the Parsi Marriage and Divorce Act, 1865 (XV of 1865) or under this Act, except after a divorce, declaration or dissolution as aforesaid under either of the said Acts.

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(2) Every marriage contracted contrary to the provisions of sub-section (1) shall be void.

5. Punishment of bigamy. Every Parsi who during the lifetime of his or her wife or husband, whether a Parsi or not, contracts a marriage without having been lawfully divorced from such wife or husband, or without his or her marriage with such wife or husband having legally been declared null and void or dissolved, shall be subject to the penalties provided in sections 494 and 495 of the Pakistan Penal Code for the offence of marrying again during the lifetime of a husband or wife.

6. Certificate and registry of marriage. Every marriage contracted under this Act shall, immediately on the solemnization thereof, be certified by the officiating priest in the form contained in Schedule II. The certificate shall be signed by the said priest, the contracting parties, or their fathers or guardians when they shall not have completed the age of twenty-one years, and two witnesses present at the marriage; and the said priest shall thereupon send such certificate together with a fee of two rupees to be paid by the husband to the Registrar of the place at which such marriage is solemnized. The Registrar on receipt of the certificate and fee shall enter the certificate in a register to be kept by him for that purpose and shall be entitled to retain the fee.

7. Appointment of Registrar. For the purposes of this Act a Registrar shall be appointed. Within the local limits of the ordinary original civil jurisdiction of a High Court, the Registrar shall be appointed by the Chief Justice of such Court, and without such limits, by the [1][Provincial Government]. Every Registrar so appointed may be removed by the Chief Justice or [1][Provincial Government] appointing him.

8. Marriage registers to be open for public inspection. The register of marriages mentioned in section 6 shall, at all reasonable times, be open for inspection, and certified extracts therefrom shall, on application, be given by the Registrar on payment to him by the applicant of two rupees for each such extract. Every such register shall be evidence of the truth of the statements therein contained.

9. Copy of certificate to be sent to Registrar-General of Births, Deaths and Marriages. Every Registrar, [2][* * *], shall, at such intervals as the [1][Provincial Government] by which he was appointed from time to time directs, send to the Registrar-General of Births, Deaths and Marriages for the territories administered by such [1][Provincial Government] a true copy certified by him in such form as such [1][Provincial Government] from time to time prescribes, of all certificates entered by him in the said register of marriages since the last of such intervals.

10. Registration of divorces. When a Court passes a decree for divorce, nullity or dissolution, the Court shall send a copy of the decree for registration to the Registrar of Marriages within its jurisdiction appointed under section 7 ; the Registrar shall enter the same in a register to be kept by him for the purpose, and the provisions of Part II applicable to the Registrars and registers of marriages shall be applicable, so far as may be, to the Registrars and registers of divorces and decrees of nullity and dissolution.

11. Penalty for solemnizing marriage contrary to section 4. Any priest knowingly and willfully solemnizing any marriage contrary to and in violation of section 4 shall, on conviction thereof, be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to two hundred rupees, or with both.

12. Penalty for Priest's neglect of requirements of section 6. Any priest neglecting to comply with any of the requisitions affecting him contained in section 6 shall, on conviction thereof, be punished for every such offence with simple imprisonment for a term which may extend to three months, or with fine which may extend to one hundred rupees, or with both.

13. Penalty for omitting to subscribe and attest certificate. Every other person required by section 6 to subscribe or attest the said certificate who shall wilfully omit or neglect so to do, shall, on conviction thereof, be punished for every such offence with a fine not exceeding one hundred rupees.

14. Penalty for making, etc., false certificate. Every person making or signing or attesting any such certificate containing a statement which is false, and which he either knows or believes to be false, shall be punished with simple imprisonment for a term which may extend to three months, or with fine which may extend to one hundred rupees, or with both ; and if the act amounts to forgery as defined in the Pakistan Penal Code (XLV of 1860), then such person shall also be liable, on conviction thereof, to the penalties provided in section 466 of the said Code.

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[1]Subs. by A. O., 1937, for "L. G."
[2]Omitted by A. O., 1949.

15. Penalty for failing to register certificate. Any Registrar failing to enter the said certificate pursuant to section 6 shall be punished with simple imprisonment for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

16. Penalty for secreting, destroying or altering register. Any person secreting, destroying, or dishonestly or fraudulently altering the said register in any part thereof, shall be punished with imprisonment of either description as defined in the Pakistan Penal Code (XLV of 1860) for a term which may extend to two years, or if he be a Registrar, for a term which may extend to five years and shall also be liable to fine which may extend to five hundred rupees.

17. Formal irregularity not to invalidate marriage. No marriage contracted under this Act shall be deemed to be invalid solely by reason of the fact that it was not certified under section 6, or that the certificate was not sent to the Registrar, or that the certificate was defective, irregular or incorrect.

III.— PARSI MATRIMONIAL COURTS

18. Constitution of Special Courts under the Act. For the purpose of hearing suits under this Act, a special Court shall be constituted in [1][such] places in the territories of the [2][*] [3][Provincial Governments] as such Governments respectively shall think fit.

19. [*Parsi Chief Matrimonial Courts*.] Omitted by A. O., 1949.

20. Parsi District Matrimonial Courts. Every Court so constituted [4][* * *] shall be entitled the Parsi District Matrimonial Court [4][of the place at which it is constituted]. Subject to the provisions contained in section 21, the local limits of the jurisdiction of such Court shall be conterminous with the limits of the district in which it is held. The Judge of the principal Court of original civil jurisdiction at such place shall be the Judge of such Matrimonial Court, and in the trial of cases under this Act he shall be aided by seven delegates.

21. Power to alter territorial jurisdiction of District Courts. The [3][Provincial Government] may from time to time alter the local limits of the jurisdiction of any Parsi District Matrimonial Court, and may include within such limits any number of districts under its government.

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22. [*Certain districts to be within jurisdiction of the Chief Matrimonial Court.*] *Omitted by A. O., 1949.*

23. Court seals. A seal shall be made for every Court constituted under this Act, and all decrees and orders and copies of decrees and orders of such Court shall be sealed with such seal, which shall be kept in the custody of the presiding judge.

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[1]Subs. by A. O., 1949.
[2]Omitted by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch.
[3]Subs. by A. O., 1937.
[4]Omitted and subs. by A. O., 1949.

24. Appointment of delegates.— (1) The [1][Provincial Governments] shall, in [2][* * *] districts subject to their respective governments, respectively appoint persons to be delegates to aid in the adjudication of cases arising under this Act, after giving the local Parsis an opportunity of expressing their opinion in such manner as the respective Governments may think fit.

(2) The persons so appointed shall be Parsis, their names shall be published in the [3][official Gazette] and their number shall, within the local limits of the ordinary original civil jurisdiction of a High Court, be not more than thirty, and in districts beyond such limits, not more than twenty.

25. Power to appoint new delegates. The appointment of a delegate shall be for ten years; but he shall be eligible for reappointment for the like term or terms. Whenever a delegate shall die, or have completed his term of office, or be desirous of relinquishing his office, or refuse or become incapable or unfit to act, or cease to be a Parsi, or be convicted of an offence under the Pakistan Penal Code (XLV of 1860) or other law for the time being in force, or be adjudged insolvent, then and so often the [1][Provincial Government] may appoint any person being a Parsi to be a delegate in his stead ; and the name of the person so appointed shall be published in the [3][official Gazette].

26. Delegates to be deemed public servants. All delegates appointed under this Act shall be considered to be public servants within the meaning of the Pakistan Penal Code (XLV of 1860).

27. Selection of delegates under section 20 to be from those appointed under section 24. The delegates selected under [5][section 20] to aid in the adjudication of suits under this Act, shall be taken under the orders of the presiding Judge of the Court in due rotation from the delegates appointed by the [4][Provincial Government] under section 24:

Provided that each party to the suit may, without cause assigned, challenge any three of the delegates attending the Court before such delegates are selected and no delegate so challenged shall be selected.

28. Practitioners in Matrimonial Courts. All legal practitioners entitled to practice in a High Court shall be entitled to practice in any Court constituted under this Act, and all legal practitioners entitled to practice in a District Court shall be entitled to practice in any Parsi District Matrimonial Court constituted under this Act.

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29. Court in which suits to be brought.—(1) All suits instituted under this Act shall be brought in the Court within the limits of whose jurisdiction the defendant resides at the time of the institution of the suit.

(2) When the defendant shall at such time have left [5][Pakistan] such suit shall be brought in the Court at the place where the plaintiff and defendant last resided together.

(3) In any case, whether the defendant resides in [5][Pakistan] or not, such suit may be brought in the Court at the place where the plaintiff resides or at the place where the plaintiff and the defendant last resided together, if such Court, after recording its reasons in writing, grants leave so to do.

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[1]Subs. by A. O., 1937.
[2]Omitted by A. O., 1949.
[3]Subs. by A. O., 1937.
[4]Subs. by A. O., 1949.
[5]Subs. By the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch.

IV.—MATRIMONIAL SUITS

30. Suits for nullity. In any case in which consummation of the marriage is from natural causes impossible, such marriage may, at the instance of either party thereto, be declared to be null and void.

31. Suits for dissolution. If a husband or wife shall have been continually absent from his or her wife or husband for the space of seven years, and shall not have been heard of as being alive within that time by those persons who would have naturally heard of him or her, had he or she been alive, the marriage of such husband or wife may, at the instance of either party thereto, be dissolved.

32. Grounds for divorce. Any married person may sue for divorce on any one or more of the following grounds, namely:—

(a) that the marriage has not been consummated within one year after its solemnization owing to the willful refusal of the defendant to consummate it ;

(b) that the defendant at the time of the marriage was of unsound mind and has been habitually so up to the date of the suit:

Provided that divorce shall not be granted on this ground, unless the plaintiff (1) was ignorant of the fact at the time of the marriage, and (2) has filed the suit within three years from the date of the marriage;

(c) that the defendant was at the time of marriage pregnant by some person other than the plaintiff:

Provided that divorce shall not be granted on this ground, unless (1) the plaintiff was at the time of the marriage ignorant of the fact alleged, (2) the suit has been filed within two years of the date of marriage, and (3) marital intercourse has not taken place after the plaintiff came to know of the fact ;

(d) that the defendant has since the marriage committed adultery or fornication or bigamy or rape or an unnatural offence:

Provided that divorce shall not be granted on this ground if the suit has been filed more than two years after the plaintiff came to know of the fact ;

(e) that the defendant has since the marriage voluntarily caused grievous hurt to the plaintiff or has infected the plaintiff with venereal disease or, where the defendant is the husband, has compelled the wife to submit herself to prostitution;

Provided that divorce shall not be granted on this ground if the suit has been filed more than two years (i) after the infliction of the grievous hurt, or (ii) after the plaintiff came to know of the infection, or (iii) after the last act of compulsory prostitution ;

(f) that the defendant is undergoing a sentence of imprisonment for seven years or more for an offence as defined in the Pakistan Penal Code (XLV of 1860) :

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Provided that divorce shall not be granted on this ground, unless the defendant has prior to the filing of the suit undergone at least one year's imprisonment out of the said period;

(g) that the defendant has deserted the plaintiff for at least three years ;

(h) that a decree or order for judicial separation has been passed against the defendant, or an order has been passed against the defendant by a Magistrate awarding separate maintenance to the plaintiff, and the parties have not had marital intercourse for three years or more since such decree or order ;

(i) that the defendant has failed to comply with a decree for restitution of conjugal rights for a year or more ; and

(j) that the defendant has ceased to be a Parsi:

Provided that divorce shall not be granted on this around if the suit has been filed more than two years after the plaintiff came to know of the fact.

33. Joining of co-defendant. In every such suit for divorce on the ground of adultery, the plaintiff shall, unless the Court shall otherwise order, make the person with whom the adultery is alleged to have been committed a co-defendant, and in any such suit by the husband the Court may order the adulterer to pay the whole or any part of the costs of the proceedings.

34. Suits for judicial separation. Any married person may sue for judicial separation on any of the grounds for which such person could have filed a suit for divorce, or on the ground that the defendant has been guilty of such cruelty to him or her or their children, or has used such personal violence, or has behaved in such a way as to render it in the judgment of the Court improper to compel him or her to live with the defendant.

35. Decrees in certain suits. In any suit under section 30, 31, 32 or 34, whether defended or not, if the Court be satisfied that any of the grounds set forth in those sections for granting relief exist, that none of the grounds therein set forth for withholding relief exist and that—

(a) the act or omission set forth in the plaint has not been condoned;

(b) the husband and wife are not colluding together ;

(c) the plaintiff has not connived at or been accessory to the said act or omission ;

(d) (save where a definite period of limitation is provided by this Act) there has been no unnecessary or improper delay in instituting the suit ; and

(e) there is no other legal ground why relief should not be granted ;

then and in such case, but not otherwise, the Court shall decree such relief accordingly.

36. Suit for restitution of conjugal rights. Where a husband shall have deserted or without lawful cause ceased to cohabit with his wife, or where a wife shall have deserted or without lawful

cause ceased to cohabit with her husband, the party so deserted or with whom cohabitation shall have so ceased may sue for the restitution of his or her conjugal rights and the Court, if satisfied of the truth of the allegations contained in the plaint, and that there is no just ground why relief should not be granted, may proceed to decree such restitution of conjugal rights accordingly.

37. Counter-claim by defendant for any relief. In any suit under this Act, the defendant may make a counter-claim for any relief he or she may be entitled to under this Act.

38. No suit to be brought to enforce marriage or contract arising out of marriage when husband is under sixteen or wife under fourteen years. Notwithstanding anything hereinbefore contained, no suit shall be brought in any Court to enforce any marriage or any contract connected with or arising out of any marriage, if, at the date of the institution of the suit, the husband shall not have completed the age of sixteen years, or the wife shall not have completed the age of fourteen years.

39. Alimony *pendente lite*. In any suit under this Act if the wife shall not have an independent income sufficient for her support and the necessary expenses of the suit, the Court, on the application of the wife, may order the husband to pay her monthly or weekly during the suit such sum not exceeding one-fifth of her husband's net income as the Court, considering the circumstances of the parties, shall think reasonable.

40. Permanent alimony.— (1) The Court may, if it shall think fit at the time of passing any decree under this Act or subsequently thereto on application made to it for the purpose, order that the husband shall [1][while the wife remains chaste and unmarried],—

(*a*) to the satisfaction of the Court, secure to the wife [1][* * *] such gross sum or such monthly or periodical payment of money for a term not exceeding her life as, having regard to her own property, if any, her husband's ability and the conduct of the parties, shall be deemed just, and for that purpose may require a proper instrument to be executed by all necessary parties and suspend the pronouncing of its decree until such instruments shall have been duly executed, or

(*b*) make such monthly payments to the wife for her maintenance and support as the Court may think reasonable.

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In case any such order shall not be obeyed by her husband it may be enforced in the manner provided for the execution of decrees and orders under the Code of Civil Procedure, 1908 (V of 1908), and further the husband may be sued by any person supplying the wife with necessaries during the time of such disobedience for the price of such necessaries.

(2) The Court, if satisfied that there is a change in the circumstances of either party at any time, may at the instance of either party vary, modify or rescind such order in such manner as the Court may deem just.

[1][(3) Where an order for alimony or maintenance in favor of a wife has been made either under the provisions of the Parsi Marriage and Divorce Act, 1865, or under the provisions of this Act, the Court, if satisfied that the wife has remarried or has not remained chaste, shall vary or rescind the order.]

[1]Ins. and omitted by Act No. XIV of 1940, s. 3.

41. Payment of alimony to wife or to her trustee. In all cases in which the Court shall make any decree or order for alimony it may direct the same to be paid either to the wife herself, or to any trustee on her behalf to be approved by the Court, and may impose any terms or restrictions which to the Court may seem expedient, and may from time to time appoint a new trustee, if for any reason it shall appear to the Court expedient so to do.

42. Disposal of joint property. In any suit under this Act the Court may make such provisions in the final decree as it may deem just and proper with respect to property presented at or about the time of marriage which may belong jointly to both the husband and wife.

43. Suits may be heard with closed doors. In every suit preferred under this Act, the case shall be tried with closed doors should such be the wish of either of the parties.

44. Validity of trial. Notwithstanding anything contained in section 19 or section 20, where in the case of a trial in a Parsi Matrimonial Court not less than five delegates have attended throughout the proceedings, the trial shall not be invalid by reason of the absence during any part thereof of the other delegates.

45. Provisions of Civil Procedure Code to apply to suits under the Act. The provisions of the Code of Civil Procedure, 1908 (V of 1908), shall, so far as the same may be applicable, apply to proceedings in suits instituted under this Act including proceedings in execution and orders subsequent to decree.

46. Determination of questions of law and procedure and of fact. In suits under this Act all questions of law and procedure shall be determined by the presiding judge; but the decision on the facts shall be the decision of the majority of the delegates before whom the case is tried:

Provided that, where such delegates are equally divided in opinion, the decision on the facts shall be the decision of the presiding judge.

47. Appeal to High Court. An appeal shall lie to the High Court from—

(a) the decision of any Court established under this Act, [1][* * *] on the ground of the decision being contrary to some law or usage having the force of law, or of a substantial error or defect in the procedure or investigation of the case which may have produced error or defect in the decision of the case upon the merits, and on no other ground ; and

(b) the granting of leave by any such Court under sub-section (3) of section 29:

Provided that such appeal shall be instituted within three calendar months after the decision appealed from shall have been pronounced.

48. Liberty to parties to marry again. When the time hereby limited for appealing against any decree granting a divorce or annulling or dissolving a marriage shall have expired, and no appeal shall have been presented against such decree, or when any such appeal shall have been dismissed, or when in the result of any appeal a divorce has been granted or a marriage has been declared to be annulled or dissolved, but not sooner, it shall be lawful for the respective parties thereto to marry again, as if the prior marriage had been terminated by death.

[1]Omitted by A.O., 1949.

V.—CHILDREN OF THE PARTIES

49. Custody of children. In any suit under this Act, the Court may from time to time pass such interim orders and make such provisions in the final decree as it may deem just and proper with respect to the custody, maintenance and education of the children under the age of sixteen years, the marriage of whose parents is the subject of such suit, and may, after the final decree upon application, by petition for this purpose, make, revoke, suspend or vary from time to time all such orders and provisions with respect to the custody, maintenance and education of such children as might have been made by such final decree or by interim orders in case the suit for obtaining such decree were still pending.

50. Settlement of wife's property for benefit of children. In any case in which the Court shall pronounce a decree of divorce or judicial separation for adultery of the wife, if it shall be made to appear to the Court that the wife is entitled to any property either in possession or reversion, the Court may order such settlement as it shall think reasonable to be made of any part of such property, not exceeding one-half thereof, for the benefit of the children of the marriage or any of them.

VI.– MISCELLANEOUS

[1][51. Superintendence of High Court. The High Court shall have superintendence over, and rule-making power in respect of all Courts constituted under this Act subject to its appellate jurisdiction in the same manner as it has over and in respect of other Courts under [2][Articles 202 and 203 of the Constitution.]

52. Applicability of provisions of the Act.— (1) The provisions of this Act shall apply to all suits to which the same are applicable whether the circumstances relied on occurred before or after the passing of this Act, and whether any decree or order referred to was passed under this Act or under the law in force before the passing of this Act, and where any proceedings are pending in any Court at the time of the commencement of this Act, the Court shall allow such amendment of the pleadings as may be necessary as the result of the coming into operation of this Act.

(2) A Parsi who has contracted a marriage under the Parsi Marriage and Divorce Act, 1865 (XV of 1865), or under this Act, even though such Parsi may change his or her religion or domicile, so long as his or her wife or husband is alive and so long as such Parsi has not been lawfully divorced from such wife or husband or such marriage has not lawfully been declared null and void or dissolved under the decree of a competent Court under either of the said Acts, shall remain bound by the provisions of this Act.

53. [3][*Repealed.*]

[1]Subs. by A. O.,1964 Art. 2 and Sch.
[2]Subs. by F.A.O., 1975, Art.2 and Sch.
[3]Rep. by the Repealing and Amending Act, 1937 (XX of 1937), s. 3 and Sch. II.

SCHEDULE I

(*See* section 3)

Table of prohibited degrees of consanguinity and affinity

A man shall not marry his—

1. Paternal grand-father’s mother.
2. Paternal grand-mother’s mother.
3. Maternal grand-father’s mother.
4. Maternal grand-mother’s mother.
5. Paternal grand-mother.
6. Paternal grand-father’s wife.
7. Maternal grand-mother.
8. Maternal grand-father’s wife.
9. Mother or step-mother.
10. Father’s sister or step-sister.
11. Mother’s sister or step-sister.
12. Sister or step-sister.
13. Brother’s daughter or step-brother's daughter, or any direct lineal descendant of a brother or step-brother.
14. Sister’s daughter or step-sister's daughter, or any direct lineal descendant of a sister, or step-sister.
15. Daughter or step-daughter, or any direct lineal descendant of either.
16. Son's daughter or step-son’s daughter, or any direct lineal descendant of a son or step-son.
17. Wife of son or step-son, or of any direct lineal descendant of a son or step-son.
18. Wife of daughter’s son or of step-daughter's son, or of any direct lineal descendant of a daughter or step-daughter.
19. Mother of daughter’s husband.
20. Mother of son’s wife.
21. Mother of wife’s paternal grand-father.
22. Mother of wife’s paternal grand-mother.
23. Mother of wife’s maternal grand-father.
24. Mother of wife’s maternal grand-mother.
25. Wife’s paternal grand-mother.
26. Wife’s maternal grand-mother.

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27. Wife's mother or step-mother.
28. Wife's father's sister.
29. Wife's mother's sister.
30. Father's brother's wife.
31. Mother's brother's wife.
32. Brother's son's wife.
33. Sister's son's wife.

A woman shall not marry her—

1. Paternal grand-father's father.
2. Paternal grand-mother's father.
3. Maternal grand-father's father.
4. Maternal grand-mother's father.
5. Paternal grand-father.
6. Paternal grand-mother's husband.
7. Maternal grand-father.
8. Maternal grand-mother's husband.
9. Father or step-father.
10. Father's brother or step-brother.
11. Mother's brother or step-brother.
12. Brother or step-brother.
13. Brother's son or step-brother's son, or any direct lineal descendant of a brother or step-brother.
14. Sister's son or step-sister's son, or any direct lineal descendant of a sister or step-sister.
15. Son or step-son, or any direct lineal descendant of either.
16. Daughter's son or step-daughter's son, or any direct lineal descendant of a daughter or step-daughter.
17. Husband of daughter or of step-daughter, or of any direct lineal descendant of a daughter or step-daughter.
18. Husband of son's daughter or of step-son's daughter, or of any direct lineal descendant of a son or step-son.
19. Father of daughter's husband.
20. Father of son's wife.
21. Father of husband's paternal grand-father.

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22. Father of husband's paternal grand-mother.

23. Father of husband's maternal grand-father.

24. Father of husband's maternal grand-mother.

25. Husband's paternal grand-father.

26. Husband's maternal grand-father.

27. Husband's father or step-father.

28. Brother of husband's father.

29. Brother of husband's mother.

30. Husband's brother's son, or his direct lineal descendant.

31. Husband's sister's son, or his direct lineal descendant.

32. Brother's daughter's husband.

33. Sister's daughter's husband.

Note.— In the above table the words "brother" and "sister" denote brother and sister of the whole as well as half blood. Relationship by step means relationship by marriages.

SCHEDULE II
(*See* section 6)
Certificate of Marriage

	Date and place of marriage.
	Names of the husband and wife.
	Condition at the time of marriage.
	Rank or profession.
	Age.
	Residence.
	Names of the fathers or guardians.
	Rank or profession.
	Signature of the officiating priest.
	Signature of the contracting parties.
	Signatures of the fathers or guardians of the contracting party under 21 years of age.
	Signature of witnesses.

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Date: 17-02-2025

THE MARRIED WOMEN'S PROPERTY ACT, 1874

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THE MARRIED WOMEN'S PROPERTY ACT, 1874

[1]ACT No. III of 1874

[*24th February, 1874*]

An Act to explain and amend the law relating to certain married women, and for other purposes.

Preamble. WHEREAS it is expedient to make such provision as hereinafter appears for the enjoyment of wages and earnings by women married before the first day of January, 1866, and for insurances on lives by persons married before or after that day:

AND WHEREAS by [2][section 20 of the Succession Act, 1925] (XXXIX of 1925) it is enacted that no person shall by marriage acquire any interest in the property of the person whom he or she marries, nor become incapable of doing any act in respect of his or her own property, which he or she could have done, if unmarried:

AND WHEREAS by force of the said Act all women to whose marriages it applies are absolute owners of all property vested in, or acquired by, them, and their husbands do not by their marriage acquire any interest in such property, but the said Act does not protect such husbands from liabilities on account of the debts of their wives contracted before marriage, and does not expressly provide for the enforcement of claims by or against such wives:

It is hereby enacted as follows:_

I.—PRELIMINARY

1. Short title. This Act may be called the Married Women's Property Act, 1874.

2. Extent and application. [3][It extends to the whole of Pakistan.]

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But nothing herein contained applies to any married woman who at the time of her marriage professed the Hindu, [4][Muslim], Buddhist, Sikh or Jaina religion, or whose husband, at the time of such marriage, professed any of those religions.

And the [5][Provincial Government] may from time to time, by order, either retrospectively from the passing of this Act or prospectively, exempt from the operation of all or any of the provisions of this Act the members of any race, sect or tribe, or part of race, sect or tribe, to whom [6][it] may consider it impossible or inexpedient to apply such provisions.

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[1]For the Statement of Objects and Reasons, see Gazette of India, 1873 Pt. V, p. 457; for Proceedings in Council, *see ibid*., Extra Supplements, dated 2nd August and 6th September, 1873, respectively pp. 9 and 12, and *ibid*., 1874, Supplement, p. 239.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "the Indian Succession Act, 1865".
[3]This para, has successively been amended by A. O., 1937, A.O.,1949, Arts. 3(2) and 4, the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and III Sch., and the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), to read as above.
[4]Subs. by F. A. O., 1975, Art, 2 and Table, for "Muhammadan".
[5]Subs. by A. O., 1937 for "L. G." which had been subs. by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I, for "G.G. in C.".
[6]Subs. by A.O., 1937, for "he".

The [1][Provincial Government] may also revoke any such order, but not so that the revocation shall have any retrospective effect.

All orders and revocations under this section shall be published in the [2][official Gazette].

[3]* * * * * * *

3. [*Commencement.*] *Rep. by the Repealing Act, 1876 (XII of 1876).*

II.—MARRIED WOMEN'S WAGES AND EARNINGS

[4]4. Married women's earnings to be their separate property. The wages and earnings of any married woman acquired or gained by her after the passing of this Act, in any employment, occupation or trade carried on by her and not by her husband, and also any money or other property so acquired by her through the exercise of any literary, artistic or scientific skill, and all savings from and investments of such wages, earnings and property, shall be deemed to be her separate property, and her receipts alone shall be good discharges for such wages, earnings and property.

III.—INSURANCE BY WIVES AND HUSBANDS

[5]5. Married woman may effect policy of insurance. Any married woman may effect a policy of insurance on her own behalf and independently of her husband; and the same and all benefit thereof, if expressed on the face of it to be so effected shall ensure as her separate property, and the contract evidenced by such policy shall be as valid as if made with an unmarried woman.

[6]6. Insurance by husband for benefit of wife. [7][(1) A policy of insurance effected by any married man on his own life, and expressed on the face of it to be for the benefit of his wife, or of his wife and children, or any of them, shall ensure and be deemed to be a trust for the benefit of his wife, or of his wife and children, or any of them, according to the interest so expressed, and shall not, so long as any object of the trust remains, be subject to the control of the husband, or to his creditors, or form part of his estate.

When the sum secured by the policy becomes payable, it shall, unless special trustees are duly appointed to receive and hold the same, be paid to the Official Trustee of the [8][Province] in which the office at which the insurance was effected is situate, and shall be received and held by him upon the trusts expressed in the policy, or such of them as are then existing.

And in reference to such sum he shall stand in the same position in all respects as if he had been duly appointed trustee thereof by a High Court, under [9][The Official Trustees Act, 1913 (II of 1913)].

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[1]Subs. by A. O., 1937 for "L. G." which had been subs. by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I, for "G.G. in C.".
[2]Subs. *ibid,* for "local official Gazette" which had been subs. by Act 38 of 1920, s. 2 and Sch. I, for the words "Gazette of India".
[3]The last para. of section 2 was omitted by the Succession Act, 1925 (39 of 1925), s. 392, and Sch. IX.
[4]*Cf.* the Married Women's Property Act, 1870 (33 and 34 Vict., c. 93) s.1, now repealed by the Married Women's Property Act, 1882 (45 and 46, Vict., c. 75).
[5]*Cf.* the Married Women's Property Act, 1870 (33 and 34 Vict., c. 93), s. 10, para 1.
[6]*Cf. ibid.*, para 2.
[7]Re-numbered by the Married Women's Property (Amdt.) Act, 1923 (13of 1923), s. 2.
[8]Subs. by A. O., 1937. for "Presidency".
[9]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981). s. 3 and IInd Sch., for "Act No. XVII of 1864 to constitute an Office of Official Trustee, section 10".

Nothing herein contained shall operate to destroy or impede the right of any creditor to be paid out of the proceeds of any policy of assurance which may have been effected with intent to defraud creditors.

[1][(2) Notwithstanding anything contained in section 2, the provisions of sub-section (1) shall apply in the case of any policy of insurance such as is referred to therein which is effected by any Hindu, [2][Muslim], Sikh or Jain, [3][in any Province] after the first day of April, 1923:

Provided that nothing herein contained shall affect any right or liability which has accrued or been incurred under any decree of a competent Court passed before the first day of April, 1923.]

IV.—LEGAL PROCEEDINGS BY AND AGAINST MARRIED WOMEN

[4]**7. Married woman may take legal proceedings**. A married woman may maintain a suit in her own name for the recovery of property of any description which by force of the said [5][Succession Act, 1925 (XXXIX of 1925)] or of this Act, is her separate property; and she shall have, in her own name, the same remedies, both civil and criminal, against all persons, for the protection and security of such property, as if she were unmarried, and she shall be liable to such suits, processes and orders in respect of such property as she would be liable to if she were unmarried.

8. Wife's liability for postnuptial debts. If a married woman (whether married before or after the first day of January, 1866) possesses separate property, and if any person enters into a contract with her with reference to such property, or on the faith that her obligation arising out of such contract will be satisfied out of her separate property, such person shall be entitled to sue her, and, to the extent of her separate property, to recover against her whatever he might have recovered in such suit had she been unmarried at the date of the contract and continued unmarried at the execution of the decree:

[6][Provided that nothing herein contained shall—

(a) entitle such person to recover anything by attachment and sale or otherwise out of any property which has been transferred to a woman or for her benefit on condition that she shall have no power during her marriage to transfer or charge the same or her beneficial interest therein, or

(b) affect the liability of a husband for debts contracted by his wife's agency expressed or implied.]

V.—HUSBAND'S LIABILITY FOR WIFE'S DEBTS

[7]**9. Husband not liable for wife's antenuptial debts**. A husband married after the thirty-first day of December, 1865, shall not by reason only of such marriage be liable to the debts of his wife contracted before marriage, but the wife shall be liable to be sued for, and shall, to the extent of her separate property, be liable to satisfy such debts as if she had continued unmarried:

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[1]Sub-section (2) ins. by Act, 13 of 1923, s.2.
[2]Subs. by F. A. O., 1975. Art. 2 and Table, for "Muhammadan",
[3]Subs. by A. O., 1949. Sch., for "in Madras after the thirty-first day of December, 1913, or in any other part of British India".
[4]Cf. the Married Women's Property Act, 1870 (33 and 34 Vict., c. 93), s. 11, rep. by the Married Women's Property Act, 1882 (45 and 46 Vict., c. 75).
[5]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and IInd Sch., for "Indian Succession Act, 1865".
[6]Subs. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929), s. 2, for the original proviso as amended by the Debtors Act, 1888 (6 of 1888), s. 9.
[7]Cf. the Married Women's Property Act, 1870 (33 and 34 Vict., c. 93), s.12.

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Proviso. Provided that nothing contained in this section shall [1]* * * invalidate any contract into which a husband may, before the passing of this Act, have entered in consideration of his wife's antenuptial debts.

VI. —[2]HUSBAND'S LIABILTY FOR WIFE'S BREACH OF TRUST OR DEVASTATION

10. Extent of husband's liability for wife's breach of trust or devastation. Where a woman is a trustee, executrix or administratrix' either before or after marriage, her husband shall not, unless he acts or intermeddles in the trust or administration, be liable for any breach of trust committed by her, or for any misapplication, loss or damage to the estate of the deceased caused or made by her, or for any loss to such estate arising from her neglect to get in any part of the property of the deceased.]

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Date: 16-09-2024

[1]The words "affect any suit instituted before the passing of this Act, nor" rep. by the Amending Act, 1891 (12 of 1891).
[2]This heading and s. 10 ins. by the Indian Succession (Amendment) Act, 1927 (18 of 1927), s. 3.

THE MARRIAGE FUNCTIONS (PROHIBITION OF OSTENTATIOUS DISPLAY AND WASTEFUL EXPENSES) ORDINANCE, 2000

CONTENTS

1. Short title, extent and commencement.
2. Interpretation.
3. Prohibition of ostentatious celebrations.
4. Restriction on wasteful expenses.
5. Application of the Ordinance to hotels, restaurants, etc.
6. Offences.
7. Cognizance of offences.

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THE MARRIAGE FUNCTIONS (PROHIBITION OF OSTENTATIOUS DISPLAYS AND WASTEFUL EXPENSES) ORDINANCE 2000

Ordinance No. II of 2000

[13th January 2000]

AN ORDINANCE whereas it is expedient to provide for the prohibition of ostentatious displays and wasteful expenses on marriages and ceremonies related thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999 and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by the Provisional Constitution Order No. 1 of 1999 as amended including the Provisional Constitution (Amendment) Order No. 9 of 1999, the President, on the advice of the Chief Executive, is pleased to make and promulgate the following Ordinance:

1. Short title, extent and commencement.—(1) This Ordinance may be called the Marriage Functions (Prohibition of Ostentatious Displays and Wasteful Expenses) Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Interpretation.— For the purposes of this Ordinance the expression "marriage" shall include all ceremonies, preceding and succeeding the formal wedding whether religious or civil rituals such as *nikah, rukhsati, walima, mehndi, rasme-hina,* and other functions and celebrations connected with marriage and related festivities.

3 Prohibition of ostentatious celebrations.—(1) Subject to sub-section (2) no person celebrating his marriage or the marriage of any other person shall

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(a) decorate or cause to be decorated any house or building including any space appertaining thereto, street, road or other place whether owned by him or otherwise with lights or illumination;

(b) explode or allow any one to explode cracker or other explosive device including firing by firearm; or

(c) display or allow any one to display fire-works.

(2) Nothing contained in sub-section (1) shall prohibit the use of such lights as are ordinarily necessary to light the house or any other place being the site of marriage.

4. Restriction on wasteful expenses.—(1) No person celebrating his or the marriage of any other person shall serve or allow any one to serve meals or other edibles to persons participating in the marriage in a club, hotel, restaurant, wedding hall, community centre or any other place except

[1][one dish, which means one salan, rice with roti and one sweet dish with] hot and cold soft drinks.

(2) Nothing contained in sub-section (1) shall apply to the eating of meals within the house by the members of family celebrating the marriage or the house guests.

5. Application of the Ordinance to hotels, restaurants, etc. No person owning or running a hotel, restaurant, wedding hall, community centre, or club being the site of a marriage ceremony or any caterer shall serve or allow any one to serve any meals or edibles to the persons participating in the marriage ceremony other than hot and cold soft drinks.

6. Offences. Whoever contravenes the provisions of section 3, section 4 or section 5 shall be guilty of an offence punishable with simple imprisonment for a term which may extend to one month or with fine which shall be not less than one hundred thousand rupees and not more than five hundred thousand rupees or with both.

7. Cognizance of offences.—(1) The offences under this Ordinance shall be noncognizable and no court shall take cognizance of an offence under this Ordinance except on a complaint in writing by an officer or agency as the Federal Government or a Provincial Government may, by notification in the official Gazette, appoint.

(2) No court inferior to that of the Magistrate of the first class shall try an offence under this Ordinance.

(3) Notwithstanding anything contained in section 32 of the Code of Criminal Procedure, 1898, (Act V of 1898) it shall be lawful for any Magistrate of the first class to pass any sentence authorized by this Ordinance even if such sentence exceeds his power under the said section 32.

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[1]Ins. by the Marriage Functions (Prohibition of Ostentatious Displays and Wasteful Expenses) (Amdt.) Act, 2006.(4 of 2006), s. 2.

THE HINDU WOMEN'S RIGHTS TO PROPERTY ACT, 1937

CONTENTS

1. Short title and extent
2. Application
3. Devolution of property
4. Savings
5. Meaning of expression "die intestate"

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THE HINDU WOMEN'S RIGHTS TO PROPERTY ACT, 1937

ACT NO. XVIII OF 1937

[*14th April, 1937*]

An Act to amend the Hindu Law governing Hindu Women's Rights to Property.

WHEREAS it is expedient to amend the Hindu Law to give better rights to women in respect of property;

It is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the Hindu Women's Rights to Property Act, 1937.

[1][(2) It extends to the whole of Pakistan.]

2. Application. Notwithstanding any rule of Hindu Law or custom to the contrary, the provisions of section 3 shall apply where a Hindu dies intestate leaving a widow.

[2]**[3. Devolution of property.—**[(1) When a Hindu governed by the Dayabhag School of Hindu Law dies intestate leaving any property, and when a Hindu governed by any other school of Hindu Law or by customary law dies intestate leaving separate property, his widow, or if there is more than one widow all his widows together, shall, subject to the provisions of sub-section (3), be entitled in respect of property in respect of which he dies intestate to the same share as a son:]

Provided that the widow of a predeceased son shall inherit in like manner as a son if there is no son surviving of such predeceased son, and shall inherit in like manner as a son's son if there is surviving a son or son's son of such predeceased son:

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Provided further that the same provision shall apply *mutatis mutandis* to the widow of a predeceased son of a predeceased son.

(2) When a Hindu governed by any school of Hindu Law other than the Dayabhag School or by customary law dies [3][*] having at the time of his death an interest in a Hindu joint family property, his widow shall, subject to the provisions of sub-section (3), have in the property the same interest as he himself had.

(3) Any interest devolving on a Hindu widow under the provisions of this section shall be the limited interest known as a Hindu woman's estate, provided however that she shall have the same right of claiming partition as a male owner.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960, (XXI of 1960), s. 3 and 2nd Sch.

[2]Subs. by the Act No. XI of 1938, s. 3.
[3]Omitted by Act No. XI of 1938, s. 3.

(4) The provisions of this section shall not apply to an estate which by a customary or other rule of succession [1][or by the terms of the grant applicable thereto] descends to a single heir or to any property to which the Succession Act, 1925 (XXXIX of 1925), applies.

4. Savings. Nothing in this Act shall apply to the property of any Hindu dying intestate before the commencement of this Act.

[1]**[5.Meaning of expression "die intestate".** For the purposes of this Act, a person shall be deemed to die intestate in respect of all property of which he has not made a testamentary disposition which is capable of taking effect.]

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Date: 22-07-2024

[1]Ins. by the Act No. XI of 1938, ss. 3-4.

THE HINDU WIDOWS' RE-MARRIAGE ACT, 1856

CONTENTS

PREAMBLE

1. Marriage of Hindu widows legalized
2. Rights of widow in deceased husband's property to cease on her re-marriage
3. Guardianship of children of deceased husband on the re-marriage of his widow.
4. Nothing in this Act to render any childless widow capable of inheriting
5. Saving of rights of widow marrying, except as provided in sections 2 to 4
6. Ceremonies constituting valid marriage to have same effect on widow's marriage
7. Consent to re-marriage of minor widow

Punishment for abetting marriage made contrary to this section

Effect of such marriage

Consent to re-marriage of major widow

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[1][THE HINDU WIDOWS' RE-MARRIAGE ACT, 1856]

ACT No. XV OF 1856

[25th July, 1856*]*

An Act to remove all legal obstacles to the marriage of Hindu Widows.

Preamble. WHEREAS it is known that, by the law as administered in the Civil Courts established in the territories in the possession and under the Government of the East India Company, Hindu widows with certain exceptions are held to be, by reason of their having been once married, incapable of contracting a second valid marriage, and the offspring of such widows by any second marriage are held to be illegitimate and incapable of inheriting property;

AND WHEREAS many Hindus believe that this imputed legal incapacity, although it is in accordance with established custom, is not in accordance with a true interpretation of the precepts of their religion, and desire that the civil law administered by the Courts of Justice shall no longer prevent those Hindus who may be so minded from adopting a different custom, in accordance with the dictates of their own conscience;

AND WHEREAS it is just to relieve all such Hindus from this legal incapacity of which they complain, and the removal of all legal obstacles to the marriage of Hindu widows will tend to the promotion of good morals and to the public welfare; it is enacted as follows:-

1. Marriage of Hindu widows legalized. No marriage contracted between Hindus shall be invalid, and the issue of no such marriage shall be illegitimate, by reason of the woman having been previously married or betrothed to another person who was dead at the time of such marriage, any custom and any interpretation of Hindu law to the contrary notwithstanding.

2. Rights of widow in deceased husband's property to cease on her re-marriage. All rights and interests which any widow may have in her deceased husband's property by way of maintenance, or by inheritance to her husband or to his lineal successors, or by virtue of any will or testamentary disposition conferring upon her, without express permission to re-marry, only a limited interest in such property, with no power of alienating the same, shall upon her re-marriage cease and determine as if she had then died; and the next heirs of her deceased husband, or other persons entitled to the property on her death, shall thereupon succeed to the same.

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[1]Short title given by the Short Titles Act, 1897 (14 of 1897).

This Act has been declared to be in force in all the Provinces and the Capital of the Federation, except the Scheduled Districts, by the Law Local Extent Act, 1874 (15 of 1874), s. 3.

It has been declared, by notification under s. 3 (a) of the Scheduled Districts Act, 1874(14 of I874), to be in force in the following Scheduled Districts, namely-

Sind .. .. .. See Gazette of India, 1880, Pt. I, p. 672.

The District of Hazara, Peshawar, Kohat, Bannu, Dera Ismail Khan and Dera Ghazi Khan. [Portions of the Districts of Hazara, Bannu, Dera Ismail khan and Dera Ghazi Khan and the Districts of Peshawar and Kohat now form the N.W.F.P., see Gazette of India, 1901, Pt. I., p. 857, and ibid., 1902, Pt. I, p. 575; but its application to that part of the Hazara District known as Upper Tanawal has been barred by the Hazara (Upper Tanawal) Regulation, 1900 (2 of 1900)]-see Gazette of India, 1886, Pt. I, p. 48.

3. Guardianship of children of deceased husband on the re-marriage of his widow. On the re-marriage of a Hindu widow, if neither the widow nor any other person has been expressly constituted by the will or testamentary disposition of the deceased husband the guardian of his children the father or paternal grandfather or the mother of paternal grandmother, of the deceased husband, or any male relative of the deceased husband, may petition the highest Court having original jurisdiction in civil cases in the place where the deceased husband was domiciled at the time of his death for the appointment of some proper person to be guardian of the said children, and thereupon it shall be lawful for the said Court, if it shall think fit, to appoint such guardian, who when appointed shall be entitled to have the care and custody of the said children, or of any of them during their minority, in the place of their mother; and in making such appointment the Court shall be guided, so far as may be by the laws and rules in force touching the guardianship of children who have neither father nor mother:

Provided that, when the said children have not property of their own sufficient for their support and proper education whilst minors, no such appointment shall be made otherwise than with the consent of the mother unless the proposed guardian shall have given security for the support and proper education of the children whilst minors.

4. Nothing in this Act to render any childless widow capable of inheriting. Nothing in this Act contained shall be construed to render any widow who, at the time of the death of any person leaving any property, is a childless widow, capable of inheriting the whole or any share of such property, if before the passing of this Act, she would have been incapable of inheriting the same by reason of her being a childless widow.

5. Saving of rights of widow marrying, except as provided in sections 2 to 4. Except as in the three preceding sections is provided, a widow shall not, by reason of her re-marriage forfeit any property or any right to which she would otherwise be entitled; and every widow who has re-married shall have the same rights of inheritance as she would have had, had such marriage been her first marriage.

6. Ceremonies constituting valid marriage to have same effect on widow's marriage. Whatever words spoken, ceremonies performed or engagements made on the marriage of a Hindu female who has not been previously married, are sufficient to constitute a valid marriage, shall have the same effect if spoken, performed or made on the marriage of a Hindu widow; and no marriage shall be declared invalid on the ground that such words, ceremonies or engagements are inapplicable to the case of a widow.

7. Consent to re-marriage of minor widow. If the widow re-marrying is a minor whose marriage has not been consummated, she shall not re-marry without the consent of her father, or if she has no father, of her paternal grandfather, or if she has no such grandfather, of her mother, or, failing all these, of her elder brother, or failing also brothers, of her next male relative.

Punishment for abetting marriage made contrary to this section. All persons knowingly abetting a marriage made contrary to the provisions of this section shall be liable to imprisonment for any term not exceeding one year or to fine or to both.

Effect of such marriage. And all marriages made contrary to the provisions of this section may be declared void by a Court of law: Provided, that in any question regarding the validity of a marriage made contrary to the provisions of this section, such consent as is aforesaid shall be presumed until the contrary is proved, and that no such marriage shall be declared void after it has been consummated.

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Consent to re-marriage of major widow. In the case of a widow who is of full age, or whose marriage has been consummated, her own consent shall be sufficient consent to constitute her re-marriage lawful and valid.

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THE HINDU MARRIED WOMEN'S RIGHT TO SEPARATE RESIDENCE AND MAINTENANCE ACT, 1946

CONTENTS

1. Short title and extent
2. Grounds for claiming separate residence and maintenance
3. Amount of maintenance

THE PAKISTAN CODE

THE HINDU MARRIED WOMEN'S RIGHT TO SEPARATE RESIDENCE AND MAINTENANCE ACT, 1946.

[1]ACT No. XIX OF 1946

[*23rd April, 1946]*

An Act to give Hindu married women a right to separate residence and maintenance under certain circumstances.

WHEREAS it is expedient to provide for the right to separate residence and maintenance under certain circumstances in the case of Hindu married women; It is hereby enacted as follows :—

1. Short title and extent.—(1) This Act may be called the Hindu Married Women's Right to Separate Residence and Maintenance Act, 1946.

[2][(2) It extends to the whole of Pakistan.]

2. Grounds for claiming separate residence and maintenance. Notwithstanding any custom or law to the contrary a Hindu married woman shall be entitled to separate residence and maintenance from her husband on one or more of the following grounds, namely,—

(1) if he is suffering from any loathsome disease not contracted from her ;

(2) if he is guilty of such cruelty towards her as renders it unsafe or undesirable for her to live with him ;

(3) if he is guilty of desertion, that is to say, of abandoning her without her consent or against her wish;

(4) if he marries again ;

(5) if he ceases to be a Hindu by conversion to another religion ;

(6) if he keeps a concubine in the house or habitually resides with a concubine ;

(7) for any other justifiable cause :

Provided that a Hindu married woman shall not be entitled to separate residence and maintenance from her husband if she is unchaste or ceases to be a Hindu by change to another religion or fails without sufficient cause to comply with a decree of a competent Court for the restitution of conjugal rights.

3. Amount of maintenance. When allowing a claim for separate residence and maintenance under section 2, the Court shall determine the amount to be paid by the husband to the wife therefore, and in so doing shall have regard to the social standing of the parties and the extent of the husband's means.

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Date: 24-09-2024

[1]This Act has been applied to Baluchistan, *see* Notification No. 336/B. P. G., dated the 26th November, 1946, Gazette of India, 1946, Pt. I. p. 1675. It has been extended to the Leased Areas of Baluchistan by the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950).

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch.

THE HINDU MARRIAGE DISABILITIES REMOVAL ACT, 1946

CONTENTS

1. Short title and extent

2. Marriage between persons of same *gotra* or *pravara* or of different sub-divisions of the same caste

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THE HINDU MARRIAGE DISABILITIES REMOVAL ACT, 1946.

[1]ACT No. XXVIII OF 1946

[22nd November, 1946]

An Act to remove certain disabilities and doubts under Hindu Law in respect of marriages between Hindus.

WHEREAS it is expedient to remove certain disabilities and doubts under the Hindu Law in respect of marriages between Hindus; it is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the Hindu Marriage Disabilities Removal Act, 1946.

[2][(2) It extends to the whole of Pakistan.]

2. Marriages between persons of same *gotra* or *pravara* or of different sub-divisions of the same caste. Notwithstanding any text, rule or interpretation of the Hindu Law or any custom or usage, a marriage between Hindus, which is otherwise valid, shall not be invalid by reason only of the fact that the parties thereto-

(a) belong to the same *gotra or pravara*, or

(b) belong to different sub-divisions of the same caste.

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Date; 24-09-2024

[1]This Act has been applied to Baluchistan, *see* Notification No. 358-B P. G., dated the 10th December, 1946. Gazette of India, 1946. Pt. I, p. 1885.
The Act has been extended to—
(a) the Leased Area of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950) ;
(b) the Baluchistan States Union, *see* the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953) ;
(c) the Khairpur State, *see* the Khairpur (Federal Laws) (Extension) Order, 1953 (G. G. O. 5 of 1953) ; and
(d) the State of Bahawalpur, *see* the Bahawalpur (Extension) of Federal Laws) Order, 1953 (G. G. O. 6 of 1953). as amended.
The Act has been and shall be deemed to has been brought into force in Gwadur w. e. f. the 18th September. 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (Ordinance No. XXXVII of 1960), s. 2.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch.

THE HINDU INHERITANCE (REMOVAL OF DISABILITIES) ACT, 1928

CONTENTS

1. Short title, extent and application.
2. Persons not to be excluded form inheritance or rights in joint-family property.
3. Saving and exception.

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THE HINDU INHERITANCE (REMOVAL OF DISABILITIES) ACT, 1928.

ACT No. XII of 1928

[20th September, 1928]

An Act to amend the Hindu Law relating to exclusion from inheritance of certain classes of heirs, and to remove certain doubts.

WHERAS it is expedient to amend the Hindu Law relating to exclusion from inheritance of certain classes of heirs, and to remove certain doubts; it is hereby enacted as follows:—

1. Short title, extent and application.—(1) This Act may be called the Hindu Inheritance (Removal of Disabilities) Act, 1928.

[1][(2) It extends to the whole of Pakistan.]

(3) It shall not apply to any person governed by the Daya-bhaga School of Hindu Law.

2. Persons not to be excluded form inheritance or rights in joint-family property. Notwithstanding any rule of Hindu Law or custom to the contrary, no person governed by the Hindu law, other than a person who is and has been from birth a lunatic or idiot, shall by excluded from inheritance or from any right or share in joint-family property by reason only of any disease, deformity, or physical or mental defect.

3. Saving and exception. Nothing contained in this Act shall affect any right which has accrued or any liability which has been incurred before the commencement thereof, or shall be deemed to confer upon any person any right in respect of any religious office or service or of the management of any religious or charitable trust which he would not have had if this Act had not been passed.

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Date: 15-08-2024

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955).

THE HINDU DISPOSITION OF PROPERTY ACT, 1916

CONTENTS

1. Short title and extent
2. Disposition for the benefit of persons not in existence
3. Limitations and conditions
4. [*Failure of prior disposition*]
5. Application of this Act to the Khoja community

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THE HINDU DISPOSITION OF PROPERTY ACT, 1916

[1](Act No. XV of 1916)

[28th September, 1916]

An Act to remove certain existing disabilities in respect of the power of disposition of property by Hindus for the benefit of persons not in existence at the date of such disposition.

WHEREAS it is expedient to remove certain existing disabilities in respect of the power of disposition of property by Hindus for the benefit or persons not in existence at the date of such disposition;

It is hereby enacted as follows:-

1. Short title and extent.— (1) This Act may be called the Hindu Disposition of Property Act, 1916.

[2][(2) It extends to the whole of Pakistan]

2. Disposition for the benefit of persons not in existence. Subject to the limitations and provisions specified in this Act, no disposition of property by a Hindu, whether by transfer inter vivos or by will, shall be invalid by reason only that any person for whose benefit it may have been made was not in existence at the date of such disposition.

3. Limitations and conditions. The limitations and provisions referred to in section 2 shall be the following, namely: -

(a) in respect of dispositions by transfer inter vivos, those contained in [3][Chapter II] of the Transfer of Property Act, 1882 (IV of 1882) and

(b) in respect of dispositions by will, those contained in [4][sections 113, 114, 115 and 116 of the Indian Succession Act, 1925 (XXXIX of 1925).]

4. *[Failure of prior disposition].* *Rep. By the Transfer of Property (Amdt.) Supplementary Act, 1929 (XXI of 1929), s. 12.*

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5. Application of this Act to the Khoja community. Where the [5][Provincial Government] is of opinion that the Khoja community in [6][the Province] or any part thereof desire that the provisions of this Act should be extended to such community, [7][it] may by notification in the [8][Official Gazette], declare that the provisions of this Act, with the substitutions of the word "Khojas" or "Khoja", as the case may be, for the word "Hindus" or "Hindu" wherever those words occur, shall apply to that community in such area as may be specified in the notification, and this Act shall thereupon have effect accordingly.

Date: 16-09-2024

[1]For Statement of Objects, and Reasons, see Gazette of India, 1916, Pt. V, p. 2 ; for Report of Select Committee, *see ibid.*, 1916, Pt. V, p 76 ; and for Proceedings in Council, *see ibid.*, 1916, Pt. VI, pp. 19, 509, 542 and 585.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2) as amended by A. O., 1937 and A. O., 1949, Sch.
[3]Subs. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929), s. 12, for "sections 13, 14 and 20"
[4]Subs. *ibid.*, for "sections 100 and 101 of the Indian Succession Act, 1865".
[5]Subs. by A. O., 1937, for "G. G. in C."
[6]Subs. *ibid.*, for "British India".
[7]subs. *ibid.*, for "he"
[8]Subs. *ibid.*, for "Gazette of India".

THE GUARDIANS AND WARDS ACT, 1890

CONTENTS

CHAPTER I
PRELIMINARY

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2. [Repealed.]

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THE GUARDIANS AND WARDS ACT, 1890

[1]ACT No. VIII OF 1890

[21st March, 1890]

An Act to consolidate and amend the law relating to Guardian and Ward.

WHEREAS it is expedient to consolidate and amend the law relating to guardian and ward; It is hereby enacted as follows:—

CHAPTER I
PRELIMINARY

1. Title, extent and commencement.—(1) This Act may be called the Guardians and Wards Act, 1890.

[2]**[(2) It extends to the whole of Pakistan;] and**

(3) It shall come into force on the first day of July, 1890.

2. **[Repeal.] Rep.** by the Repealing Act, 1938 (I of 1938), s.2 and Schedule.

3. Saving of jurisdiction of Courts of Wards and Chartered High Courts. This Act shall be read subject to every enactment heretofore or hereafter passed relating to any Court of Wards by [3][any competent legislature, authority or person] in [4][Pakistan], and nothing in this Act shall be construed to affect, or in any way derogate from, the jurisdiction or authority of any Court of Wards, or to take away any power possessed by [5][any High Court [6][* * *].

4. Definitions. In this Act, unless there is something repugnant in the subject or context,—

(1) "minor" means a person who, under the provisions of the Majority Act, 1875 (IX of 1875), is to be deemed not to have attained his majority:

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[1]For Statement of Objects and Reasons, see Gazette of India, 1886 Pt. V, p. 77; for Report of the Select Committee, see ibid., 1890, Pt. V, P. 77, and for Debates in Council, see ibid., 1886, Supplement, pp. 419 and 666, and ibid., 1890, Pt. VI, pp. 33 and 45.
This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P, subject to certain modifications and; also extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, see N. W.F.P. (Upper Tanawa1) (Excluded Area) Laws Regulation, 1950.
Extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.
Extended to the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953), as amended.
Extended to the Khairpur State by the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O. 5 of 1953), as amended.
The Act has been and shall be deemed to has been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.
The Act, as in force in the North—West Frontier Province immediately before the commencement of N.W.F.P. Regulation No. II of 1974, has been applied to the Provincially Administered Tribal Areas of Chitral, Dir, Kalam, Swat and Malakand Protected Area, by N.W.F.P. Regulation, No. II of 1974, s. 3.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for the existing sub-section (2), which was amended by the Burma Laws Act, 1898 (13 of 1898), s. 18 and Sch. V, A.O., 1949, Arts. 3 (2) and 4, and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8.
[3]Subs. by A.O., 1937, for "the G. G. in C. or by a Governor or Lieutenant-Governor in Council".
[4]Subs. by Ord. 21 of 1960, s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation", which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India."
[5]Subs. by A.O., 1937, for "any High Court established under the Statute 24 and 25 Vict, c. 104 (an Act for establishing High Courts of Judicature in India)".
[6]The words "established in [the Provinces and the Capital of the Federation] by Letters Patent" omitted by Ord. 21 of 1960, s. 3 and 2nd Sch. (with effect from the 14th October, 1955). The words in crotchets were subs. by A. O., 1949, Arts. 3(2) and 4, for "British India.".

(2) "guardian" means a person having the care of the person of a minor or of his property, or of both his person and property:

(3) "ward" means a minor for whose person or property, or both, there is a guardian:

(4) "District Court" has the meaning assigned to that expression in the [1][Code of Civil Procedure, 1908] (Act V of 1908) and includes a High Court in the exercise of its ordinary original civil jurisdiction:

[2][(5) "the Court" means:—

(a) the District Court having jurisdiction to entertain an application under this Act for an order appointing or declaring a person to be a guardian; or

(b) where a guardian has been appointed or declared in pursuance of any such application—

(i) the Court which, or the Court of the Officer who, appointed or declared the guardian or is under this Act deemed to have appointed or declared the guardian; or

(ii) in any matter relating to the person of the ward the District Court having jurisdiction in the place where the ward for the time being ordinarily resides; or

(c) in respect of any proceeding transferred under section 4A, the Court of the officer to whom such proceeding has been transferred.]

(6) "Collector" means the chief officer in charge of the revenue-administration of a district, and includes any officer whom the [3][Provincial Government], by notification in the official Gazette, may, by name or in virtue of his Office, appoint to be a Collector in any local area, or with respect to any class of persons, for all or any of the purposes of this Act:

[4][7* * * * * *]

(8) "prescribed" means prescribed by rules made by the High Court under this Act.

[5][4A. Power to confer jurisdiction on subordinate judicial officers and to transfer proceedings to such officers.—(1) The High Court may, by general or special order, empower any officer exercising original civil jurisdiction sub—ordinate to a District Court, or authorise the Judge of any District Court to empower any such officer subordinate to him, to dispose of any proceedings under this Act transferred to such officer under the provisions of this section.

(2) The Judge of a District Court may, by order in writing, transfer at any stage any proceeding under this Act pending in his Court for disposal to any officer subordinate to him empowered under sub-section (1).

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Code of Civil Procedure".
[2]Subs. by the Guardians and Wards (Amdt.) Act, 1926 (4 of 1926), s. 3, for the original cl. (5).
[3]Subs. by A.O., 1937, for "L.G.".
[4]Omitted by the Federal Laws (Revision and Declaration) Ordnance, 1981 (27 of1981), s. 3 and 2nd Sch.
[5]S. 4A ins. by the Guardians and Wards (Amdt.) Act, 1926 (4 of 1926), s. 2.

(3) The Judge of a District Court may at any stage transfer to his own Court or to any officer subordinate to him empowered under sub-section (1) any proceeding under this Act pending in the Court of any other such officer.

(4) When any proceedings are transferred under this section in any case in which a guardian has been appointed or declared, the Judge of the District Court may, by order in writing, declare that the Court of the Judge or officer to whom they are transferred shall, for all or any of the purposes of this Act, be deemed to be the Court which appointed or declared the guardian.]

CHAPTER II
APPOINTMENT AND DECLARATION OF GUARDIANS

5. [Power of parents to appoint in case of European British subjects.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.

6. Saving of power to appoint in other cases.— In the case of a minor who is not an European British subject, nothing in this Act shall be construed to take away or derogate from any power to appoint a guardian of his person or property, or both, which is valid by the law to which the minor is subject.

7. Power of the Court to make order as to guardianship.—(1) Where the Court is satisfied that it is for the welfare of a minor that an order should be made—

(a) appointing a guardian of his person or property, or both, or

(b) declaring a person to be such a guardian, the Court may make an order accordingly.

(2) An order under this section shall imply the removal of any guardian who has not been appointed by will or other instrument or appointed or declared by the Court.

(3) Where a guardian has been appointed by will or other instrument or appointed or declared by the Court, an order under this section appointing or declaring another person to be guardian in his stead shall not be made until the powers of the guardian appointed or declared as aforesaid have ceased under the provisions of this Act.

8. Persons entitled to apply for order. An order shall not be made under the last foregoing section except on the application of—

(a) the person desirous of being, or claiming to be, the guardian of the minor, or

(b) any relative or friend of the minor, or

(c) the Collector of the district or other local area within which the minor ordinarily resides or in which he has property, or

(d) the Collector having authority with respect to the class to which the minor belongs.

9. Court having jurisdiction to entertain application.—(1) If the application is with respect to the guardianship of the person of the minor, it shall be made to the District Court having jurisdiction in the place where the minor ordinarily rersides.

(2) If the application is with respect to the guardianship of the property of the minor, it may be made either to the District Court having jurisdiction in the place where the minor ordinarily resides or to a District Court having jurisdiction in a place where he has property.

(3) If an application with respect to the guardianship of the property of a minor is made to a District Court other than that having jurisdiction in the place where the minor ordinarily resides, the Court may return the application if in its opinion the application would be disposed of more justly or conveniently by any other District Court having jurisdiction.

10. Form of application.—(1) If the application is not made by the Col1ector, it shall be by petition signed and verified in manner prescribed by the [1][Code of Civil Procedure,1908] (Act V of 1908) for the signing and verification of a plaint, and stating, so far as can be ascertained,—

(a) the name, sex, religion, date of birth and ordinary residence of the minor;

(b) where the minor is a female, whether she is married, and, if so, the name and age of her husband;

(c) the nature, situation and approximate value of the property, if any, of the minor;

(d) the name and residence of the person having the custody or possession of the person or property of the minor;

(e) what near relations the minor has, and where they reside;

(f) whether a guardian of the person or property, or both, of the minor has been appointed by any person entitled or claiming to be entitled by the law to which the minor is subject to make such an appointment;

(g) whether an application has at any time been made to the Court or to any other Court with respect to the guardianship of the person or property, or both, of the minor, and, if so, when, to what Court and with what result ;

(h) whether the application is for the appointment or declaration of a guardian of the person of the minor, or of his property, or of both;

(i) where the application is to appoint a guardian, the qualifications of the proposed guardian;

(j) where the application is to declare a person to be a guardian, the grounds on which that person claims;

(k) the causes which have led to the making of the application; and

(I) such other particulars, if any, as may be prescribed or as the nature of the application renders it necessary to state.

(2) If the application is made by the Collector, it shall be by letter addressed to the Court and forwarded by post or in such other manner as may be found convenient, and shall state as far as possible the particulars mentioned in sub-section (1).

(3) The application must be accompanied by a declaration of the willingness of the proposed guardian to act and the declaration must be signed by him and attested by at least two witnesses.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch. for "Code of Civil Procedure."

11. Procedure on admission of application.—(1) If the Court is satisfied that there is ground for proceeding on the application, it shall fix a day for the hearing thereof and cause notice of the application and of the date fixed for the hearing—

(a) to be served in the manner directed in the [1][Code of Civil Procedure, 1908], (Act V of 1908) on—

(i) the parents of the minor if they are residing in [2][Pakistan],

(ii) the person, if any, named in the petition or letter as having the custody or possession of the person or property of the minor,

(iii) the person proposed in the application letter to be appointed or declared guardian, unless that person is himself the applicant, and

(iv) any other person to whom, in the opinion of the Court, special notice of the application should be given; and

(b) to be posted on some conspicuous part of the courthouse, and of the residence of the minor, and otherwise published in such manner as the Court, subject to any rules made by the High Court under this Act, thinks fit.

(2) The [3][Provincial Government] may, by general or special order, require that, when any part of the property described in a petition under section 10, sub-section (1), is land of which a Court of Wards could assume the superintendence, the Court shall also cause a notice as aforesaid to be served on the Collector in whose district the minor ordinarily resides, and on every Collector in whose district any portion of the land is situate, and the Collector may cause the notice to be published in any manner he deems fit.

(3) No charge shall be made by the Court or the Collector for the service or publication of any notice served or published under sub-section (2).

12. Power to make interlocutory order of production of minor and interim protection of person and property.—(1) The Court may direct that the person, if any, having the custody of the minor shall produce him or cause him to be produced at such place and time and before such person as it appoints, and may make such order for the temporary custody and protection of the person or property of the minor as it thinks proper.

(2) If the minor is a female who ought not to be compelled to appear in public, the direction under sub-section (1) for her production shall require her to be produced in accordance with the customs and manners of the country.

(3) Nothing in this section shall authorise—

(a) the Court to place a female minor in the temporary custody of a person claiming to be her guardian on the ground of his being her husband, unless she is already in his custody with the consent of her parents, if any,

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981, (27 of 1981), s. 3 and 2nd Sch., for "Code of Civil Procedure".
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "British India".
[3]Subs. by A.O., 1937, for "L.G.".

(b) any person to whom the temporary custody and protection of the property of a minor is entrusted to dispossess otherwise than by due course of law any person in possession of any of the property.

13. Hearing of evidence before making of order. On the day fixed for the hearing of the application, or as soon afterwards as may be, the Court shall hear such evidence as may be adduced in support of or in opposition to the application.

14. Simultaneous proceedings in different Court.—(1) If proceedings for the appointment or declaration of a guardian of a minor are taken in more Courts than one, each of those Courts shall, on being apprised of the proceedings in the other Court or Courts, stay the proceedings before itself.

(2) If the Courts are both or all subordinate to the same High Court, they shall report the case to the High Court, and the High Court shall determine in which of the Courts the proceedings with respect to the appointment or declaration of a guardian of the minor shall be had.

[1][(3) In any other case in which proceedings are stayed under sub-section (1), the Courts shall report the case to, and be guided by such orders as they may receive from, their respective Provincial Governments.]

15. Appointment or declaration of several guardians.—(1) If the law to which the minor is subject admits of his having two or more joint guardians of his person or property, or both, the Court may, if it thinks fit, appoint or declare them.

[2][2 * * * * *]

(3) Separate guardians may be appointed or declared of the person and of the property of a minor.

(4) If a minor has several properties. Court may, if it thinks fit, appoint or declare a separate guardian for any one or more of the properties.

16. Appointment or declaration of guardian for property beyond jurisdiction of the Court. If the Court appoints or declares a guardian for any property situate beyond the local limits of its jurisdiction, the Court having jurisdiction in the place where the property is situate shall, on production of a certified copy of the order appointing or declaring the guardian, accept him as duly appointed or declared and give effect to the order.

17. Matters to be considered by the Court in appointing guardian.—(1) In appointing or declaring the guardian of a minor, the Court shall, subject to the provisions of this section, be guided by what, consistently with the law to which the minor is subject, appears in the circumstances to be for the welfare of the minor.

(2) In considering what will be for the welfare of the minor, the Court shall have regard to the age, sex and religion of the minor, the character and capacity of the proposed guardian and his nearness of kin to the minor, the wishes, if any, of a deceased parent, and any existing or previous relations of the proposed guardian with the minor or his property.

(3) If the minor is old enough to form an intelligent preference, the Court may consider that preference.

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[1] Subs. by A.O., 1937, for the original sub-section (3).

[2] Omitted by the Federal Laws (Revision and Declaration) Ordinance 1981 (27 of 1981), s. 3 and 2nd Sch.

[1]4 * * * * * *

(5) The Court shall not appoint or declare any person to be a guardian against his will.

18. Appointment or declaration of Collector in virtue of office. Where a Collector is appointed or declared by the Court in virtue of his office to be guardian of the person or property, or both, of a minor, the order appointing or declaring him shall be deemed to authorise and require the person for the time being holding the office to act as guardian of the minor with respect to his person or property, or both, as the case may be.

19. Guardian not to be appointed by the Court in certain cases. Nothing in this Chapter shall authorise the Court to appoint or declare a guardian of the property of a minor whose property is under the superintendence of a Court of Wards, or to appoint or declare a guardian of the person–

(a) of a minor who is a married female and whose husband is not, in the opinion of the Court, unfit to be guardian of her person, or

(b) [1]*** of a minor whose father is living and is not, in the opinion of the Court, unfit to be guardian of the person of the minor, or

(c) of a minor whose property is under the superintendence of a Court of Wards competent to appoint a guardian of the person of the minor.

CHAPTER III
DUTIES, RIGHTS AND LIABILITIES OF GUARDIANS

General

20. Fiduciary relation of guardian to ward.—(1) A guardian stands in a fiduciary relation to his ward, and, save as provided by the will or other instrument, if any, by which he was appointed, or by this Act, he must not make any profit out of his office.

(2) The fiduciary relation of a guardian to his ward extends to and affects purchases by the guardian of the property of the ward, and by the ward of the property of the guardian, immediately or soon after the ward has ceased to be a minor, and generally all transactions between them while the influence of the guardian still lasts or is recent.

21. Capacity of minors to act as guardians. A minor is incompetent to act as guardian of any minor except his own wife or child or, where he is the managing member of an undivided Hindu family, the wife or child of another minor member of that family.

22. Remuneration of guardian.—(1) A guardian appointed or declared by the Court shall be entitled to such allowance, if any, as the Court thinks fit for his care and pains in the execution of his duties.

(2) When an officer of Government, as such officer, is so appointed or declared to be guardian, such fees shall be paid to the Government out of the property of the ward as the [2][provincial Government], by general or special order, directs.

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[1] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.

[2] Subs. by A.O., 1937, for "L. G.".

23. Control of Collector as guardian. A Collector appointed or declared by the Court to be guardian of the person or property, or both, of a minor shall, in all matters connected with the guardianship of his ward, be subject to the control of the [1][provincial Government] or of such authority as that Government, by [2]notification in the official Gazette, appoints in this behalf.

Guardian of the Person

24. Duties of guardian of the person. A guardian of the person of a ward is charged with the custody of the ward and must look to his support, health and education and such other matters as the law to which the ward is subject requires.

25. Title of guardian to custody of ward.—(1) If a ward leaves or is removed from the custody of a guardian of his person, the Court, if it is of opinion that it will be for the welfare of the ward to return to the custody of his guardian, may make an order for his return, and for the purpose of enforcing the order may cause the ward to be arrested and to be delivered into the custody of the guardian.

(2) For the purpose of arresting the ward, the Court may exercise the power conferred on a Magistrate of the first class by section 100 of the [3][Code of Criminal Procedure, 1898] (Act V of 1898).

(3) The residence of a ward against the will of his guardian with a person who is not his guardian does not of itself terminate the guardianship.

26. Removal of ward from jurisdiction.—(1) A guardian of the person appointed or declared by the Court, unless he is the Collector or is a guardian appointed by will or other instrument, shall not, without the leave of the Court by which he was appointed or declared, remove the ward from the limits of its jurisdiction except for such purposes as may be prescribed.

(2) The leave granted by the Court under sub-section (1) may be special or general, and may be defined by the order granting it.

Guardian of Property

27. Duties of guardian of property. A guardian of the property of a ward is bound to deal therewith as carefully as a man of ordinary prudence would deal with it if it were his own, and, subject to the provisions of this Chapter, he may do all acts which are reasonable and proper for the realisation, protection or benefit of the property.

28. Powers of testamentary guardian. Where a guardian has been appointed by will or other instrument, his power to mortgage or charge, or transfer by sale, gift, exchange or otherwise, immoveable property belonging to his ward is subject to any restriction which may be imposed by the instrument, unless he has under this Act been declared guardian and the Court which made the declaration permits him by an order in writing, notwithstanding the restriction, to dispose of any immoveable property specified in the order in a manner permitted by the order.

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[1]Subs. by A.O., 1937, for "L. G.".

[2]For notification appointing authorities to whose control collectors appointed under the act shall be subject, see different local R& O.

[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Code of Civil Procedure, 1882.".

29. Limitation of powers of guardian of property appointed or declared by the Court. Where a person other than a Collector, or than a guardian appointed by will or other instrument, has been appointed or declared by the Court to be guardian of the property of a ward, he shall not, without the previous permission of the Court,—

(a) mortgage or charge, or transfer by sale, gift, exchange or otherwise, any part of the immoveable property of his ward, or

(b) lease any part of that property for a term exceeding five years or for any term extending more than one year beyond the date on which the ward will cease to be a minor.

30. Voidability of transfers made in contravention of section 28 or section 29. A disposal of immoveable property by a guardian in contravention of either of the two last foregoing sections is voidable at the instance of any other person affected thereby.

31. Practice with respect to permitting transfers under section 29.—(1) Permission to the guardian to do any of the acts mentioned in section 29 shall not be granted by the Court except in case of necessity or for an evident advantage to the ward.

(2) The order granting the permission shall recite the necessity or advantage, as the case may be, describe the property with respect to which the act permitted is to be done, and specify such conditions, if any, as the Court may see fit to attach to the permission; and it shall be recorded, dated and signed by the Judge of the Court with his own hand, or when from any cause he is prevented from recording the order with his own hand, shall be taken down in writing from his dictation and be dated and signed by him.

(3) The Court may in its discretion attach to the permission the following among other conditions, namely:—

(a) that a sale shall not be completed without the sanction of the Court;

(b) that a sale shall be made to the highest bidder by public auction, before the Court or some person specially appointed by the Court for that purpose, at a time and place to be specified by the Court, after such proclamation of the intended sale as the Court, subject to any rules made under this Act by the High Court, directs;

(c) that a lease shall not be made in consideration of a premium or shall be made for such term of years and subject to such rents and covenants as the Court directs ;

(d) that the whole or any part of the proceeds of the act permitted shall be paid into the Court by the guardian, to be disbursed therefrom or to be invested by the Court on prescribed securities or to be otherwise disposed of as the Court directs.

(4) Before granting permission to a guardian to do an act mentioned in section 29, the Court may cause notice of the application for the permission to be given to any relative or friend of the ward who should, in its opinion, receive notice thereof, and shall hear and record the statement of any person who appears in opposition to the application.

32. Variation of powers of guardian of property appointed or declared by the Court. Where a guardian of the property of a ward has been appointed or declared by the Court and such guardian is not the Collector, the Court may, from time to time, by order, define, restrict or extend his powers with respect to the property of the ward in such manner and to such extent as it may consider to be for the advantage of the ward and consistent with the law to which the ward is subject.

33. Right of guardian so appointed or declared to apply to the Court for opinion in management of property of ward.—(1) A guardian appointed or declared by the Court may apply by petition to the Court which appointed or declared him for its opinion, advice or direction on any present question respecting the management or administration of the property of his ward.

(2) If the Court considers the question to be proper for summary disposal, it shall cause a copy of the petition to be served on, and the hearing thereof may be attended by, such of the persons interested in the application as the Court thinks tit.

(3) The guardian stating in [1]good faith the facts in the petition and acting upon the opinion, advice or direction given by the Court shall be deemed, so far as regards his own responsibility, to have performed his duty as guardian in the subject matter of the application.

34. Obligations on guardian of property appointed or declared by the Court. Where a guardian of the property of a ward has been appointed or declared by the Court and such guardian is not the Collector, he shall,—

(a) if so required by the Court, give a bond, as nearly as may be in the prescribed form, to the Judge of the Court to ensure for the benefit of the Judge for the time being, with or without sureties, as may be prescribed, engaging duly to account for what he may receive in respect of the property of the ward;

(b) if so required by the Court, deliver to the Court, within six months from the date of his appointment or declaration by the Court or within such other time as the Court directs, a statement of the immovable property belonging to the ward, of the money and other moveable property which he has received on behalf of the ward up to the date of delivering the statement, and of the debts due on that date to or from the ward;

(c) if so required by the Court, exhibit his accounts in the Court at such times and in such form as the Court from time to time directs;

(d) if so required by the Court, pay into the Court at such time as the Court directs the balance due from him on those accounts, or so much thereof as the Court directs; and

(e) apply for the maintenance, education and advancement of the ward and of such persons as are dependent on him, and for the celebration of ceremonies to which the ward or any of those persons may be a party, such portion of the income of the property of the ward as the Court from time to time directs, and, if the Court so directs, the whole or any part of that property.

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[1]For definition of 'good faith', see s. 3(20) of the General Clauses Act, 1897 (10 of 1897).

[1][**34A. Power to award remuneration for auditing accounts.** When accounts are exhibited by a guardian of the property of a ward in pursuance of a requisition made under clause (c) of section 34 or otherwise, the Court may appoint a person to audit the accounts, and may direct that remuneration for the work be paid out of the income of the property.]

35. Suit against guardian where administration bond was taken. Where a guardian appointed or declared by the Court has given a bond duly to account for what he may receive in respect of the property of his ward, the Court may, on application made by petition and on being satisfied that the engagement of the bond has not been kept, and upon such terms as to security, or providing that any money received be paid into the Court, or otherwise as the Court thinks fit, assign the bond to some proper person, who shall thereupon be entitled to sue on the bond in his own name as if the bond had been originally given to him instead of to the Judge of the Court and shall be entitled to recover thereon as trustee for the ward, in respect of any breach thereof.

36. Suit against guardian where administration bond was not taken.—(1) Where a guardian appointed or declared by the Court has not given a bond as aforesaid, any person, with the leave of the Court, may, as next friend, at any time during the continuance of the minority of the ward, and upon such terms as aforesaid, institute a suit against the guardian, or, in case of his death, against his representative, for an account of what the guardian has received in respect of the property of the ward, and may recover in the suit, as trustee for the ward, such amount as may be found to be payable by the guardian or his representative, as the case may be.

[2]* * * * * * *

37. General liability of guardian as trustee. Nothing in either of the two last foregoing sections shall be construed to deprive a ward or his representative of any remedy against his guardian, or the representative of the guardian, which, not being expressly provided in either of those sections, any other beneficiary or his representative would have against his trustee or the representative of the trustee.

Termination of Guardianship

38. Right of survivorship among joint guardians. On the death of one of two or more joint guardians, the guardianship continues to the survivor or survivors until a further appointment is made by the Court.

39. Removal of guardian. The Court may, on the application of any person interested, or of its own motion, remove a guardian appointed or declared by the Court, or a guardian appointed by will or other instrument, for any of the following causes, namely:—

(a) for abuse of his trust;

(b) for continued failure to perform the duties of his trust; (c) for incapacity to perform the duties of his trust;

(d) for ill—treatment, or neglect to take proper care, of his ward;

(e) for contumacious disregard of any provision of this Act or of any order of the Court;

[1]S. 34A ins. by the Guardians and Wards (Amdt.) Act, 1929 (17 of 1929), s. 2.
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.

(f) for conviction of an offence implying, in the opinion of the Court, a defect of character which unfits him to be the guardian of his ward;

(g) for having an interest adverse to the faithful performance of his duties;

(h) for ceasing to reside within the local limits of the jurisdiction of the Court;

(i) in the case of a guardian of the property, for bankruptcy or insolvency;

(j) by reason of the guardianship of the guardian ceasing, or being liable to cease, under the law to which the minor is subject:

Provided that a guardian appointed by will or other instrument, whether he has been declared under this Act or not, shall not be removed—

(a) for the cause mentioned in clause (g) unless the adverse interest accrued after the death of the person who appointed him, or it is shown that that person made and maintained the appointment in ignorance of the existence of the adverse interest, or

(b) for the cause mentioned in clause (h) unless such guardian has taken up such a residence as, in the opinion of the Court, renders it impracticable for him to discharge the functions of guardian.

40. Discharge of guardian.—(1) If a guardian appointed or declared by the Court desires to resign his office, he may apply to the Court to be discharged.

(2) If the Court finds that there is sufficient reason for the application, it shall discharge him, and if the guardian the application is the Collector and the [1][Provincial Government] approves of is applying to be discharged, the Court shall in any case discharge him.

41. Cessation of authority of guardian.—(1) The powers of a guardian of the person cease—

(a) by his death, removal or discharge;

(b) by the Court of Wards assuming superintendence of the person of the ward;

(c) by the ward ceasing to be a minor;

(d) in the case of a female ward, by her marriage to a husband who is not unfit to be guardian of her person or, if the guardian was appointed or declared by the Court, by her marriage to a husband who is not, in the opinion of the Court, so unfit; or,

(e) in the case of a ward whose father was unfit to be guardian of the person of the ward, by the father ceasing to be so or, if the father was deemed by the Court to be so unfit, by his ceasing to be so in the opinion of the Court.

(2) The powers of a guardian of the property cease—

(a) by his death, removal or discharge;

[1]Subs. by A.O., 1937, for "L. G.".

(b) by the Court of Wards assuming superintendence of the property of the ward; or

(c) by the ward ceasing to be a minor.

(3) When for any cause the powers of a guardian cease, the Court may require him or, if he is dead, his representative to deliver as it directs any property in his possession or control belonging to the ward or any accounts in his possession or control relating to any past or present property of the ward.

(4) When he has delivered the property or accounts as required by the Court, the Court may declare him to be discharged from his liabilities save as regards any fraud which may subsequently be discovered.

42. Appointment of successor to guardian dead, discharged or removed. When a guardian appointed or declared by the Court is discharged, or, under the law to which the ward is subject, ceases to be entitled to act, or when any such guardian or a guardian appointed by will or other instrument is removed or dies, the Court, of its own motion or on application under Chapter II, may, if the ward is still a minor, appoint or declare another guardian of his person or property, or both, as the case may be.

CHAPTER IV
SUPPLEMENTAL PROVISIONS

43. Orders for regulating conduct or proceedings of guardians, and enforcement of those orders.—(1) The Court may, on the application of any person interested or of its own motion, make an order regulating the conduct or proceedings of any guardian appointed or declared by the Court.

(2) Where there are more guardians than one of a ward, and they are unable to agree upon a question affecting his welfare, any of them may apply to the Court for its direction, and the Court may make such order respecting the matter in difference as it thinks fit.

(3) Except where it appears that the object of making an order under sub-section (1) or sub-section (2) would be defeated by the delay, the Court shall, before making the order, direct notice of the application therefor or of the intention of the Court to make it, as the case may be, to be given, in a case under sub-section (1), to the guardian or, in a case under sub-section (2), to the guardian who has not made the application.

(4) In case of disobedience to an order made under sub-section (1) or sub-section (2), the order may be enforced in the same manner as an injunction granted under [1][rules 1 and 2 of order

XXXIX of the First Schedule to the Code of Civil Procedure, 1908] (Act V of 1908) in a case under sub-section (1), as if the ward were the plaintiff and the guardian were the defendant or, in a case under sub-section (2), as if the guardian who made the application were the plaintiff and the other guardian were the defendant.

(5) Except in a case under sub-section (2), nothing in this section shall apply to a Collector who is, as such, a guardian.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for certain words.

44. Penalty for removal of ward from jurisdiction.— If, for the purpose or with the effect of preventing the Court from exercising its authority with respect to award, a guardian appointed or declared by the Court removes the ward from the limits of the jurisdiction of the Court in contravention of the provisions of section 26, he shall be liable, by order of the Court, to fine not exceeding one thousand rupees, or to imprisonment in the civil jail for a term which may extend to six months.

45. Penalty for contumacy.—(1) In the following cases, namely:—

(a) if a person having the custody of a minor fails to produce him or cause him to be produced in compliance with a direction under section 12, sub—section (1), or to do his utmost to compel the minor to return to the custody of his guardian in obedience to an order under section 25, sub—section (1), or

(b) if a guardian appointed or declared by the Court fails to deliver to the Court, within the time allowed by or under clause (b) of section 34, a statement required under that clause, or to exhibit accounts in compliance with a requisition under clause (c) of that section, or to pay into the Court the balance due from him on those accounts in compliance with a requisition under clause (d) of that section, or

(c) if a person who has ceased to be a guardian, or the representative of such a person, fails to deliver any property or accounts in compliance with a requisition under section 41, sub-section (3),

the person, guardian or representative, as the case may be, shall be liable, by order of the Court, to fine not exceeding one hundred rupees, and in case of recusancy to further fine not exceeding ten rupees for each day after the first during which the default continues, and not exceeding five hundred rupees in the aggregate, and to detention in the civil jail until he undertakes to produce the minor or cause him to be produced, or to compel his return, or to deliver the statement or to exhibit the accounts, or to pay the balance, or to deliver the property or accounts, as the case may be.

(2) If a person who has been released from detention on giving an undertaking under sub-section (1) fails to carry out the undertaking within the time allowed by the Court, the Court may cause him to be arrested and re-committed to the civil jail.

46. Reports by Collectors and Subordinate Courts.—(1) The Court may call upon the Collector, or upon any Court subordinate to the Court, for a report on any matter arising in any proceeding under this Act and treat the report as evidence.

(2) For the purpose of preparing the report the Collector or the Judge of the Subordinate Court, as the case may be, shall make such inquiry as he deems necessary, and may for the purposes of the inquiry exercise any power of compelling the attendance of a witness to give evidence or produce a document which is conferred on a Court by the l[Code of Civil Procedure, 1908] (Act V of 1908).

47. Orders appealable. An appeal shall lie to the High Court from an order made by a [2]* Court,—

1.Subs. by the Federal Laws (Revision and Declaration) Ordianance, 1981 (27 of 1981, s. 3 and 2nd Sch., for "Code of Civil Procedure".
2. The word "District" rep. by s. 4 of the Guardians and Wards (Amdt.) Act, 1926 (4 of 1926).

(a) under section 7, appointing or declaring or refusing to appoint or declare a guardian; or

(b) under section 9, sub-section (3), returning an application ; or,

(c) under section 25, making or refusing to make an order for the return of a ward to the custody of his guardian; or,

(d) under section 26, refusing leave for the removal of a ward from the limits of the jurisdiction of the Court, or imposing conditions with respect thereto; or,

(e) under section 28 or section 29, refusing permission to a guardian to do an act referred to in the section; or,

(f) under section 32, defining, restricting or extending the powers of a guardian; or, (g) under section 39, removing a guardian; or,

(h) under section 40, refusing to discharge a guardian; or,

(i) under section 43 regulating the conduct or proceedings of a guardian or settling a matter in difference between joint guardians, or enforcing the order; or,

(j) under section 44 or section 45, imposing a penalty [3][:]

[3][provided that, where the order from which an appeal is preferred is passed by an officer subordinate to a District Court, the appeal shall lie to the District Court.]

48. Finality of other orders. Save as provided by the last foregoing section and b [4][section 115 of the Code of Civil Procedure, 1908] (Act V of 1908) an order made under the Act shall be final and shall not be liable to be contested by suit or otherwise.

49. Costs. The costs of any proceeding under this Act, including the costs of maintaining a guardian or other person in the civil jail, shall, subject to any rules made by the High Court under this Act, be in the discretion of the Court in which the proceeding is had.

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50. Power of High Court to make rules.—(1) In addition to any other power to make rules conferred expressly or impliedly by this Act, the High Court may from time to time make rules consistent with this Act—

(a) as to the matters respecting which, and the time at which, reports should be called for from Collectors and Subordinate Courts ;

(b) as to the allowances to be granted to, and the security to be required from, guardians, and the cases in which such allowances should be granted;

(c) as to the procedure to be followed with respect to applications of guardians for permission to do acts referred to in sections 28 and 29 ;

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Code of Civil Procedure".

[2]The word "District" rep. by s. 4 of the Guardians and Wards (Amdt.) Act, 1926 (4 of 1926).

[3]Subs. and added by the Guardians and Wards (Amdt.) Ordinance, 1980 (11 of 1980), s. 2.

[4]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981, (27 of 1981), s. 3 and 2nd Sch., for "section 622 of the Code of Civil Procedure".

(d) as to the circumstances in which such requisitions as are mentioned in clauses (a), (b), (c) and (d) of section 34 should be made;

(e) as to the preservation of statements and accounts delivered and exhibited by guardians;

(f) as to the inspection of those statements and accounts by persons interested;

[1][(ff) as to the audit of accounts under section 34A, the class of persons who should be appointed to audit accounts, and the scales of remuneration to be granted to them;]

(g) as to the custody of money, and securities for money, belonging to wards;

(h) as to the securities on which money belonging to wards may be invested;

(i) as to the education of wards for whom guardians, not being Collectors, have been appointed or declared by the Court; and,

(j) generally, for the guidance of the Courts in carrying out the purposes of this Act.

(2) Rules under clauses (a) and (i) of sub-section (1) shall not have effect until they have been approved by the [2][provincial Government], nor shall any rule under this section have effect until it has been published in the official Gazette.

51. [Applicability of Act to guardians already appointed by Court.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II.

52. [Amendment of Indian Majority Act.] Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Schedule.

53. [Amendment of Chapter XXXI of the Code of Civil Procedure.] Rep. by the Code of Civil Procedure, 1908 (V of 1908), s. 156 and Schedule V.

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THE SCHEDULE.—[ENACTMENTS REPEALED.] Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Schedule.

[1]Clause (ff) ins. by the Guardians and Wards (Amdt.) Act, 1929 (17 of 1929), s. 3.
[2]Subs. by A.O., 1937, for "L. G."

THE DOWRY AND BRIDAL GIFTS (RESTRICTION) ACT, 1976

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THE DOWRY AND BRIDAL GIFTS (RESTRICTION) ACT, 1976

[1]ACT No. XLIII OF 1976

[*4th June, 1976*]

An Act to provide for restrictions on dowry and bridal gifts.

WHEREAS it is expedient to provide for restrictions on dowry and bridal gifts and for matters connected therewith or ancillary thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Dowry and Bridal Gifts (Restriction) Act, 1976.

(2) It extends to the whole of Pakistan and applies to all citizens of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,

(a) "bridal gift" means any property given as a gift before, at or after the marriage, either directly or indirectly, by the bridegroom or his parents to the bride in connection with the marriage but does not include *Mehr*;

(b) "dowry" means any property given before, at or after the marriage, either directly or indirectly, to the bride by her parents in connection with the marriage but it does not include property which the bride may inherit under the laws of inheritance and succession applicable to her;

(c) "marriage" includes betrothal, *nikah* and *rukhsati*;

(d) "parents" includes the guardian of a party to a marriage and any person who provides for dowry or bridal gifts and, in the case of a party to a marriage who has no parent, or whose marriage is solemnized in circumstances in which, or at a place at which, no parent is present, such party;

(e) "present" means a gift of any property not being a bridal gift or dowry, given before, at or after the marriage, either directly or indirectly, to either party to a marriage in connection with the marriage or to the relatives of the bride or bridegroom but does not include *neundra and salami*;

(f) "property" means property, both moveable and immoveable, and includes any valuable security as defined in the Pakistan Penal Code (Act XLV of 1860); and

[1] For Statement of Objects and Reasons, *see* Gaz., of P., 1976. Ext., Pt. 111. p. 460

(g) "Registrar" means a *Nikah* Registrar licensed under the Muslim Family Laws Ordinance, 1961(VIII of 1961.) and such other person as may be designated from time to time to perform the functions of the Registrar.

3. Restriction on dowry, presents and bridal gifts.—(1) Neither the aggregate value of the dowry and presents given to the bride by Her parents nor the aggregate value of the bridal gifts or of the presents given to the bridegroom shall exceed five thousand rupees:

Explanation.—The ceiling of five thousand rupees specified in this sub-section does not in any way imply that the dowry, bridal gifts and presents of a lesser amount may not be given.

[1][(lA) No person shall give or accept, or enter into an agreement to give or to accept dowry, bridal gifts or presents of a value exceeding the aggregate value specified in sub- section (1).]

[2][(2) No dowry, bridal gifts or presents may be given before six months or after one month of *nikah* and, if r*ukhsati* takes place some time after *nikah* after one month of such *rukhsati*].

4. Restriction on presents. No person shall give to either party to the marriage any present the value of which exceeds one hundred rupees:

Provided that the limit of one hundred shall not applv to the presents give to the bridegroom by the parents of the bride under sub-section (1) of section 3:

Provided further that the President, the Prime Minister, Federal Minister, Chief Minister, Minister of State, Adviser, Governor, Speaker, Deputy Speaker, the Chairman or the Deputy Chairman of the Senate, Parliamentary Secretary, Member of the Senate, National Assembly or Provincial Assembly, Government servant or an official serving in any corporation industry or establishment owned, controlled or managed by Government shall not receive any present in connection with his marriage or the marriage of his son or daughter except from his relations (khandan):

Provided further that this restriction shall not apply to a Government servant or official serving in the scale below National Pay Scale 17 not exercising in any manner judicial revenue or executive authority.

5. Vesting of dowry etc., in the bride. All property given as dowry or bridal gifts and all property given to the bride as a present shall vest absolutely in the bride and her interest in property however derived shall hereafter not be restrictive, conditional or limited.

6. Expenditure on marriage. The total expenditure on a marriage, excluding the value of dowry, bridal gifts and presents, but including the expenses on *menhdi*, *barat* and *valima*, incurred by or on behalf of either party to the marriage shall not exceed two thousand and five hundred rupees.

7. [*Display of Dowry etc.*] *Omitted by the Dowry and Bridal Gifts (Restriction) (Amdt.) Ordinance, 1980 (XXXVI of 1980), s. 3.*

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[1] Ins. by the Dowry and Bridal (lifts (Restriction) (Amdt.) Ordinance, 1980 (36 of 1980), s. 2".

[2] Subs. *ibid*.

[1]**[8. Declaration regarding expenditure to be submitted to Registrar.**—(1) The father of the bridegroom or any other person who arranges the marriage shall, within fifteen days of the expiry of the period fixed under sub-section (2) of section 3 for giving dowry, bridal gifts and presents, submit a declaration to the Registrar solemnly affirming that the total expenditure oh the marriage including dowry, bridal gifts, presents and-entertainments did not exceed the limits laid down in this Act.

(2) The Registrar shall forward the declaration submitted under sub-section (1) to the Deputy Commissioner within fifteen days of receipt of such declaration.

8A. Complaints against violation of the Act. If any person attending a marriage ceremony is satisfied that the provisions of this Act or the rules made thereunder have been contravened in respect of such ceremony, he may submit a complaint, giving full particulars of the contravention, to the Deputy Commissioner].

9. Penalty and procedure.—(1) Whoever contravenes, or fails to comply with, any provision of this Act or the rules made thereunder shall be punishable with imprisonment of either description for a term which may extend to six months, or with fine [2][which shall not be less than the amount proved to have been spent in excess of the maximum limits laid down in this Act], or with both, and the dowry, bridal gifts or presents given or accepted in contravention of the provisions of this Act shall be forfeited to the Federal Government to be utilized for the marriage of poor girls in such a way as may be prescribed by rules made under this Act:

Provided that if both the parents of a party to the marriage contravene, or fail to comply with, any provision of this Act or the rules made thereunder, action under this section shall be taken only against the father:

Provided further that if the parent who contravenes, or fails to comply with, any provision of this Act or the rules made thereunder is a female, shall be punishable with fine only.

(2) Any offence punishable under this Act shall be triable only by a Family Court established under the West Pakistan Family Courts Act, 1964(W.P. Act No. XXXV of 1964).

(3) No Family Court shall take cognizance of an offence punishable under this Act except upon a complaint in writing made by, or under the authority of, the Deputy Commissioner within [3][three] months from the date of *nikah*, and if *rukhsati* takes place some time after *nikah*, from the date of such *rukhsati*.

(4) While trying an offence punishable under this Act, a Family Court shall follow the procedure prescribed by the Code of Criminal Procedure, 1898 (Act V of 1898), for the trial of offences by Magistrates.

[4][**10. Power to make rules.** The Federal Government, in respect of the Islamabad Capital Territory, and a Provincial Government, in Tespect of the Province, may, by notification in the official Gazette, make rules for carrying out the purposes of this Act].

11. [*Repeal*]. *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sen., II.*

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[1] Subs. by the Dowry and Bridal Gifts (Restriction) (Amdt.) Ordinance, 1980 (36 of 1980), s. 4.

[2] Subs. ibid., s.5.

[3] Subs. by the Dowry and Bridal Gifts (Restriction) (Amdt.) Ordinance, 1980 (36 of 1980), s. 5.

[4] Subs. ibid., s. 6.

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SCHEDULE OF FORMS

THE PAKISTAN CODE

THE DIVORCE ACT

ACT No. IV OF 1869

[*26th February*, 1869]

An Act to amend the law relating to Divorce and Matrimonial Causes [1][* *]

Preamble. WHEREAS it is expedient to amend the law relating to the divorce of persons professing the Christian religion, and to confer upon certain Courts jurisdiction in matters matrimonial ; It is hereby enacted as follows :—

I.—PRELIMINARY

1. **Short title. Commencement of Act.** This Act may be called the [1][*] Divorce Act, and shall come into operation on the first day of April, 1869.

2. Extent of Act. [2][This Act extends to the whole of Pakistan.]

Extent of power to grant relief generally, and to make decrees of dissolution, or of nullity. [3][Nothing hereinafter contained shall authorise any Court to grant any relief under this Act except where the petitioner [4][or respondent] professes the Christian religion,

or to make decrees of dissolution of marriage except where the parties to the marriage are domiciled in [1][Pakistan] at the time when the petition is presented,

[5][or to make decrees of nullity of marriage except where the marriage if solemnized before the 15th day of August, 1947, has been solemnized in India and if solemnized on or after that date has been solemnized in Pakistan and the petitioner is resident in Pakistan at the time of presenting the petition.]

or to grant any relief under this Act, other than a decree of dissolution of marriage or of nullity of marriage, except where the petitioner resides in [1][Pakistan] at the time of presenting the petition.]

3. Interpretation-clause. In this Act, unless there be something repugnant in the subject or context,—

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[6][[7][* * * * * * *]

(2) '**Court of Civil Judge'.** "Court of Civil Judge" means, in the case of any petition under this Act, the Court of the Civil Judge within the local limits of whose ordinary jurisdiction the husband and wife reside or last resided together ;

(3) '**Court'.** "Court" means the High Court, the District Court or the Court of Civil Judge, as the case may be ;]]

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[1]Omitted by A. O., 1949, Sch.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and Sch. 2 (w. e. f. the 14th October, 1955).
[3]Subs. by Act No. XXV of 1926.
[4]Ins. by Act No. XXX of 1927, s. 2.
[5]Subs. by Act No. LVII of 1950, s. 2. (w. e. f. 15th day of August, 1947).
[6]Subs. by Act, 1975 (Act No. IV of 1976), s. 2.
[7]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3, Sch. II

(5) "**Minor children".** "minor children" means, in the case of sons of [1][Pakistani] fathers, boys who have not completed the age of sixteen years, and, in the case of daughters of [1][Pakistani] fathers, girls who have not completed the age of thirteen years : in other cases it means unmarried children who have not completed the age of eighteen years :

(6) **"Incestuous adultery".** "incestuous adultery" means adultery committed by a husband with a woman with whom, if his wife were dead, he could not lawfully contract marriage by reason of her being within the prohibited degrees of consanguinity (whether natural or legal) or affinity :

(7) "**Bigamy with adultery**"**.** "bigamy with adultery" means adultery with the same woman with whom the bigamy was committed :

(8) "**Marriage with another woman**"**.** "marriage with another woman'' means marriage of any person, being married, to any other person, during the life of the former wife, whether the second marriage shall have taken place within [2][Pakistan] or elsewhere :

(9) "**Desertion."** "desertion" implies an abandonment against the wish of the person charging it : and

(10) "**Property."** "property" includes, in the case of a wife, any property to which she is entitled for an estate in remainder or reversion, or as a trustee, executrix or administratrix ; and the date of the death of the testator or intestate shall be deemed to be the time at which any such wife becomes entitled as executrix or administratrix.

II.—JURISDICTION

4. [*Matrimonial Jurisdiction of High Courts to be exercised subject to Act.*] *Omitted by the Divorce (Amdt.) Act,* 1975 *(IV of I976), s.* 3.

5. [*Enforcement of decrees or orders made heretofore by Supreme or High Court.*] *Omitted by the Divorce (Amdt.) Act*, 1975 *(IV of* 1976) *s.* 4.

6. [*Pending suits.*] *Omitted by the Divorce (Amdt.) Act,* 1975 *(IV of* 1976), *s.* 4.

7. [*Court to act on principles of English Divorce Court.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), *s.* 3 *and II Sch.*

8. [*Extraordinary Jurisdiction of High Court.*] *Omitted by the Divorce (Amdt.) Act,* 1975 (*IV of* 1976), *s.* 6.

9. [*Reference to High Court.*] *Omitted by the Divorce* (*Amdt.*) *Act,* 1975 (*IV of* 1976), *s.*7.

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[1]Subs. by Act, 1975 (Act No. IV of 1976), s. 2.
[2]Subs. by the Central Laws (Adaptation) Order, 1961 (President's Order No. 1 of 1961), Art. 2 and Sch., (*w. e. f.* 23 March, 1956).

THE PAKISTAN CODE

III.—DISSOLUTION OF MARRIAGE

10. When husband may petition for dissolution. Any husband may present a petition to the [1][Court of Civil Judge] praying that his marriage may be dissolved on the ground that this wife has, since the solemnization thereof, been guilty of adultery.

When wife may petition for dissolution. Any wife may present a petition to the [1][Court of Civil Judge] praying that her marriage may be dissolved on the ground that, since the solemnization thereof, her husband has exchanged his profession of Christianity for the profession of some other religion, and gone through a form of marriage with another woman ;

or has been guilty of incestuous adultery.

or of bigamy with adultery.

or of marriage with another woman with adultery.

or of rape, sodomy or bestiality.

or of adultery coupled with such cruelty as without adultery would have entitled her to a divorce a *mensa et toro.*

or of adultery coupled with desertion, without reasonable excuse, for two years or upwards.

Contents of petition. Every such petition shall state, as distinctly as the nature of the case permits, the facts on which the claim to have such marriage dissolved is founded.

11. Adulterer to be co-respondent. Upon any such petition presented by a husband, the petitioner shall make the alleged adulterer a co-respondent to the said petition, unless he is excused from so doing on one of the following grounds, to be allowed by the Court :—

(1) that the respondent is leading the life of a prostitute, and that the petitioner knows of no person with whom the adultery has been committed ;

(2) that the name of the alleged adulterer is unknown to the petitioner although he has made due efforts to discover it ;

(3) that the alleged adulterer is dead.

12. Court to be satisfied of absence of collusion. Upon any such petition for the dissolution of a marriage, the Court shall satisfy itself, so far as it reasonably can, not only as to the facts alleged, but also whether or not the petitioner has been in any manner accessory to, or conniving at, the going through of the said form of marriage, or the adultery, or has condoned the same, and shall also inquire into any countercharge which may be made against the petitioner.

13. Dismissal of petition. In case the Court, on the evidence in relation to any such petition, is satisfied that the petitioner's case has not been proved, or is not satisfied that the alleged adultery has been committed,

or finds that the petitioner has, during the marriage, been accessory to, or conniving at, the going through of the said form of marriage, or the adultery of the other party to the marriage, or has condoned the adultery complained of,

or that the petition is presented or prosecuted in collusion with either of the respondents.

then and in any of the said cases the Court shall dismiss the petition.

[1][* * * * * * *]

[1]Subs. and omitted by Act, 1975 (Act No. IV of 1976), ss. 8 and 9.

14. Power to Court to pronounce decree for dissolving marriage. In case the Court is satisfied on the evidence that the case of the petitioner has been proved,

and does not find that the petitioner has been in any manner accessory to, or conniving at, the going through of the said form of marriage, or the adultery of the other party to the marriage, or has condoned the adultery complained of,

or that the petition is presented or prosecuted in collusion with either of the respondents.

the Court shall pronounce a decree declaring such marriage to be dissolved [1][* * *]

Provided that the Court shall not be bound to pronounce such decree if it finds that the petitioner has, during the marriage, been guilty of adultery,

or if the petitioner has, in the opinion of the Court, been guilty of unreasonable delay in presenting or prosecuting such petition,

or of cruelty towards the other party to the marriage,

or of having deserted or wilfully separated himself or herself from the other party before the adultery complained of, and without reasonable excuse.

or of such wilful neglect or misconduct of or towards the other party as has conduced to the adultery.

Condonation. No adultery shall be deemed to have been condoned within the meaning of this Act unless where conjugal co-habitation has been resumed or continued.

15. Relief in case of opposition on certain grounds. In any suit instituted for dissolution of marriage, if the respondent opposes the relief sought on the ground, in case of such a suit instituted by a husband, of his adultery, cruelty or desertion without reasonable excuse, or, in case of such a suit instituted by a wife, on the ground of her adultery and cruelty, the Court may in such suit give to the respondent, on his or her application, the same relief to which he or she would have been entitled in case he or she had presented a petition seeking such relief, and the respondent shall be competent to give evidence of or relating to such cruelty or desertion.

16. [*Decrees for dissolution to be nisi.*] *Omitted by the Divorce (Amdt.) Act,* 1975 (*IV of* 1976), *s.* 11.

17. [*Confirmation of decree for dissolution by District Judge.*] *Omitted by the Divorce (Amdt.) Act* 1975 *(IV of* 1976), *s.* 11.

17A. [*Appointment of officer to exercise duties of King's Proctor.*] *Omitted by the Divorce (Amdt.) Act.* 1975 *(IV of* 1976), *s.* 11.

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[1]Omitted by Act, 1975 (Act No. IV of 1976), s. 10.

THE PAKISTAN CODE

IV.— NULLITY OF MARRIAGE

18. Petition for decree of nullity. Any husband or wife may present a petition to the [1][Court of Civil Judge], praying that his or her marriage may be declared null and void.

19. Grounds of decrees. Such decree may be made on any of the following grounds :—

(1) that the respondent was impotent at the time of the marriage and at the time of the institution of the suit ;

(2) that the parties are within the prohibited degrees of consanguinity (whether natural or legal) or affinity ;

(3) that either party was a lunatic or idoit at the time of the marriage ;

(4) that the former husband or wife of either party was living at the time of the marriage, and the marriage with such former husband or wife was then in force.

Nothing in this section shall affect the jurisdiction of the [1][Court] to make decrees of nullity of marriage on the ground that the consent of either party was obtained by force or fraud.

20. [*Confirmation of District Judge's decree.*] *Omitted by the Divorce (Amdt.) Act,* 1975. *(IV of* 1976), *s.* 14.

21. Children of annulled marriage. Where a marriage is annulled on the ground that a former husband or wife was living, and it is adjudged that the subsequent marriage was contracted in good faith and with the full belief of the parties that the former husband or wife was dead, or when a marriage is annulled on the ground of insanity, children begotten before the decree is made shall be specified in the decree, and shall be entitled to succeed, in the same manner as legitimate children, to the estate of the parent who at the time of the marriage was competent to contract.

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V.—JUDICIAL SEPARATION

22. Bar to decree for divorce a *mensa et toro* but judicial separation obtainable by husband or wife. No decree shall hereafter be made for a divorce a *mensa et toro,* but the husband or wife may obtain a decree of judicial separation, on the ground of adultery, or cruelty, or desertion without reasonable excuse for two years or upwards, and such decree shall have the effect of a divorce a *mensa et toro* under the existing law, and such other legal effect as hereinafter mentioned.

23. Application for separation made by petition. Application for judicial separation on any one of the grounds aforesaid may be made by either husband or wife by petition to the [1][Court of Civil Judge] and the Court, on being satisfied of the truth of the statements made in such petition, and that there is no legal ground why the application should not be granted, may decree judicial separation accordingly.

24. Separated wife deemed spinster with respect to after-acquired property. In every case of a judicial separation under this Act, the wife shall, from the date of the sentence, and whilst the separation continues, be considered as unmarried with respect to property of every description which she may acquire, or which may come to or devolve upon her.

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[1]Subs. by Act, 1975 (Act No. IV of 1976), ss. 12, 13 and 15.

Such property may be disposed of by her in all respects as an unmarried woman, and on her decease the same shall, in case she dies intestate, go as the same would have gone if her husband had been then dead :

Provided that, if any such wife again cohabits with her husband, all such property as she may be entitled to when such cohabitation takes place shall be held to her separate use, subject, however, to any agreement in writing made between herself and her husband whilst separate.

25. Separated wife deemed spinster for purposes of contract and suing. In every case of a judicial separation under this Act, the wife shall whilst so separated, be considered as an unmarried woman for the purposes of contract, and wrongs and injuries, and suing and being sued in any civil proceeding ; and her husband shall not be liable in respect of any contract, act or costs entered into, done, omitted or incurred by her during the separation :

Provided that where, upon any such judicial separation, alimony has been decreed or ordered to be paid to the wife, and the same is not duly paid by the husband, he shall be liable for necessaries supplied for her use :

Provided also that nothing shall prevent the wife from joining, at any time during such separation, in the exercise of any joint power given to herself and her husband.

REVERSAL OF DECREE OF SEPARATION

26. Decree of separation obtained during absence of husband or wife may be reversed. Any husband or wife, upon the application of whose wife or husband, as the case may be, a decree of judicial separation bas been pronounced, may, at any time thereafter, present a petition to the Court by which the decree was pronounced, praying for a reversal of such decree, on the ground that it was obtained in his or her absence, and that there was reasonable excuse for the alleged desertion, where desertion was the ground of such decree.

The Court may, on being satisfied of the truth of the allegations of such petition, reverse the decree accordingly ; but such reversal shall not prejudice or affect the rights or remedies which any other person would have had, in case it had not been decreed, in respect of any debts, contracts or acts of the wife incurred, entered into or done between the times of the sentence of separation and of the reversal thereof.

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VI.—PROTECTION-ORDERS

27. Deserted wife may apply to Court for protection. Any wife to whom section 4 of the Indian Succession Act, 1865,[1] (X of 1865), does not apply, may, when deserted by her husband, present a petition to the [2][Court of Civil Judge] at any time after such desertion, for an order to protect any property which she may have acquired or may acquire, and any property of which she may have become possessed or may become possessed after such desertion, against her husband or his creditors, or any person claiming under him.

28. Court may grant protection-order. The Court, if satisfied of the fact of such desertion, and that the same was without reasonable excuse, and that the wife is maintaining herself by her own industry or property, may make and give to the wife an order protecting her earnings and other property from her husband and all creditors and persons claiming under him. Every such order shall state the time at which the desertion commenced, and shall, as regards all persons dealing with the wife in reliance thereon, be conclusive as to such time.

[1]Succession Act, 1925 (Act No. XXXIX of 1925).
[2]Subs. by Act, 1975 (Act No. IV of 1976), s. 15.

29. Discharge or variation of orders. The husband or any creditor of, or person claiming under him, may apply to the Court by which such order was made for the discharge or variation thereof, and the Court, if the desertion has ceased, or if for any other reason it think fit so to do, may discharge or vary the order accordingly.

30. Liability of husband seizing wife's property after notice of order. If the husband, or any creditor of, or person claiming under, the husband, seizes or continues to hold any property of the wife after notice of any such order, he shall be liable, at the suit of the wife (which she is hereby empowered to bring), to return or deliver to her the specific property, and also to pay her a sum equal to double its value.

31. Wife's legal position during continuance of order. So long as any such order of protection remains in force, the wife shall be and be deemed to have been, during such desertion of her, in the like position in all respects, with regard to property and contracts and suing and being sued, as she would be under this Act if she obtained a decree of judicial separation.

VII.—RESTITUTION OF CONJUGAL RIGHTS

32. Petition for restitution of conjugal rights. When either the husband or the wife has, wothout reasonable excuse withdrawn from the society of the other, either wife or husband may apply, by petition to the [1][Court of Civil Judge], for restitution of conjugal rights, and the Court, on being satisfied of the truth of the statements made in such petition, and that there is no legal ground why the application should not be granted, may decree restitution of conjugal rights accordingly.

33. Answer to petition. Nothing shall be pleaded in answer to a petition for restitution of conjugal rights which would not be ground for a suit for judicial separation or for a decree of nullity of marriage.

VIII.—DAMAGES AND COSTS

34. Husband may claim damages from adulterer. Any husband may, either in a petition for dissolution of marriage or for judicial separation, or in a petition to the [1][Court of Civil Judge] limited to such object only, claim damages from any person on the ground of his having committed adultery with the wife of such petitioner.

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Such petition shall be served on the alleged adulterer and the wife unless the Court dispenses with such service, or directs some other service to be substituted.

The damages to be recoverd on any such petition shall be ascertained by the said Court, although the respondents or either of them may not appear.

After the decision has been given, the Court may direct in what manner such damages shall be paid or applied.

35. Power to order adulterer to pay costs. Whenever in any petition presented by a husband, the alleged adulterer has been made a co-respondent, and the adultery has been established, the Court may order the co-respondent to pay the whole or any part of the cost of the proceedings :

Provided that the co-respondent shall not be ordered to pay the petitioner's cost —

[1]Subs. by Act, 1975 (Act No. IV of 1976), s. 15.

(1) if the respondent was, at the time of the adultery, living apart from her husband and leading the life of a prostitute, or

(2) if the co-respondent had not, at the time of the adultery, reason to believe the respondent to be a married woman.

[1][* * * * * * *]

IX.—ALIMONY

36. Alimony *pendente lite*. In any suit under this Act, whether it be instituted by a husband or a wife, and whether or not she has obtained an order of protection, the wife may present a petition for alimony pending the suit.

Such petition shall be served on the husband ; and the Court, on being satisfied of the truth of the statements therein contained, may make such order on the husband for payment to the wife of alimony pending the suit as it may deem just :

Provided that alimony pending the suit shall in no case exceed one-fifth of the husband's average net income for the three years next preceding the date of the order, and shall continue, in case of a decree for dissolution of marriage or of nullity of marriage, until the decree is made absolute or is confirmed, as the case may be.

37. Power to order permanent alimony.[1][* * * * * * *]

[1][* * * * * * *]

[1][The Court may, if it thinks fit, on any decree declaring a marriage to be dissolved or on any decree of judicial separation obtained by the wife, order] that the husband shall, to the satisfaction of the Court, secure to the wife such gross sum of money, or such annual sum of money for any term not exceeding her own life, as having regard to her fortune (if any), to the ability of the husband, and to the conduct of the parties, it thinks reasonable, and for that purpose may cause a proper instrument to be executed by all necessary parties.

Power to order monthly or weekly payments. In every such case the Court may make an order on the husband for payment to the wife of such monthly or weekly sums for her maintenance and support as the Court may think reasonable :

Provided that if the husband afterwards from any cause becomes unable to make such payments, it shall be lawful for the Court to discharge or modify the order, or temporarily to suspend the same as to the whole or any part of the money so ordered to be paid, and again to revive the same order wholly or in part, as to the Court seems fit.

38. Court may direct payment of alimony to wife or to her trustee. In all cases in which the Court makes any decree or order for alimony it may direct the same to be paid either to the wife herself, or to any trustee on her behalf to be approved by the Court, and may impose any terms or restrictions which to the Court seem expedient, and may from time to time appoint a new trustee, if it appears to the Court expedient so to do.

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[1]Omitted and subs. by Act, 1975 (Act No. IV of 1976), s. 16, 17 (a) and (b).

X.—SETTLEMENTS

39. Power to order settlement of wife's property for benefit of husband and children. Whenever the Court pronounces a decree of dissolution of marriage or judicial separation for adultery of the wife, if it is made to appear to the Court that the wife is entitled to any property, the Court may, if it think fit, order such settlement as it thinks reasonable to be made of such property or any part thereof, for the benefit of the husband, or of the children of the marriage, or of both.

Any instrument executed pursuant to any order of the Court at the time of or after the pronouncing of a decree of dissolution of marriage or judicial separation shall be deemed valid notwithstanding the existence of the disability of coverture at the time of the execution thereof.

Settlement of damages. The Court may direct that the whole or any part of the damages recovered under section 34 shall be settled for the benefit of the children of the marriage, or as a provision for the maintenance of the wife.

40. Inquiry into existence of ante-nuptial or post-nuptial settlements.

[1][* * * * * * *]

[1][* * * * * * *]

[1][The Court, after making a decree for dissolution of marriage or a decree of nullity of marriage, may] inquire into the existence of ante-nuptial or post-nuptial settlements made on the parties whose marriage is the subject of the decree, and may make such orders, with reference to the application of the whole or a portion of the property settled, whether for the benefit of the husband or the wife, or of the children (if any) of the marriage, or of both children and parents, as to the Court seems fit :

Provided that the Court shall not make any order for the benefit of the parents or either of them at the expense of the children.

XI.—CUSTODY OF CHILDREN

41. Power to make orders as to custody of children in suit for seperation. In any suit for obtaining a judicial separation the Court may from time to time, before making its decree, make such interim orders, and may make such provision in the decree, as it deems proper with respect to the custody, maintenance and education of the minor children, the marriage of whose parents is the subject of such suit, and may, if it thinks fit, direct proceedings to be taken far placing such children under the protection of the said Court.

42. Power to make such orders after decree. The Court, after a decree of judicial separation, may upon application (by petition) far this purpose make, from time to time, all such orders and provision, with respect to the custody, maintenance and education of the minor children, the marriage of whose parents is the subject of the decree, or for placing such children under the protection of the said Court, as might have been made by such decree or by interim orders in case the proceedings far obtaining such decree were still pending.

[1]**[43.** ***Power to make orders as to custody of children in suits for dissolution or nullity.—*** In any suit for obtaining a dissolution of marriage or a decree of nullity of marriage, the Court may from time to time, before making its decree, make such interim orders, and may make such provision in the decree, as it deems proper with respect to the custody, maintenance and education of the minor children, the marriage of whose parents is the subject of the suit ; and may, if it thinks fit, direct proceedings to be taken far placing such children under the protection of the Court.].

[1]Omitted and subs. by Act, 1975 (Act No. IV of 1976), ss. 18 (a) and (b) and 19.

[1]**[44.** ***Power to make such orders after decree.*****—**The Court, after a decree for dissolution of marriage or a decree of nullity of marriage, may, upon application by petition for the purpose, make from time to time all such orders and provision, with respect to the custody, maintenance and education of the minor children, the marriage of whose parents was the subject of the decree, or for placing such children under the protection of the Court, as might have been made by such decree or by such interim orders as aforesaid.].

XII.—PROCEDURE

45. Code of Civil Procedure to apply. Subject to the provisions herein contained, all proceedings under this Act between party and party shall be regulated by the Code of Civil Procedure[2].

46. Forms of petitions and statements. The forms set forth in the Schedule to this Act, with such variation as the circumstances of each case require, may be used for the respective purposes mentioned in such schedule.

47. Stamp on petition. Petition to state absence of collusion. Every petition under this Act for a decree of dissolution of marriage or of nullity of marriage, or of judicial separation [3][* * *] shall [3][* * *] state that there is not any collusion or connivance between the petitioner and the other party to the marriage ;

Statements to be verified. the statements contained in every petition under this Act shall be verified by the petitioner or some other competent person in manner required by law for the verification of plaints, and may at the hearing be referred to as evidence.

48. Suits on behalf of lunatics. When the husband or wife is a lunatic or idiot, any suit under this Act (other than a suit for restitution of conjugal rights) may be brought on his or her behalf by the committee or other person entitled to his or her custody.

49. Suits by minors. Where the petitioner is a minor, he or she shall sue by his or her next friend to be approved by the Court ; and no petition presented by a minor under this Act shall be filed until the next friend has undertaken in writing to be answerable for costs.

Such undertaking [3][* * *] shall be filed in Court, and the next friend shall thereupon be liable in the same manner and to the same extent as if he were a plaintiff in an ordinary suit.

50. Service of petition. Every petition under this Act shall be served on the party to be affected thereby, either within or without [4][Pakistan], in such manner as the High Court by general or special order from time to time directs :

Provided that the Court may dispense with such service altogether in case it seems necessary or expedient so to do.

51. Mode of taking evidence. The witnesses in all proceedings before the Court, where their attendance can be had, shall be examined orally, and any party may offer himself or herself as a witness, and shall be examined and may be cross-examined and re-examined, like any other witness :

Provided that the parties shall be at liberty to verify their respective cases in whole or in part by affidavit, but so that the deponent in every such affidavit shall, on the application of the opposite party, or by direction of the Court, be subject to be cross examined by or on behalf of the opposite party orally, and after such cross-examination may be re-examined orally as aforesaid by or on behalf of the party by whom such affidavit was filed.

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[1]Subs. by Act, 1975 (Act No. IV of 1976), s. 20.
[2]Code of Civil Procedure Act, 1908 (V of 1908).
[3]Rep. by the Court-Fees Act, 1870 (VII of 1870), see now Art. 7 of Sch. II to that Act.
[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s.3 and Sch. II (w. e. f. the 14th October, 1955).

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52. Competence of husband and wife to give evidence as to cruelty or desertion. On any petition presented by a wife, praying that her marriage may be dissolved by reason of her husband having been guilty of adultery coupled with cruelty, or of adultery coupled with desertion without reasonable excuse, the husband and wife respectively shall be competent and compellable to give evidence of or relating to such cruelty or desertion.

53. Power to close doors. The whole or any part of any proceeding under this Act may be heard, if the Court thinks fit, with closed doors.

54. Power to adjourn. The Court may from time to time adjourn the hearing of any petition under this Act, and may require further evidence thereon if it sees fit so to do.

55. Enforcement of and appeal from orders and decrees. All decrees and orders made by the Court in any suit or proceeding under this Act shall be enforced and may be appealed[1] from, in the like manner as the decrees and orders of the Court made in the exercise of its original civil jurisdiction are enforced and may be appealed from under the laws, rules and orders for the time being in force :

[2][* * * * * * *]

No appeals as to costs. Provided [2][*] that there shall be no appeal on the subject of costs only.

56. [*Appeal to Supreme Court.*] *Omitted by the Divorce (Amdt.) Act,* 1975 *(IV of 1976), s.* 22.

XIII.—RE-MARRIAGE

[2]**[57. *Liberty to parties to marry again.*—** After the expiry of six months from the date of a decree for the dissolution of a marriage, or, where an appeal has been presented against any such decree, after the dismissal of such appeal or the declaration of the marriage as dissolved as a result of such appeal, but not sooner, it shall be lawful for the parties to the marriage to marry again as if the prior marriage had been dissolved by death].

58. English clergyman not compelled to solemnize marriages of persons divorced for adultery. No clergyman in Holy Orders of the [3][*] Church of England [3][* *] shall be compelled to solemnize the marriage of any person whose former marriage has been dissolved on the ground of his or her adultery, or shall be liable to any suit, penalty or censure for solemnizing or refusing to solemnize the marriage of any such person.

59. English minister refusing to perform ceremony to permit use of his church. When any minister of any church or chapel of the said [3][*] Church refuses to perform such marriage service between any persons who, but for such refusal would be entitled to have the same service performed in such church or chapel, such minister shall permit any other minister in Holy Orders of the said Church entitled to officiate within the diocese in which such church or chapel is situate, to perform such marriage service in such church or chapel.

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[1]The Court Fees Act, 1870 (Act No. 1870), Art. 7. Sch. II
[2]Omitted and subs. by Act, 1975 (Act No. IV of 1976), ss. 21 and 23.
[3]Repealing by Act No. 12 of 1873.

XIV.—MISCELLANEOUS

60. Decree for separation or protection order valid as to persons dealing with wife before reversal. Every decree for judicial separation or order to protect property obtained by a wife under this Act shall, until reversed or discharged, be deemed valid, so far as necessary, for the protection of any person dealing with the wife.

No reversal, discharge or variation of such decree or order shall affect any rights or remedies which any person would otherwise have had in respect of any contracts or acts of the wife entered into or done between the dates of such decree or order and of the reversal, discharge or variation thereof.

Indemnity of persons making payment to wife without notice of reversal of decree or protection order. All persons who in reliance on any such decree or order make any payment to, or permit any transfer or act to be made or done by, the wife who has obtained the same shall, notwithstanding such decree or order may then have been reversed, discharged or varied, or the separation of the wife from her husband may have ceased, or at some time since the making of the decree or order been discontinued, be protected and indemnified as if, at the time of such payment, transfer or other act, such decree or order were valid and still subsisting without variation, and the separation had not ceased or been discontinued,

unless, at the time of the payment, transfer or other act, such persons had notice of the reversal, discharge or variation of the decree or order or of the cessation or discontinuance of the separation.

61. Bar of suit for criminal conversation. After this Act comes into operation, no person competent to present a petition under sections 2 and 10 shall maintain a suit for criminal conversation with his wife.

62. Power to make rules. The High Court shall make such rules under this Act as it may from time to time consider expedient, and may from time to time alter and add to the same :

Provided that such rules, alterations and additions are consistent with the provisions of this Act and the Code of Civil Procedure[1].

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All such rules, alterations and additions shall be published in the [2][official Gazette].

[1]The Code of Civil Procedure (Act No. V of 1908).
[2]Subs. by A. O., 1937.

SCHEDULE OF FORMS

No. 1.—PETITION BY HUSBAND FOR A DISSOLUTION OF MARRIAGE WITH DAMAGES AGAINST CO-RESPONDENT, BY REASON OF ADULTERY.

(*See* sections 10 and 34)

In the [1][*] Court of

[1][* * * * * * *]

The day of 186.

The petition of A. B., of

SHEWETH,

1. That your petitioner was on the day of , one thousand eight hundred and , lawfully married to *C.B.*, then C. *D.*, spinster, at

2. That from his said marriage, your petitioner lived and cohabited with his said wife at and at ,in , and lastly at in , and that your petitioner and his said wife have had issue of their said marriage, *five* children, of whom *two* sons only survive, aged respectively *twelve* and *fourteen* years.

3. That during the *three* years immediately preceding the day of one thousand eight hundred and , *X. Y.* was constantly, with few exceptions, residing in the house of your petitioner at aforesaid, and that on divers occasions during the said period, the dates of which are unknown to your petitioner, the said *C.B.* in your petitioner's said house committed adultery with the said *X. Y.*

4. That no collusion or connivance exists between me and my said wife for the purpose of obtaining a dissolution of our said marriage or for any other purpose.

Your petitioner, therefore, prays that this [1][*] Court will decree a dissolution of the said marriage, and that the said *X. Y.* do pay the sum of rupees 5,000 as damages by reason of his having committed adultery with your petitioner's said wife, such damages to be paid to your petitioner, or otherwise paid or applied as to this [1][*] Court seems fit.

(Signed) A.B.

Form of Verification

I, *A.B.*, the petitioner name in the above petition, do declare that what is stated therein is true to the best of my information and belief.

---

[1]Omitted by Act, 1975 (Act No. IV of 1976), s. 24.

No. 2.—RESPONDENT'S STATEMENT IN ANSWER TO No. 1.

In the Court of the day of

Between *A.B.*, petitioner,

C.B., respondent, and

X.Y., co-respondent.

C. *B.*, the respondent, by *D.E.*, her attorney [or vakil], in answer to the petition of *A.B.*, says that she denies that she has on divers or any occasions committed adultery with *X. Y.*, as alleged in the third paragraph of the said petition.

Wherefore the respondent prays that this [1][*] Court will reject the said petition.

(Signed) *C.B.*

No. 3.—CO-RESPONDENT'S STATEMENT IN ANSWER TO No.1

In the [1][*] Court of

The day of

Between *A.B.*, petitioner,
C.B., respondent, and
X. Y., co-respondent.

X. Y., the co-respondent, in answer to the petition filed in this cause, saith that he denies that he committed adultery with the said C. *B.*, as alleged in the said petition.

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Wherefore the said *X. Y.*, prays that this [1][*] Court will reject the prayer of the said petitioner and order him to pay the costs of and incident to the said petition.

(Signed) *X.Y.*

---

[1]Omitted by Act, 1975 (Act No. IV of 1976), s. 24.

No. 4.—PETITION FOR DECREE OF NULLITY OF MARRIAGE

(*See* section 18)

In the [1][*] Court of

[1][* * * * * * *]

The day of , 186 .

The petition of A.B., falsely called A.D., SHEWETH,

1. That on the , day of , one thousand eight hundred and , your petitioner, then a spinster, eighteen years of age, was married in fact, though not in law, to *C.D.*, then a bachelor of about thirty years of age, at *[some place in [2][Pakistan]]*.

2. That from the said day of , one thousand eight hundred and , , until the month of , one thousand eight hundred and your petitioner lived and cohabited with the said *C.D.*, at divers places, and particularly at aforesaid.

3. That the said C. *D.*, has never consummated the said pretended marriage by carnal copulation.

4. That at the time of the celebration of your petitioner's said pretended marriage, the said *C.D.* was, by reason of his impotency or malformation, legally incompetent to enter into the contract of marriage.

5. That there is no collusion or connivance between her and the said *C.D.* with respect to the subject of this suit.

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Your petitioner therefore prays that this [1][*] Court will declare that the said marriage is null and void.

(Signed) *A.B.*

---

[1]Omitted by Act, 1975 (Act No. IV of 1976), s. 24.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3, Sch. II (w. e. f. the 14th October, 1955).

No. 5.—PETITION BY WIFE FOR JUDICIAL SEPARATION ON THE GROUND OF HER HUSBAND'S ADULTERY.

(*See* section 22)

In the [1][*] Court of

[1][* * * * * * * *]

The day of 186 .

The petition of *C.B.*, of , the wife of *A.B.*

SHEWETH,

That on the day of , one thousand eight hundred and *sixty* , your petitioner, then *C.D.*, was lawfully married to *A.B.*, at the Church of , in the

2. That after her said marriage your petitioner cohabited with the said *A.B.* at and at , and that your petitioner and her said husband have issue living of their said marriage, *three* children, to wit, *etc*., *etc.*

3. That on divers occasions in or about the months of *August*, *September* and *October*, one thousand eight hundred and *sixty* , the said *A. B.*, at aforesaid, committed adultery with *E.F.*, who was then living in the service of the said *A. B.* and your petitioner at their said residence aforesaid.

4. That on divers occasions in the months of *October, November* and *December,* one thousand eight hundred and *sixty* , the said *A. B.*, at aforesaid, committed adultery with G. *H.*, who was then living in the service of the said *A. B.* and your petitioner at their said residence aforesaid.

5. That no collusion or connivance exists between your petitioner and the said *A. B.* with respect to the subject of the present suit.

Your petitioner therefore prays that this [1][*] Court will decree a judicial separation to your petitioner from her said husband by reason of his aforesaid adultery.

(Signed) C. *B.*

---

[1]Omitted by Act, 1975 (Act No. IV of 1976), s. 24.

No.—6. STATEMENT IN ANSWER TO No. 5

In the [1][*] Court of

B. against *B.*

The day of .

The respondent, *A.B.*, by *W. Y.*, his attorney [*or* vakil], saith,—

1. That he denies that he committed adultery with *E.F.*, as in the third paragraph of the petition alleged.

2. That the petitioner condoned the said adultery with *E.F.*, if any.

3. That he denies that he committed adultery with G.H., as in the fourth paragraph of the petition alleged.

4. That the petitioner condoned the said adultery with G. *H.*, if any.

Wherefore this respondent prays that this [1][*] Court, will reject the prayer of the said petition.

(Signed) *A.B.*

No.7.—STATEMENT IN REPLY TO No. 6.

In the [1][*] Court of

THE PAKISTAN CODE

B. against *B.*

The day of .

The petitioner, C. *B.*, by her attorney [or vakil], says,—

1. That she denies that she condoned the said adultery of the respondent with *E. F.*, as in the second paragraph of the statement in answer alleged.

2. That even if she had condoned the said adultery, the same has been revived by the subsequent adultery of the respondent with *G. H.*, as set forth in the fourth paragraph of the petition.

(Signed) *C.B.*

---

[1]Omitted by Act, 1975 (Act No. IV of 1976), s. 24.

No. 8.—PETITION FOR A JUDICIAL SEPARATION BY REASON OF CRUELTY

(See section 22)

In the [1][*] Court of

[1][* * * * * * *]

The day of , 186.

The petition of A. B. (wife of C. B.) of

SHEWETH,

1. That on the day of , one thousand eight hundred and , your petitioner, then A. D., spinster, was lawfully married to C. B., at

2. That from her said marriage, your petitioner lived and cohabited with her said husband at until the day of , one thousand eight hundred and , when your petitioner separated from her said husband as hereinafter more particularly mentioned, and that your petitioner and her said husband have had no issue of their said marriage.

3. That from and shortly after your petitioner's said marriage, the said *C. B.*, habitually conducted himself towards your petitioner with great harshness and cruelty, frequently abusing her in the coarsest and most insulting language, and beating her with his fists, with a cane, or with some other weapon.

4. That on an evening in or about the month of one thousand eight hundred and, the said *C. B.*, in the highway and opposite to the house in which your petitioner and the said *C. B.* were then residing at aforesaid, endeavoured to knock your petitioner down, and was only prevented from so doing by the interference of *F. D.*, your petitioner's brother.

5. That subsequently on the same evening, the said C. *B.*, in his said house at aforesaid, struck your petitioner with his clenched fist a violent blow on her face.

6. That on one Friday night in the month of , one thousand eight hundred and ,the said C. *B.*, in , without provocation, threw a knife at your petitioner, thereby inflicting a severe wound on her right hand.

7. That on the afternoon of the day of , one thousand eight hundred and , your petitioner, by reason of the great and continued cruelty practised towards her by her said husband, with assistance withdrew from the house of her said husband to the house of her father at , that from and after the said day of , one thousand eight hundred and , your petitioner hath lived separate and apart from her said husband, and hath never returned to his house or to cohabitation with him.

8. That there is no collusion or connivance between your petitioner and her said husband with respect to the subject of the present suit.

---

[1]Omitted by Act, 1975 (Act No. IV of 1976), s. 24.

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Your petitioner, therefore, prays that this [1][*] Court will decree a judicial separation between your petitioner and the said C. *B.*, and also order that the said *C.B.* do pay the costs of and incident to these proceedings.

(Signed) *A. B.*

———

Form of Verification : see No. 1

———

No. 9.—STATEMENT IN ANSWER TO No. 8

In the [1][*] Court of

The day of .

Between *A. B.*, petitioner, and C. *B.*, respondent.

C.B., the respondent, in answer to the petition filed in this cause, by *W. J.*, his attorney *[or* vakil], saith that he denies that he has been guilty of cruelty towards the said *A. B.*. as alleged in the said petition.

(Signed) *C.B.*

———

No. 10.—PETITION FOR REVERSAL OF DECREE OF SEPARATION

(See section 24)

In the [2][*] Court of

[1][* * * * * * *]

The day of , 186.

The petition of *A. B.*, of

SHEWETH,

1. That your petitioner was on the day of lawfully married to.

2. That on the day of , this [1][*] Court, at the petition of , pronounced a decree affecting the petitioner to the effect following, to wit,—

[Here set out the decree.]

3. That such decree was obtained in the absence of your petitioner, who was then residing at.

[State facts tending to show that the petitioner did not know of the proceedings ; and, further, that had he known he might have offered a sufficient defence].

[1]Omitted by Act No. 1975 (Act No. IV of 1976), s.24.

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or

That there was reasonable ground for your petitioner leaving his said wife, for that his said wife.

[Here state any legal grounds justifying the petitioner's separation from his wife.]

Your petitioner, therefore, prays that this [1][*] Court will reverse the said decree.

(Signed) *A.B.*

———

Form of Verification : see No. 1

———

No. 11.—PETITION FOR PROTECTION-ORDER

(See section 27)

In the [1][*] Court of

[1][* * * * * * *]

The day of , 186.
The petition of C. *B.*, of .
The wife of *A. B.*

SHEWETH,

That on the day of she was lawfully married to *A. B.* at .

That she lived and cohabited with the said *A. B.* for years at , and also at , and had had children, issue of her said marriage, of whom are now living with the applicant, and wholly dependent upon her earnings.

That on or about , the *said A. B.*, without any reasonable cause, deserted the applicant, and hath ever since remained separate and apart from her.

That since the desertion of her said husband, the applicant hath maintained herself by her own industry *[or* on her own property, *as the case may be]*, and hath thereby and otherwise acquired certain property consisting of *[here state generally the nature of the property]*.

Wherefore she prays an order for the protection of her earnings and property acquired since the said day of ,
from the said *A. B.*, and from all creditors and persons claiming under him.

(Signed) *C.B.*

.

———

[1] Omitted by Act, 1975 (Act No. IV of 1976), s. 24.

No. 12.—PETITION FOR ALIMONY PENDING THE SUIT

(See section 36)

In the [1][*] Court of

B. against *B.*

[1][* * * * * * *]

The day of , 186.

The petition of C. *B.*, the lawful wife of A. *B.*

SHEWETH,

1. That the said A. *B.* has for some years carried on the business of , at , and from such business derives the net annual income of from Rs. 4,000 to 5,000.

2. That the said A. *B.* is possessed of plate, furniture, linen and other effects at his said house aforesaid, all of which he acquired in right of your petitioner as his wife, or purchased with money he acquired through her, of the value of Rs. 10,000.

3. That the said A. *B.* is entitled, under the will of his father, subject to the life interest of his mother therein, to property of the value of Rs. 5,000 or some other considerable amount.

Your petitioner, therefore, prays that this[1] Court will decree such sum or sums of money by way of alimony, pending the suit, as to this [1][*] Court may seem meet.

(Signed) *C.B.*

Form of Verification : see No. 1

———

No. 13.—STATEMENT IN ANSWER TO No. 12

In the [1][*] Court of

B. against *B.*

A. *B.*, of , the above named respondent, in answer to the petition for alimony, Pending the suit of C. *B.*, *sa*ys—

1. In answer to the first paragraph of the said petition, I say that I have for the last *three* years carried on the business of , at , and that, from such business, I have derived a net annual income of Rs. 900, but less than Rs. 1,000.

2. In answer to the second paragraph of the said petition, I say that I am possessed of plate, furniture, linen and other chattels and effects at my said house aforesaid, of the value of Rs. 7,000, but as I verily believe of no larger value. And I say that a portion of the said plate, furniture and other chattels and effects of the value of Rs. 1,500, belonged to my said wife before our marriage, but the remaining portions thereof I have since purchased with my own moneys. And I say that, save as hereinbefore set forth, I am not possessed of the plate and other effects as alleged in the said paragraph in the said petition, and that I did not acquire the same as in the said petition also mentioned.

[1]Omitted by Act, 1975 (Act No. IV of 1976), s. 24.

3. I admit that I am entitled under the will of my father, subject to the life-interest of my mother therein, to property of the value of Rs. 5,000, that is to say, I shall be entitled under my said father's will, upon the death of my mother, to a legacy of Rs.7,000, out of which I shall have to pay to my father's executors the sum of Rs. 2,000, the amount of a debt owing by me to his estate, and upon which debt I am now paying interest at the rate of five per cent. per annum.

4. And, in further answer to the said petition, I say that I have no income whatever except that derived from my aforesaid business, that such income, since my said wife left me, which she did on the day of last, has been considerably diminished, and that such diminution is likely to continue. And I say that out of my said income, I have to pay the annual sum of Rs. 100 for such interest as aforesaid to my late father's executors' and also to support myself and my two eldest children.

5. And, in further answer to the said petition, I say that, when my wife left my dwelling-house on the day of last, she took with her, and has ever since withheld and still withholds from me, plate, watches and other effects in the second paragraph of this my answer mentioned, of the value of, as I verily believe, Rs. 800 at the least ; and I also say that, within five days of her departure from my house as aforesaid, my said wife received bills due to me from certain lodgers of mine, amounting in the aggregate to Rs. , and that she has ever since withheld and still withholds from me the same sum.

(Signed) A. *B.*

No. 14.—UNDERTAKING BY MINOR'S NEXT FRIEND TO BE ANSWERABLE FOR RESPONDENT'S COSTS.

(See section 49)

In the [1][*] Court of

I, the undersigned, *A. B.*, of ,being the next friend of C. *D.*, who is a minor, and who is desirous of filing a petition in this Court, under the Indian Divorce Act, against *D. D.* of , hereby undertake to be responsible for the costs of the said *D. D.* in such suit, and that, if the said *C.D.* fail to pay to the said *D. D.* when and in such manner as the Court shall order all such costs of such suit as the Court shall direct him *(or* her) to pay to the said *D. D.*, I will forthwith pay the same to the proper officer of this Court.

Dated this day of , 186 .

(Signed) A. *B.*,

Date: 24-09-2024

[1]Omitted by Act, 1975 (Act No. IV of 1976), s. 24.

THE DISSOLUTION OF MUSLIM MARRIAGES ACT, 1939

CONTENTS

1 Short title and extent

2 Grounds for decree for dissolution of marriage

3 Notice to be served on heirs of the husband when the husbands' whereabout are not known

4 Effect of conversion to another faith

5 Rights to dower not to be affected

6 [Repealed]

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THE DISSOLUTION OF MUSLIM MARRIAGES ACT, 1939

ACT No. VIII OF 1939

[17th *March*, 1939]

An Act to consolidate and clarify the provisions of Muslim law relating to suits for dissolution of marriage by women married under Muslim law and to remove doubts as to the effect of the renunciation of Islam by a married Muslim woman on her marriage tie.

WHEREAS it is expedient to consolidate and clarify the provisions of Muslim law relating to suits for dissolution of marriage by women married under Muslim law and to remove doubts as to the effect of the renunciation of Islam by a married Muslim woman on her marriage tie; It is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the Dissolution of Muslim Marriages Act, 1939.

[1][(2) It extends to the whole of Pakistan.]

2. Grounds for decree for dissolution of marriage. A woman married under Muslim Law shall be entitled to obtain a decree for the dissolution of her marriage on any one or more of the following grounds, namely:—

(i) that the whereabouts of the husband have not been known for a period of four years;

(ii) that the husband has neglected or has failed to provide for her maintenance for a period of two years;

[2][(iia) that the husband has taken an additional wife in contravention of the provisions of the Muslim Family Laws Ordinance, 1961;]

(iii) that the husband has been sentenced to imprisonment for a period of seven years or upwards;

(iv) that the husband has failed to perform, without reasonable cause, his marital obligations for a period of three years;

(v) that the husband was impotant at the time of the marriage and continues to be so;

(vi) that the husband has been insane for a period of two years or is suffering from leprosy or a virulent venereal disease;

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch., (with effect from the 14th October, 1955).
[2]Ins. by the Muslim Family Laws Ordinance, 1961 (VIII of 1961), s. 13 (with effect from the 15th July, 1961).

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(vii) that she, having been given in marriage by her father or other guardian before she attained the age of [1][sixteen] years, repudiated the marriage before attaining the age of eighteen years:

Provided that the marriage has not been consummated;

[2][(viia) lian;

Explanation.— Lian means where the husband has accused his wife of zina and the wife does not accept the accusation as true.]

(viii) that the husband treats her with cruelty, that is to say,—

(a) habitually assaults her or makes her life miserable by cruelty of conduct even if such conduct does not amount to physical ill-treatment, or

(b) associates with women of evil repute or leads an infamous life, or

(c) attempts to force her to lead an immoral life, or

(d) disposes of her property or prevents her exercising her legal rights over it, or

(e) obstructs her in the observance of her religious profession or practice, or

(f) if he has more wives than one, does not treat her equitably in accordance with the injunctions of the Quran;

(ix) on any other ground which is recognised as valid for the dissolution of marriages under Muslim law:

Provided that—

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(a) no decree shall be passed on ground (iii) until the sentence has become final;

(b) a decree passed on ground (i) shall not take effect for a period of six months from the date of such decree, and if the husband appears either in person or through an authorised agent within that period and satisfies the Court that he is prepared to perform his conjugal duties, the Court shall set aside the said decree; and

[1]Subs. by the Muslim Family Laws Ordinance, 1961 (VIII of1961), s. 13 (with effect from the 15th July, 1961).
[2]Ins. by the Protection of Women (Criminal Laws Amendment) Act, 2006 (VI of 2006), s. 29.

(c) before passing a decree on ground (v) the Court shall, on application by the husband, make an order requiring the husband to satisfy the Court within a period of one year from the date of such order that he has ceased to be impotent, and if the husband so satisfies the Court within such period, no decree shall be passed on the said ground.

3. Notice to be served on heirs of the husband when the husbands' whereabout are not known. In a suit to which clause (i) of section 2 applies—

(a) the names and addresses of the persons who would have been the heirs of the husband under Muslim law if he had died on the date of the filing of the plaint shall be stated in the plaint,

(b) notice of the suit shall be served on such persons, and

(c) such persons shall have the right to be heard in the suit:

Provided that paternal uncle and brother of the husband, if any, shall be cited as party even if he or they are not heirs.

4. Effect of conversion to another faith. The renunciation of Islam by a married Muslim woman or her conversion to a faith other than Islam shall not by itself operate to dissolve her marriage:

Provided that after such renunciation, or conversion, the woman shall be entitled to obtain a decree for the dissolution of her marriage on any of the grounds mentioned in section 2:

Provided further that the provisions of this section shall not apply to a woman converted to Islam from some other faith who re-embraces her former faith.

5. Rights to dower not to be affected. Nothing contained in this Act shall affect any right which a married woman may have under Muslim law to her dower or any part thereof on the dissolution of her marriage.

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6. [1][Repealed].

Date: 29-05-2024

[1]Rep. by the Repealing and Amending Act, 1942 (XXV of 1942), s. 2 and 1st Sch.

THE CLAIMS FOR MAINTENANCE (RECOVERY ABROAD) ORDINANCE, 1959.

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THE CLAIMS FOR MAINTENANCE (RECOVERY ABROAD) ORDINANCE, 1959

ORDINANCE NO. L OF 1959

[10*th September*, 1959]

An Ordinance to give effect to the United Nations Convention on the Recovery Abroad of Claims for Maintenance.

WHEREAS the United Nations Conference on Maintenance Obligations held at New York from the 29th May, 1956, to the 20th June, 1956, adopted the Convention on the Recovery Abroad of Maintenance;

AND WHEREAS Article 13 of the said Convention provides that the Convention may be acceded to at any time on behalf of any Member of the United Nations;

AND WHEREAS Pakistan, being a Member of the United Nations, has, in pursuance of the aforesaid Article, acceded to the Convention on the fourteenth day of July, 1959;

AND WHEREAS it is expedient to give effect to the Convention;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance.

1. Short title and commencement.—(1) This Ordinance may be called the Claims for Maintenance (Recovery Abroad) Ordinance, 1959.

(2) It shall come into force at once.

2. Definitions. —In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) " Article" means an article of the Convention;

(b) "Contracting Party" means Pakistan, and any other state whose instrument of ratification or accession is deposited under Article 13 and which is notified by the [1][Federal Government] in the official Gazette to be a contracting Party;

(c) "Convention" means the United Nations Convention on the Recovery Abroad of Maintenance; and

(d) "Transmitting Agency" and "Receiving Agency" for a Contracting Part shall mean respectively the judicial or administrative authority and the public or private body designated under Article 2 to be the Transmitting Agency or the Receiving Agency, as the case may be, and notified as such by the [2][Federal Government] in the official Gazette.

[1]Subs. by F.A.O., 1975, Art. 2 and Table.

3. Publication of information. —The [1][Federal Government] shall, from time to time, publish in the official Gazette any information received by it from the Secretary- General of the United Nations in pursuance of Article 19.

4. The Convention to have the force of law in Pakistan.—(1) Notwithstanding anything to the contrary contained in any other law, the provisions of the Convention set out in Schedule shall have the force of law in Pakistan.

(2) The [1][Federal Government] may amend the Schedule in conformity with such amendments as may, from time to time, be made in the Convention.

5. Power to make rules. —The [1][Federal Government] may make rules for carrying out the purposes of this Ordinance.

THE SCHEDULE

(*See* section 4)

CONVENTION ON THE RECOVERY ABROAD OF MAINTENANCE.

Article 1

SCOPE OF THE CONVENTION

1. The purpose of this Convention is to facilitate the recovery of maintenance to which person, hereinafter referred to as claimant, who is in the territory of one of the Contracting Parties, claims to be entitled from another person, hereinafter referred to as respondent, who is subject to the jurisdiction of another Contracting Party. This purpose shall be effected through the offices of agencies which will hereinafter be referred to as Transmitting and Receiving Agencies.

2. The remedies provided for in this Convention are in addition to, and not in substitution for, any remedies available under municipal or international law.

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Article 2

DESIGNATION OF AGENCIES

1. Each Contracting Party shall, at the time when the instrument of ratification or accession is deposited, designate one or more judicial or administrative authorities which shall act in its territory as Transmitting Agencies.

2. Each Contracting Party shall, at the time when the instrument of ratification or accession is deposited, designate a public or private body which shall act in its territory as Receiving Agency.

3. Each Contracting Party shall promptly communicate to the Secretary-General of the United Nations the designations made under paragraphs 1 and 2 and any changes made in respect thereof.

4. Transmitting and Receiving Agencies may communicate directly with Transmitting and Receiving Agencies of other Contracting Parties.

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[1]Subs. by F.A.O., 1975 Art. 2 and Table.

Article 3

APPLICATION TO TRANSMITTING AGENCY

1. Where a claimant is in the territory of one Contracting Party, hereinafter referred to as the State of the claimant, and the respondent is subject to the jurisdiction of another Contracting Party, hereinafter referred to as the State of the respondent, the claimant may make application to a Transmitting Agency in the State of the claimant for the recovery of maintenance from the respondent.

2. Each Contracting Party shall inform the Secretary-General as to the evidence, normally required under the law of the State of the Receiving Agency for the proof of maintenance claims, of the manner in which such evidence should be submitted and of other requirements to be compiled with under such law.

3. The application shall be accompanied by all relevant documents, including, where necessary, a power of attorney authorizing the Receiving Agency to act, or to appoint some other person to act, on behalf of the claimant. It shall also be accompanied by a photograph of the claimant and, where available, a photograph of the respondent.

4. The Transmitting Agency shall take all reasonable steps to ensure that the requirements of the law of the State of the Receiving Agency are compiled with; and, subject to the requirements of such law, the application shall include:

(a) the full name, address, date of birth, nationality, and occupation of the claimant, and the name and address of any legal representative of the claimant;

(b) the full name of the respondent, and, so far as known to the claimant, his addresses during the preceding five years, date of birth, nationality, and occupation;

(c) particulars of the grounds upon which the claim is based and of the relief sought, and any other relevant information such as the financial and family circumstances of the claimant and the respondent.

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Article 4

TRANSMISSION OF DOCUMENTS

1. The Transmitting Agency shall transmit the documents to the Receiving Agency of the State of the respondent, unless satisfied that the application is not made in good faith.

2. Before transmitting such documents, the Transmitting Agency shall satisfy itself that they are regular as to form, in accordance with the law of the State of the claimant.

3. The Transmitting Agency may express to the Receiving Agency an opinion as to the merits of the case and may recommend that free legal aid and exemption from costs be given to the claimant.

Article 5

TRANSMISSION OF JUDGEMENTS AND OTHER JUDICIAL ACTS

1. The Transmitting Agency shall, at the request of the claimant, transmit, under the provisions of article 4, any order, final or provisional, and any other judicial act, obtained by the claimant for the payment of maintenance in a competent tribunal of any of the Contracting Parties, and, where necessary and possible, the record of the proceedings in which such order was made.

2. The orders and judicial acts referred to in the preceding paragraph may be transmitted in substitution for or in addition to the documents mentioned in article 3.

3. Proceedings under article 6 may include, in accordance with the law of the State of the respondent, exequatur or registration proceedings or an action based upon the act transmitted under paragraph 1.

Article 6

FUNCTIONS OF THE RECEIVING AGENCY

1. The Receiving Agency shall, subject always to the authority given by the claimant, take, on behalf of the claimant, all appropriate steps for the recovery of maintenance, including the settlement of the claim and, where necessary, the Institution and prosecution of an action for maintenance and the execution of any order or other judicial act for the payment of maintenance.

2. The Receiving Agency shall keep the Transmitting Agency currently informed. If it is unable to act, it shall inform the Transmitting Agency of its reasons and return the documents.

3. Notwithstanding anything in this Convention, the law applicable in the determination of all questions arising in any such action proceedings shall be the law of the State of the respondent, including its private international law.

Article 7

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LETTERS OF REQUEST

If provisions is made for letters of request in the laws for the two Contracting Parties concerned, the following rules shall apply:

(a) A tribunal hearing an action for maintenance may address letters of request for further evidence, documentary or otherwise, either to the competent tribunal of the other Contracting Party or to any other authority or institution designated by the other Contracting Party in whose territory the request is to be executed.

(b) In order that the parties may attend or be represented, the requested authority shall give notice of the date on which and the place at which the proceedings requested are to take place to the Receiving Agency and the Transmitting Agency concerned, and to the respondent.

(c) Letters of request shall be executed with all convenient speed; in the event of such letters of request not being executed within four months from the receipt of the letters by the requested authority, the reasons for such non-execution or for such delay shall be communicated to the requesting authority.

(d) The execution of letters of request shall not give rise to reimbursement of fees or costs of any kind whatsoever.

(e) Execution of letters of request may only be refused:

(1) If the authenticity of the letters is not established;

(2) If the Contracting Party in whose territory the letters are to be executed deems that its sovereignty or safety would be compromised thereby.

Article 8

VARIATION OF ORDERS

The provisions of this Convention apply also to applications for the variation of maintenance orders.

Article 9

EXEMPTIONS AND FACILITIES

1. In proceedings under this Convention, claimants shall be accorded equal treatment and the same exemptions in the payment of costs and charges as are given to residents or national of the State where the proceedings are pending.

2. Claimants shall not be required, because of their status as aliens or non-residents, to furnish any bond or make any payment or deposit as security for costs or otherwise.

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3. Transmitting and Receiving Agencies shall not charge any fees in respect of services rendered under this Convention.

Article 10

TRANSFER OF FUNDS

A Contracting Party, under whose law the transfer of funds abroad is restricted, shall accord the highest priority to the transfer of funds payable as maintenance or to cover expenses in respect of proceedings under this Convention.

Article 11

FEDERAL STATE CLAUSE

In the case of a Federal or non-unitary State, the following provisions shall apply:

(a) With respect to those articles of this Convention that come within the legislative jurisdiction of the federal legislative authority, the obligations of the Federal Government shall to this extent be the same as those of Parties which are not Federal States;

(b) With respect to those articles of this Convention that come within the legislative jurisdiction of constituent States, provinces or cantons which are not, under the constitutional system of the Federation, bound to take legislative action, the Federal Government shall bring such articles with a favorable recommendation to the notice of the appropriate authorities of States, provinces or cantons at the earliest possible moment;

(c) A Federal State Party to this Convention shall, at the request of any other Contracting Party transmitted through the Secretary-General, supply a statement of the law and practice of the Federation and its constituent units in regard to any particular provision of the Convention, showing the extent to which effect has been given to that provision by legislative or other action.

Article 12

TERRITORIAL APPLICATION

The provisions of this Convention shall extend or be applicable equally to all non-self-governing, trust or other territories for the international relations of which a Contracting Party is responsible, unless the latter, on ratifying or acceding to this Convention, has given notice that the Convention shall not apply to any one or more of such territories. Any Contracting Party making such a declaration may, at any time thereafter, by notification to the Secretary-General, extend the application of the Convention to any or all of such territories.

Article 13

SIGNATURE, RATIFICATION AND ACCESSION

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1. This Convention shall be open for signature until 31 December, 1956 on behalf of any Member of the United Nations, any non-member State which is a Party of the Statue of the International Court of Justice, or member of a specialized agency, and any other non-member State which has been invited by the Economic and Social Council to become a Party to the Convention.

2. This Convention shall be ratified. The instruments of ratification shall be deposited with the Secretary-General.

3. This Convention may be acceded to at any time on behalf of any of the States referred to in paragraph 1 of this article. The instruments of accession shall be deposited with the Secretary-General.

Article 14

ENTRY INTO FORCE

1. This Convention shall come into force on the thirtieth day following the date of deposit of the third instrument of ratification or accession in accordance with article 13.

2. For each State ratifying or acceding to the Convention after the deposit of the third instrument of ratification or accession, the Convention shall enter into force on the thirtieth day following the date of the deposit by such State of its instrument of ratification or accession.

Article 15

DENUNCIATION

1. Any Contracting Party may denounce this Convention by notification to the Secretary-General. Such denunciation may also apply to some or all of the territories mentioned in Article 12.

2. Denunciation shall take effect one year after the date of receipt of the notification by the Secretary-General, except that it shall not prejudice cases pending at the time it becomes effective.

Article 16

SETTLEMENT OF DISPUTES

If a dispute should arise between Contracting Parties relating to the interpretation or application of this Convention and if such dispute has not been settled by other means, it shall be referred to the International Court of Justice. The dispute shall be brought before the Court either by the notification of a special agreement or by a unilateral application of one of the parties to the dispute.

Article 17

RESERVATIONS

1. In the event that any State submits a reservation to any of the articles of this Convention at the time of ratification or accession the Secretary-General shall communicate the text of the reservation to all States which are Parties to this Convention, and to the other States referred to in article 13 Any Contracting Party which objects to the reservation may, within a period of ninety days from the date of the communication, notify the Secretary-General that it does not accept it, and the Convention shall not then enter into force as between the objecting State and the State making the reservation. Any State thereafter acceding may make such notification at the time of its accession.

2. A Contracting Party may at any time withdraw a reservation previously made and shall notify the Secretary-General of such withdrawal.

Article 18

RECIPROCITY

A Contracting Party shall not be entitled to avail itself of this Convention against other Contracting against other Contracting Parties except to the extent that it is itself bound by the Convention.

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Article 19

NOTIFICATIONS BY THE SECRETARY-GENERAL

1. The Secretary-General shall inform all Members of the United Nations and the non-member States referred to in article 13;

(a) of communications under paragraph 3 of article 2;

(b) of information received under paragraph 2 of article 3;

(c) of declarations and notifications made under article 12;

(d) of signatures, ratifications and accessions under article 13;

(e) of the date on which the Convention has entered into force under paragraph 1 of article 14;

(f) of denunciations made under paragraph 1 of article 15;

(g) of reservations and notifications made under article 17.

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THE CHRISTIAN MARRIAGE ACT, 1872

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THE CHRISTIAN MARRIAGE ACT, 1872

[1]Act No. XV OF 1872

[18th July, 1872]

An Act to consolidate and amend the law relating to the solemnization [2] * of the marriages of Christian.*

Preamble. WHEREAS it is expedient to consolidate and amend the law relating to the solemnization [2]* * of the marriages of persons professing the Christian religion; It is hereby enacted as follows:—

PRELIMINARY

1. Short title. This Act may be called the [3] * Christian Marriage Act, 1872.

Extent. It extends[4] to [5][the whole of Pakistan] [6] * * *

[7][* * * * * * *]

2. [Enactments repealed.] Rep. by the Repealing Act, 1938 (1 of 1938), s. 2 and Sch.

3. Interpretation-clause. In this Act, unless there is something repugnant in the subject or context,—

"Church of England" and "Anglican" mean and apply to the Church of England as by law established;

"Church of Scotland" means the Church of Scotland as by law established;

"Church of Rome" and "Roman Catholic" mean and apply to the Church which regards the Pope of Rome as its spiritual head;

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"Church" includes any chapel or other building generally used for public Christian worship;

"minor" means a person who has not completed the age of twenty-one years and who is not a widower or a widow;

[8][* * * * * * *]

[1]For the Statement of Objects and Reasons, *see* Gazette of India, 1871, Pt. V, p. 473 ; for Proceedings in Council, *see ibid*., 1870, Supplement, p. 1077 ; ibid., 1871, Supplement, pp. 1426, 1643 ; *ibid*., 1872, Supplement, pp. 257, 728, 742, 805, 813 and 858. This Act is based on 14 and 15 Vict., c. 40, and 58 Geo. III, c. 84 (both Statutes relate to marriages in India and are now no longer in force), and Acts 5 of 1852 and 5 of 1865; the last two Acts were rep. by this Act.

[2]The words "in India" omitted by A.O., 1949, Sch.

[3]The word "Indian" omitted, *ibid*.

[4]This Act has been declared to be in force in Balochistan by the British Balochistan Laws Regulation, 1913 (2 of 1913), s. 3.

It has also been extended to the Leased Areas of Balochistan, *see* the Leased Areas (Laws) Order, 1950 (G.G. 0, 3 of 1950); also applied in the Federated Areas of Balochistan, *see* Gazette of India, 1937, Pt. I, p. 1499.

[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "all the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for" the whole of British India".

[6]Certain words omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.

[7]The commencement clause was rep. by the Repealing Act, 1874 (16 of 1874).

[8]The definition of "Native State" which read "Native State means the territories of any Native Prince or State in alliance with Her Majesty" was rep. by A.O., 1937.

the expression "Christians" means persons professing the Christian religion;

and the expression "Native Christians" includes the Christian descendants of Natives of [1][Indo-Pakistan subcontinent] converted to Christianity, as well as such converts;

[2]["Registrar General of Births, Deaths and Marriages" means a Registrar General of Births, Deaths and Marriages appointed under the Births, Deaths and Marriages Registration Act, 1886 (VI of 1886).]

PART I
THE PERSONS BY WHOM MARRIAGES MAY BE SOLEMNIZED

4. Marriages to be solemnized according to Act. Every marriage between persons, one or both of whom is[3][or are] a Christian or Christians, shall be solemnized in accordance with the provisions of the next following section; and any such marriage solemnized otherwise than in accordance with such provisions shall be void.

5. Persons by whom marriages may be solemnized. Marriages may be solemnized in [4][Pakistan].

(1) by any person who has received episcopal ordination, provided that the marriage be solemnized according to the rules, rites, ceremonies and customs of the Church of which he is a Minister;

(2) by any Clergyman of the Church of the Scotland, provided that such marriage be solemnized according to the rules, rites, ceremonies and customs of the Church of Scotland

(3) by any Minister of Religion licensed under this Act to solemnize marriages;

(4) by; or in the presence of, a Marriage Registrar appointed under this Act;

(5) by any person licensed under this Act to grant certificates of marriage between Native Christians.

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[5]**[6. Grant and revocation of licenses to solemnize marriage.** The Provincial Government may, by notification in the official Gazette, grant licences to Ministers of Religion to solemnize marriages, and may, by a like notification, revoke such licences].

7. Marriage Registrars. The [6][Provincial Government] may appoint one or more Christians, either by name or as holding any office for the time being, to be the Marriage Registrar or Marriage Registrars for any district subject to its administration.

Senior Marriage Registrar. Where there are more Marriage Registrars than one in any district, the [6][provincial Government] shall appoint one of them to be the Senior Marriage Registrar.

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[1]Subs. by A. O., 1949, Sch., for "India".
[2]Ins. by the Births, Deaths and Marriages Registration Act, 1886 (6 of 1886), s. 30.
[3]Ins. by the Amending Act, 1891 (12 of 1891), s. 2 and Sch. II.
[4]Subs. by A. O., 1949, Sch., for "India".
[5]Section 6 previously amended by various enactments have been subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., to read as above.
[6]Subs. by A. O., 1937, for "L.G.".

Magistrate when to be Marriage Registrar. When there is only one Marriage Registrar in a district, and such Registrar is absent from such district, or ill, or when his office is temporarily vacant, the Magistrate of the district shall act as, and be, Marriage Registrar thereof during such absence, illness or temporary vacancy.

8. [1][Marriage Registrars in Acceding States.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.

9. Licensing of persons to grant certificates of marriage between Native Christians. The [2][Provincial Government][3]* * * may grant a license to any Christian, either by name or as holding any office for the time being, authorizing him to grant certificate of marriage between Native Christians.

Any such license may be revoked by the authority by which it was granted, and every such grant or revocation shall be notified in the official Gazette.

PART II
TIME AND PLACE AT WHICH MARRIAGES MAY BE SOLEMNIZED

10. Time for solemnizing marriage. Every marriage under this Act shall be solemnized between the hours of six in the morning and seven in the evening:

Exceptions. Provided that nothing in this section shall apply to−

(1) a Clergyman of the Church of England solemnizing a marriage under a special license permitting him to do so at any hour other than between six in the morning and seven in the evening, under the hand and seal of the Anglican Bishop of the Diocese or his Commissary, or

(2) a Clergyman of the Church of Rome solemnizing a marriage between the hours of seven in the evening and six in the morning, when he has received a general or special license in that behalf from the Roman Catholic Bishop of the Diocese or Vicariate in which such marriage is so solemnized, or from such person as the same Bishop has authorized to grant such license, [4][or a Clergyman of the Church of Scotland solemnizing a marriage according to the rules, rites, ceremonies and customs of the Church of Scotland.]

11. Place for solemnizing marriage. No Clergyman of the Church of England shall solemnize a marriage in any place other than a church [4][where worship is generally held according to the forms of the Church of England],

unless there is no [4][such] church within five miles distance by the shortest road from such place, or unless he has received a special license authorizing him to do so under the hand and seal of the Anglican Bishop of the Diocese or his Commissary.

Fee for special license. For such special license, the Registrar of the Diocese may charge such additional fee as the said Bishop from time to time authorizes.

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[1]This section was previously amended by A. O., 1937, and the Federal Laws (Revision and Declaration) Act, 1956 (26 of 1951), s. 4 and IIIrd Sch.
[2] Subs. by A. O., 1937, for "L. G.".
[3]Certain words previously amended by various enactments have been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.
[4]Ins. by the Indian Christian Marriage Act (1872) Amdt. Act, 1891 (2 of 1891), s. 2.

PART III
MARRIAGES SOLEMNIZED BY MINISTERS OF RELIGION LICENSED UNDER THIS ACT

12. Notice of intended marriage. Whenever a marriage is intended to be solemnized by a Minister of Religion licensed to solemnize marriages under this Act−

one of the persons intending marriage shall give notice in writing, according to the form contained in the first schedule hereto annexed, or to the like effect, to the Minister of Religion whom he or she desire to solemnize the marriage, and shall state therein−

(a) the name and surname, and the profession or condition, of each of the person intending marriage,

(b) the dwelling-place of each of them,

(c) the time during which each has dwelt there, and

(d) the church or private dwelling in which the marriage is to be solemnized:

Provided that, if either of such persons has dwelt in the place mentioned in the notice during more than one month, it may be stated therein that he or she has dwelt there one month and upwards.

13. Publication of such notice. If the persons intending marriage desire it to be solemnized in a particular church, and if the Minister of Religion to whom such notice has been delivered be entitled to officiate therein, he shall cause the notice to be affixed in some conspicuous part of such church.

Return or transfer of notice. But if he is not entitled to officiate as a Minister in such church, he shall, at his option, either return the notice to the person who delivered it to him, or deliver it to some other Minister entitled to officiate therein, who shall thereupon cause the notice to be affixed as aforesaid.

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14. Notice of intended marriage in private dwelling. If it be intended that the marriage shall be solemnized in a private dwelling, the Minister of Religion, on receiving the notice prescribed in section 12, shall forward it to the Marriage Registrar of the district, who shall affix the same to some conspicuous place in his own office.

15. Sending copy of notice to Marriage Registrar when one party is a minor. When one of the persons intending marriage is a minor, every Minister receiving such notice shall, unless within twenty-four hours after its receipt he returns the same under the provisions of section 13, send by the post or otherwise a copy of such notice to the Marriage Registrar of the district, or, if there be more than one Registrar of such district, to the Senior Marriage Registrar.

16. Procedure on receipt of notice. The Marriage Registrar or Senior Marriage Registrar, as the case may be, on receiving any such notice, shall affix it to some conspicuous place in his own office, and the latter shall further cause a copy of the said notice to be sent to each of the other Marriage Registrars in the same district, who shall likewise publish the same in the manner above directed.

17. Issue of certificate of notice given and declaration made. Any Minister of Religion consenting or intending to solemnize any such marriage as aforesaid, shall, on being required so to do by or on behalf of the person by whom the notice was given, and upon one of the persons intending marriage making the declaration hereinafter required, issue under his hand a certificate of such notice having been given and of such declaration having been made:

Proviso. Provided−

(1) that no such certificate shall be issued until the expiration of four days after the date of the receipt of the notice by such Minister;

(2) that no lawful impediment be shown to his satisfaction why such certificate should not issue; and

(3) that the issue of such certificate has not been forbidden, in manner hereinafter mentioned, by any person authorized in that behalf.

18. Declaration before issue of certificate. The certificate mentioned in section 17 shall not be issued until one of the persons intending marriage has appeared personally before the Minister and made a solemn declaration−

(a) that he or she believes that there is not any impediment of kindred or affinity or other lawful hindrance to the said marriage, and, when either or both of the parties is or are a minor or minors,

(b) that the consent or consents required by law has or have been obtained thereto, or that there is no person resident in [1][Pakistan] having authority to give such consent, as the case may be.

19. Consent of father, or guardian, or mother. The father, if living, of any minor, or, if the father be dead, the guardian of the person of such minor, and, in case there be no such guardian, then the mother of such minor, may give consent to the minor's marriage, and such consent is hereby required for the same marriage, unless no person authorized to give such consent be resident in [1][Pakistan].

20. Power to prohibit by notice issue of certificate. Every person whose consent to a marriage is required under section 19 is hereby authorized to prohibit the issue of the certificate by any Minister, at any time before the issue of the same, by notice in writing to such Minister, subscribed by the person so authorised with his or her name and place of abode and position with respect to either of the person intending marriage, by reason of which he or she is so authorized as aforesaid.

21. Procedure on receipt of notice. If any such notice be received by such Minister, he shall not issue his certificate and shall not solemnize the said marriage until he has examined into the matter of the said prohibition, and is satisfied that the person prohibiting the marriage has no lawful authority for such prohibition,

or until the said notice is withdrawn by the person who gave it.

[1]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "India".

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22. Issue of certificate in case of minority. When either of the persons intending marriage is a minor, and the Minister is not satisfied that the consent of the person whose consent to such marriage is required by section 19 has been obtained, such Minister shall not issue such certificate until the expiration of fourteen days after the receipt by him of the notice of marriage.

23. Issue of certificate to Native Christians. When any Native Christian about to be married takes a notice of Marriage to a Minister of Religion, or applies for a certificate from such Minister under section 17, such Minister shall, before issuing the certificate, ascertain whether such Native Christian is cognizant of the purport and effect of the said notice or certificate, as the case may be, and, if not, shall translate or cause to be translated the notice or certificate to such Native Christian into some language which he understands.

24. Form of certificate. The certificate to be issued by such Minister shall be in the form contained in the second schedule hereto annexed, or to the like effect.

25. Solemnization of marriage. After the issue of the certificate by the Minister, marriage may be solemnized between the persons therein described according to such form or ceremony as the Minister thinks fit to adopt:

Provided that the marriage be solemnized in the presence of at least two witnesses besides the Minister.

26. Certificate void if marriage not solemnized within two months. Whenever a marriage is not solemnized within two months after the date of the certificate issued by such Minister as aforesaid, such certificate and all proceedings (if any) thereon shall be void, and no person shall proceed to solemnized the said marriage until new notice has been given and a certificate thereof issued in manner aforesaid.

PART IV
REGISTRATION OF MARRIAGES SOLEMNIZED BY MINISTERS OR RELIGION.

27. Marriages when to be registered. All marriages hereafter solemnized in [1][Pakistan] between persons one or both of whom professes or profess the Christian religion, except marriages solemnized under Part V or Part VI of this Act, shall be registered[2] in manner hereinafter prescribed.

28. Registration of marriages solemnized by Clergymen of Church of England. Every Clergyman of the Church of England shall keep a register of marriages and shall register therein, according to the tabular form set forth in the third schedule hereto annexed, every marriage which he solemnizes under this Act.

29. Quarterly returns to Archdeaconry. Every Clergyman of the Church of England shall send four times in every year returns in duplicate, authenticated by his signature, of the entries in the register of marriages solemnized at any place where he has any spiritual charge, to the Registrar of the Archdeaconry to which he is subject, or within the limits of which such place is situate.

Contents of returns. Such quarterly returns shall contain all the entries of marriages contained in the said register from the first day of January to the thirty-first day of March, from the first day of April to the thirtieth day of June, from the first day of July to the thirtieth day of September, and from the first day of October to the thirty-first day of December, of each year respectively, and shall be sent by such Clergyman within two weeks from the expiration of each of the quarters above specified.

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[1]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "India".

[2]As to the establishment of general registry offices of births, deaths and marriages, *see* the Births, Deaths and Marriages Registration Act, 1886 (6 of 1886), Ch. II.

The said Registrar upon receiving the said returns shall send one copy thereof to the [1][Registrar General of Births, Deaths and Marriages.]

30. Registration and returns of marriages solemnized by Clergymen of Church of Rome. Every marriage solemnized by a Clergyman of the Church of Rome shall be registered by the person and according to the form directed in that behalf by the Roman Catholic Bishop of the Diocese or Vicariate in which such marriage is solemnized,

and such person shall forward quarterly to the [3][Registrar General of Births, Deaths and Marriages] returns of the entries of all marriages registered by him during the three months next preceding.

31. Registration and returns of marriages solemnized by Clergymen of Church of Scotland. Every Clergyman of the Church of Scotland shall keep a register of marriages,

and shall register therein, according to the tabular form set forth in the third schedule hereto annexed, every marriage which he solemnizes under this Act,

and shall forward quarterly to the [2][Registrar General of Births, Deaths and Marriages], through the Senior Chaplain of the Church of Scotland, returns, similar to those prescribed in section 29, of all such marriages.

32. Certain marriages to be registered in duplicate. Every marriage solemnized by any person who has received episcopal ordination, but who is not a Clergyman of the Church of England, or of the Church of Rome, or by any Minister of Religion licensed under this Act to solemnize marriages, shall, immediately after the solemnization thereof, be registered in duplicate by the person solemnizing the same; (that is to say) in a marriage-register-book to be kept by him for that purpose, according to the form contained in the fourth schedule hereto annexed, and also in a certificate attached to the marriage-register-book as a counterfoil.

33. Entries of such marriages to be signed and attested. The entry of such marriage in both the certificate and marriage-register-book shall be signed by the person solemnizing the marriage, and also by the persons married, and shall be attested by two credible witnesses, other than the person solemnizing the marriage, present at its solemnization.

Every such entry shall be made in order from the beginning to the end of the book, and the number of the certificate shall correspond with that of the entry in the marriage-register-book.

34. Certificate to be forwarded to Marriage Registrar, copied and sent to Registrar General. The person solemnizing the marriage shall forthwith separate the certificate from the marriage-register-book and send it, within one month from the time of the solemnization, to the Marriage Registrar of the district in which the marriage was solemnized, or, if there be more Marriage Registrars than one, to the Senior Marriage Registrar,

who shall cause such certificate to be copied into a book to be kept by him for that purpose,

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[1]Subs. by Act 6 of 1886, s. 30 (b), for "Secretary to the L.G.".
[2]Subs. by the Births, Deaths and Marriages Registration Act, 1886 (6 of 1886), s. 30 (b), for the words "Secretary to the L.G.".

and shall send all the certificates which he has received during the month, with such number and signature or initials added thereto as are hereinafter required, to the [1][Registrar General of Births, Deaths and Marriages].

35. Copies of certificates to be entered and numbered. Such copies shall be entered in order from the beginning to the end of the said book, and shall bear both the number of the certificate as copied, and also a number to be entered by the Marriage Registrar, indicating the number of the entry of the said copy in the said book according to the order in which he receives each certificate.

36. Registrar to add number of entry to certificate, and send to Registrar General. The Marriage Registrar shall also add such last-mentioned number of the entry of the copy in the book to the certificate, with his signature or initials, and shall, at the end of every month, send the same to the [1][Registrar General of Births, Deaths and Marriages].

37. Registration of marriages between Native Christians by persons referred to in clauses (1), (2) and (3) of section 5. When any marriage between Native Christians is solemnized [2][by any such person, Clergyman or Minister of Religion as is referred to in clause (1), clause (2) or clause (3) of section 5], the person solemnizing the same shall, instead of proceeding in the manner provided by sections 28 to 36, both inclusive, register the marriage in a separate register-book, and shall keep it safely until it is filled, or, if he leave the district in which he solemnized the marriage before the said book is filled, shall make over the same to the person succeeding to his duties in the said district.

Custody and disposal of register-book. Whoever has the control of the book at the time when it is filled, shall send it to the Marriage Registrar of the district, or, if there be more Marriage Registrars than one, to the Senior Marriage Registrar, who shall send it to the [1][Registrar General of Births, Deaths and Marriages], to be kept by him with the records of his office.

PART V
MARRIAGES SOLEMNIZED BY, OR IN THE PRESENCE OF, A MARRIAGE REGISTRAR

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38. Notice of intended marriage before Marriage Registrar. When a marriage is intended to be solemnized by, or in the presence of, a Marriage Registrar, one of the parties to such marriage shall give notice in writing, in the form contained in the first schedule hereto annexed, or to the like effect, to any Marriage Registrar of the District within which the parties have dwelt;

or, if the parties dwell in different districts, shall give the like notice to a Marriage Registrar of each district,

and shall state therein the name and surname, and the profession or condition, of each of the parties intending marriage, the dwelling-place of each of them, the time during which each has dwelt therein, and the place at which the marriage is to be solemnized:

Provided that, if either party has dwelt in the place stated in the notice for more than one month, it may be stated therein that he or she has dwelt there one month and upwards.

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[1]Subs. by the Births, Deaths and Marriages Registration Act, 1886 (6 of 1886), s. 30 (b), for "Secretary to the L.G.".
[2]Subs. by the Repealing and Amending Act, 1928 (18 of 1928), s. 2 and Sch. I, for "under Part I or Part III of this Act".

39. Publication of notice. Every Marriage Registrar shall, on receiving any such notice, cause a copy thereof to be affixed in some conspicuous place in his office.

When one of the parties intending marriage is a minor, every Marriage Registrar shall, within twenty-four hours after the receipt by him of the notice of such marriage, send, by post or otherwise, a copy of such notice to each of the other Marriage Registrars (if any) in the same district, who shall likewise affix the copy in some conspicuous place in his own office.

40. Notice to be filed and copy entered in Marriage Notice Book. The Marriage Registrar shall file all such notices and keep them with the records of his office,

and shall also forthwith enter a true copy of all such notices in a book to be furnished to him for that purpose by the [1][Provincial Government] and to be called the "Marriage Notice Book";

and the Marriage Notice Book shall be open at all reasonable times, without fee, to all persons desirous of inspecting the same.

Certificate of notice given and oath made. If the party by whom the notice was given requests the Marriage Registrar to issue the certificate next hereinafter mentioned, and if one of the parties intending marriage has made oath as hereinafter required, the Marriage Registrar shall issue under his hand a certificate of such notice having been given and of such oath having been made:

Provisio. Provided –

that no lawful impediment be shown to his satisfaction why such certificate should not issue;

that the issue of such certificate has not been forbidden, in manner hereinafter mentioned, by any person authorized in that behalf by this Act;

that four days after the receipt of the notice have expired; and further,

that where, by such oath, it appears that one of the parties intending marriage is a minor, fourteen days after the entry of such notice have expired.

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42. Oath before issue of certificate. The certificate mentioned in section 41 shall not be issued by any Marriage Registrar, until one of the parties intending marriage appears personally before such Marriage Registrar, and makes oath[2]–

(a) that he or she believes that there is not any impediment of kindred or affinity, or other lawful hindrance, to the said marriage, and

(b) that both the parties have, or (where they have dwelt in the districts of different Marriage Registrars) that the party making such oath has, had their, his or her usual place of abode within the district of such Marriage Registrar,

and, where either or each of the parties is a minor,—

(c) that the consent or consents to such marriage required by law has or have been obtained thereto, or that there is no person resident in [3][Pakistan] authorized to give such consent, as the case may be.

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[1]Subs. by A. O., 1937, for "L. G.".
[2]As to meaning of "oath" *see* s. 3,cl. (36) and s. 4 of the General Clauses Act, 1897 (10 of 1897).
[3]Subs. by A. O, 1949, Sch. for "India".

43. [Petition to High Court to order certificate in less than fourteen days.] Omitted by A.O. 1949, Schedule.

44. Consent of father or guardian. The provisions of section 19 apply to every marriage under this Part, either of the parties to which is a minor;

Protest against issue of certificate. and any person whose consent to such marriage would be required thereunder may enter a protest against the issue of the Marriage Registrar's certificate, by writing, at any time before the issue of such certificate, the word "for bidden" opposite to the entry of the notice of such intended marriage in the Marriage Notice Book, and by subscribing thereto his or her name and place of abode, and his or her position with respect to either of the parties, by reason of which he or she is so authorized.

Effect of protest. When such protest has been entered, no certificate shall issue until the Marriage Registrar has examined into the matter of the protest, and is satisfied that it ought not to obstruct the issue of the certificate for the said marriage, or until the protest be withdrawn by the person who entered it.

45. Petition where person whose consent is necessary is insane, or unjustly withholds consent. If any person whose consent is necessary to any marriage under this Part is of unsound mind,

or if any such person (other than the father) without just cause withholds his consent to the marriage,
the parties intending marriage may apply by petition, [1]* * * to the District Judge:

Procedure on petition. And the said [2]* * * District Judge [3]* * * may examine the allegations of the petition in a summary way:

And, if upon examination such marriage appears proper, such [2]* * * District Judge [3]* * * shall declare the marriage to be a proper marriage.

Such declaration shall be as effectual as if the person whose consent was needed had consented to the marriage;

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and, if he has forbidden the issue of the Marriage Registrar's certificate, such certificate shall be issued and the like proceedings may be had under this Part in relation to the marriage as if the issue of such certificate had not been forbidden.

46. Petition where Marriage Registrar refuses certificate. Whenever a Marriage Registrar refuses to issue a certificate under this Part, either of the parties intending marriage may apply by petition [4]* * * to the District Judge.

Procedure of petition. The said [5]* * * District Judge [6]* * * may examine the allegations of the petition in a summary way, and shall decide thereon.

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[1]The words "where the person whose consent is necessary is resident within any of the towns of Calcutta, Madras and Bombay, to a Judge of the High Court, or if he is not resident within any of the said towns, then" omitted by A. O, 1949, Sch.
[2]The words "Judges of the High Court, or" omitted, *ibid.*
[3]The words and commas, ", as the case may be," omitted by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October 1955).
[4]The words "where the district of such Registrar is within any of the towns of Calcutta, Madras and Bombay, to a Judge of the High Court, or if such district is not within any of the said towns, then" omitted by A.O., 1949, Sch.
[5]The words "Judges of the High Court, or" omitted, ibid.
[6]The words and commas, "as the case may be,"omitted by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., (with effect from the 14th October, 1955).

The decision of such [1]* * * District Judge [2]* * * shall be final, and the Marriage Registrar to whom the application for the issue of a certificate was originally made shall proceed in accordance therewith.

[3]**47.** [Petition when Marriage Registrar in Acceding State refuses certificate.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981) s. 3 and IInd Sch.

48. Petition when Registrar doubts authority of person forbidding. Whenever a Marriage Registrar, acting under the provisions of section 44, is not satisfied that the person forbidding the issue of the certificate is authorized by law so to do, the said Marriage Registrar shall apply by petition, [4]* * * to the District Judge.

Procedure on petition. The said petition shall state all the circumstances of the case, and pray for the order and direction of the Court concerning the same,

and the said [1]* * * District Judge [2]* * * shall examine into the allegations of the petition and the circumstances of the case;

and, if upon such examination, it appears, that the person forbidding the issue of such certificate is not authorized by law so to do, such [3]* * * District Judge [4]* * * shall declare that the person forbidding the issue of such certificate is not authorized as aforesaid,

and thereupon such certificate shall be issued, and the like proceedings may be had in relation to such marriage as if the issue had not been forbidden.

[5][* * * * * * *]

49. Liability for frivolous protest against issue of certificate. Every person entering a protest with the Marriage Registrar, under this Part, against the issue of any certificate, on grounds which such Marriage Registrar, under section 44[6]* * *or the District Judge, under section 45 or 46, declares to be frivolous and such as ought not to obstruct the issue of the certificate, shall be liable for the costs of all proceedings in relation thereto and for damages to be recovered by suit by the person against whose marriage such protest was entered.

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50. Form of certificate. The certificate to be issued by the Marriage Registrar under the provisions of section 41 shall be in the form contained in the second schedule to this Act annexed or to the like effect,

and the [7][Provincial Government] shall furnish to every Marriage Registrar a sufficient number of forms of certificate.

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[1]The words "Judge of the High Court, or" omitted by A. O., 1949), Sch.
[2]The words and commas, "as the case may be," omitted by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., (with effect from the 14th October, 1955).
[3]This section was previously amended by A. O., 1937, F.A.O., 1975, Art. 2 and Table and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch.
[4]The words "where his district is within any of the towns of Calcutta, Madras and Bombay, to a Judge of the High Court, or, if such district be not within any of the said towns, then" omitted by A. O., 1949, Sch.
[5]Paragraphs 6, 7 and 8 previously amended by various laws have been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.
[6]The words "or a Judge of the High Court" omitted by A. O., 1949 Sch.
[7]Subs. by A.O.,1937, for "L.G."

51. Solemnization of marriage after issue of certificate. After the issue of the certificate of the Marriage Registrar,

or, where notice is required to be given under this Act to the Marriage Registrar for different districts, after the issue of the certificates of the Marriage Registrars for such districts,

marriage may, if there be no lawful impediment to the marriage of the parties described in such certificate or certificates, be solemnized between them, according to such form and ceremony as they think fit to adopt.

But every such marriage shall be solemnized in the presence of some Marriage Registrar (to whom shall be delivered such certificate or certificates as aforesaid), and of two or more credible witnesses besides the Marriage Registrar.

And in some part of the ceremony each of the parties shall declare as follows, or to the like effect:−

"I do solemnly declare that I know not of any lawful impediment why I, A. B., may not be joined in matrimony to C.D."

And each of the parties shall say to the other as follows or to the like effect:- "I call upon these persons here present to witness that I, A. B., do take the, C.D., to be my lawful wedded wife [or husband]."

52. When marriage not had within two months after notice, new notice required. Whenever a marriage is not solemnized within two months after the copy of the notice bas been entered by the Marriage Registrar, as required by section 40, the notice and the certificate, if any, issued thereupon, and all other proceedings thereupon, shall be void;

and no person shall proceed to solemnize the marriage, nor shall any Marriage Registrar enter the same, until new notice has been given, and entry made, and certificate thereof given, at the time and in the manner aforesaid.

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53. Marriage Registrar may ask for particulars to be registered. A Marriage Registrar before whom any marriage is solemnized under this Part may ask of the persons to be married the several particulars required to be registered touching such marriage.

54. Registration of marriage solemnized under Part V. After the solemnization of any marriage under this Part, the Marriage Registrar present at such solemnization shall forthwith register the marriage in duplicate; that is to say, in a marriage-register-book, according to the form of the fourth schedule hereto annexed, and also in a certificate attached to the marriage-register-book as a counterfoil.

The entry of such marriage in both the certificate and the marriage-register-book shall be signed by the person by or before whom the marriage has been solemnized, if there be any such person, and by the Marriage Registrar present at such marriage, whether or not it is solemnized by him, and also by the parties married, and attested by two credible witnesses other than the marriage Registrar and person solemnizing the marriage.

Every such entry shall be made in order from the beginning to the end of the book, and the number of the certificate shall correspond with that of the entry in the marriage-register-book.

55. Certificates to be sent monthly to Registrar General. The Marriage Registrar shall forthwith separate the certificate from the marriage-register-book and send it, at the end of every month, to the [1][Registrar General of Births, Deaths and Marriages].

Custody of register book. The Marriage Registrar shall keep safely the said register-book until it is filled, and shall then send it to the [1][Registrar General of Births, Deaths and Marriages], to be kept by him with the records of his office.

[2][**56.** Officers to whom Registrars in Acceding States shall send certificates.] Omitted by the Federal Laws. (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and IInd Sch.

57. Registrars to ascertain that notice and certificate are understood by Native Christians. When any Native Christian about to be married gives a notice of marriage, or applies for a certificate from a Marriage Registrar, such Marriage Registrar shall ascertain whether the said Native Christian understands the English language, and, if he does not, the Marriage Registrar shall translate, or cause to be translated, such notice or certificate, or both of them, as the case may be, to such Native Christian into a language which he understands;

or the Marriage Registrar shall otherwise ascertain whether the Native Christian is cognizant of the purport and effect of the said notice and certificate.

58. Native Christians to be made to understand declarations. When any Native Christian is married under the provisions of this Part, the person solemnizing the marriage shall ascertain whether such Native Christian understands the English language, and, if he does not, the person solemnizing the marriage shall, at the time of the solemnization, translate, or cause to be translated, to such Native Christian, into a language which he understands, the declarations made at such marriage in accordance with the provisions of this Act.

59. Registration of marriages between Native Christians. The registration of marriages between Native Christians under this Part shall be made in conformity with the rules laid down in section 37 (so far as they are applicable), and not otherwise.

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[3]PART VI
MARRIAGE OF NATIVE CHRISTIANS

60. **On what conditions marriages of Native Christians may be certified.** Every marriage between Native Christians applying for a certificate shall, without the preliminary notice required under Part III, be certified under this Part, if the following conditions be fulfilled, and not otherwise:

(1) the age of the man intending to be married shall exceed *[sixteen] years, and the age of the woman intending to be married shall exceed *[thirteen] years;

(2) neither of the persons intending to be married shall have a wife or husband still living;

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[1]Subs. by the Births, Deaths and Marriages Registration Act, 1886 (6 of 1886), s. 30 (b) for" Secretary to the L. G".

[2]This section was previously amended by Act 6 of 1886, s.30, A. O., 1937 and Act 26 of 1951, s. 4 and 3rd Sch.

[3]As to validation of past marriages solemnized under Part VI between persons of whom one only was a Native Christian, and penalty for solemnizing such marriages under Part VI in future, *see* the Marriages Validation Act, 1892 (2 of 1892).

*The word "eighteen" substituted with the word "sixteen" and the word "thirteen" to the extent of Islamabad Capital Territory by Act No. XIV of 2024, s. 2. Thus, the sub-section (1) to the extent of Islamabad Capital Territory reads as under :

"(1) the age of the man intending to be married shall exceed [eighteen] years, and the age of the woman intending to be married shall exceed [eighteen] years;".

(3) in the presence of a person licensed under section 9, and of at least two credible witnesses other than such person, each of the parties shall say to the other—

"I call upon these persons here present to witness that I, A. B., in the presence of Almighty God, and in the name of our Lord Jesus Christ, do take thee, C.D., to be my lawful wedded wife [or husband]" or words to the like effect:

Provided that no marriage shall be certified under this Part when either of the parties intending to be married has not completed his or her eighteenth year, unless such consent as is mentioned in section 19 has been given to the intended marriage, or unless it appears that there is no person living authorized to give such consent.

61. Grant of certificate. When, in respect to any marriage solemnized under this Part, the conditions prescribed in section 60 have been fulfilled, the person licensed as aforesaid, in whose presence the said declaration has been made, shall, on the application of either of the parties to such marriage, and on the payment of a fee of four annas, grant a certificate of the marriage.

The certificate shall be signed by such licensed person, and shall be received in any suit touching the validity of such marriage as conclusive proof of its having been performed.

[1]**[62. Keeping of register-book and deposit of extracts therefrom with Registrar General.—**(1) Every person licensed under section 9 shall keep in English, or in the vernacular language in ordinary use in the district [2]* * in which the marriage was solemnized, and in such form as the [3][Provincial Government] by which he was licensed may from time to time prescribe[4], a register-book of all marriages solemnized under this Part in his presence, and shall deposit in the office of the Registrar General of Births, Deaths and Marriages for the territories under the administration of the said [3][Provincial Government] in such form and at such intervals as that Government may prescribe, true and duly authenticated extracts from his register-book of all entries made therein since the last of those intervals.

[5]* * * * * * *

63. Searches in register book and copies of entries. Every person licensed under this Act to grant certificates of marriage, and keeping a marriage-register-book under section 62, shall at all reasonable times, allow search to be made in such book, and shall, on payment of the proper fee, give a copy, certified under his hand, of an entry therein.

64. Books in which marriages of Native Christians under Part I or Part III are registered. The provisions of sections 62 and 63, as to the form of the register-book, depositing extracts therefrom, allowing searches thereof, and giving copies of the entries therein, shall, mutatis mutandis, apply to the books kept under section 37.

65. Part VI not to apply to Roman Catholics. Saving of certain marriages. This Part of this Act, except so much of sections 62 and 63 as are referred to in section 64, shall not apply to marriages between Roman Catholics. But nothing herein contained shall invalidate any marriage celebrated between Roman Catholics under the provisions of Part V of Act No. XXV of 1864[6], previous to the twenty-third day of February, 1865.

[1]Subs. by the Indian Christian Marriage Act (1872) Amdt. Act, 1891(2 of 1891), s. 4, for the original s. 62.
[2]The words "or State" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.
[3]Subs. by A.O., 1937, for "L. G.".
[4]For notifications issued by different Governments, see the different Local R. and O.
[5]Sub-section (2) omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.
[6]Act XXV of 1864 rep. by Act V of 1865, which was rep. by this Act.

PART VII
PENALTIES

[1]**[66. False oath declaration, notice or certificate for procuring marriage.** Whoever, for the purpose of procuring a marriage or license of marriage, intentionally,—

(a) where an oath or declaration is required by this Act, or by any rule or custom of a Church according to the rites and ceremonies of which a marriage is intended to be solemnized, such Church being the Church of England or of Scotland or of Rome, makes a false oath or declaration, or,

(b) where a notice or certificate is required by this Act, signs a false notice or certificate, shall be deemed to have committed the offence punishable under section 193 of the Pakistan Penal Code (XLV of 1860) with imprisonment of either description for a term which may extend to three years and, at the discretion of the Court, with fine.]

67. Forbidding, by false personation issue of certificate by Marriage Registrar. Whoever forbids the issue, by a Marriage Registrar, of a certificate, by falsely representing himself to be a person whose consent to the marriage is required by law, knowing or believing such representation to be false, or not having reason to believe it to be true, shall be deemed guilty of the offence described in section 205 of the Pakistan Penal Code (XLV of 1860).

[2]**[68. Solemnizing marriage without due authority.** Whoever, not being authorised by section 5 to solemnize marriages, solemnizes or professes to solemnize in the absence of a Marriage Registrar of the district in which the ceremony takes place, a marriage between persons one or both of whom is or are a Christian or Christians, shall be punished with imprisonment which may extend to ten years, and shall also be liable to fine.]

69. Solemnizing marriage out of proper time, or without witnesses. Whoever knowingly and wilfully solemnizes a marriage between persons one or both of whom is or are a Christian or Christians, at any time other than between the hours of six in the morning and seven in the evening, or in the absence of at least two credible witnesses other than the person solemnizing the marriage, shall be punished with imprisonment for a term which may extend to three years, and shall also be liable to fine.

Saving of marriages solemnized under special license. This section does not apply to marriages solemnized under special licenses granted by the Anglican Bishop of the Diocese or by his Commissary, nor to marriages performed between the hours of seven in the evening and six in the morning by a Clergyman of the Church of Rome, when he has received the general or special license in that behalf mentioned in section 10.

[3][Nor does this section apply to marriages solemnized by a Clergyman of the Church of Scotland according to the rules, rites, ceremonies, and customs of the Church of Scotland.]

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[1]Subs. by the Indian Christian Marriage Act (1872) Amdt. Act 1891 (2 of 1891), s. 5, for the original s. 66.
[2]Section 68 as amended by the Indian Christian Marriage Act, (1872) Amdt. Act, 1891 (2 of 1891), s.6, A. O.,1961, Art. 2 and Sch. (w.e.f. 23-3-1956), has been subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., to read as above.
[3]Ins. by s. 7 of Act 2 of 1891.

70. Solemnizing without notice or within fourteen days after notice, marriage with minor. Any Minister of Religion licensed to solemnize marriages under this Act, who, without a notice in writing, or, when one of the parties to the marriage is a minor, and the required consent of the parents or guardians to such marriage has not been obtained. within fourteen days after the receipt by him of notice of such marriage, knowingly and wilfully solemnizes a marriage under Part III, shall be punished with imprisonment for a term which may extend to three years, and shall also be liable to fine.

71. Issuing certificate, or marrying without publication of notice; marrying after expiry of notice; solemnizing marriage with minor within fourteen days without authority of Court or without sending copy of notice; issuing certificate against authorized prohibition. A Marriage Registrar under this Act, who commits any of the following offences:—

(1) knowingly and wilfully issues any certificate for marriage, or solemnizes any marriage, without publishing the notice of such marriage as directed by this Act;

[1][(2) after the expiration of two months after the copy of the notice has been entered as required by section 40 in respect of any marriage, solemnizes such marriage;]

(3) solemnizes, without any order of a competent Court authorizing him to do so, any marriage, when one of the parties is a minor, before the expiration of fourteen days after the receipt of the notice of such marriage, or without sending by the post or otherwise, a copy of such notice to the Senior Marriage Registrar of the district if there be more Marriage Registrars of the district than one, and if he himself be not the Senior Marriage Registrar;

(4) issues any certificate the issue of which has been prohibited, as in this Act provided, by any person authorized to prohibit the issue thereof,

shall be punished with imprisonment for a term which may extend to five years, and shall also be liable to fine.

72. Issuing certificate after expiry of notice, or, in case of minor, within fourteen days after notice, or against authorized prohibition. Any Marriage Registrar knowingly and wilfully issuing any certificate for marriage after the expiration of [2][two months] after the notice has been entered by him as aforesaid,

or knowingly and wilfully issuing, without the order of a competent Court authorizing him so to do, any certificate for marriage, where one of the parties intending marriage is a minor, before the expiration of fourteen days after the entry of such notice, or any certificate the issue of which has been forbidden as aforesaid by any person authorized in this behalf, shall be deemed to have committed an offence under section 166 of the Pakistan Penal Code. (XLV of 1860).

73. Persons authorized to solemnize marriage(other than Clergy of Churches of Enland, Scotland or Rome); Whoever, being authorized under this Act to solemnize a marriage,

and not being a Clergyman of the Church of England, solemnizing a marriage after due publication of banns, or under a license from the Anglican Bishop of the Diocese or a Surrogate duly authorized in that behalf,

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[1]Subs. by the Indian Christian Marriage Act (1872) Arndt. Act, 1891 (2 of 1891) s. 8 (1) for the original clause (2).
[2]Subs. *ibid.* s. 8 (2), for "three months".

or, not being a Clergyman of the Church of Scotland, solemnizing a marriage according to the rules, rites, ceremonies and customs of that church,

or, not being a Clergyman of the Church of Rome, solemnizing a marriage according to the rites, rules, ceremonies and customs of that church,

Issuing certificate or marrying, without publishing notice, of after expiry of certificate; knowingly and wilfully issues any certificate for marriage under this Act, or solemnizes any marriage between such persons as aforesaid, without publishing, or causing to be affixed, the notice of such marriage as directed in Part III of this Act, or after the expiration of two months after the certificate has been issued by him;

Issuing certificate for, or solemnizing, marriage with minor, within fourteen days after notice; or knowingly and wilfully issues any certificate for marriage, or solemnizes a marriage between such persons when one of the persons intending marriage is a minor, before the expiration of fourteen days after the receipt of notice of such marriage, or without sending, by the post or otherwise, a copy of such notice to the Marriage Registrar, or, if there be more Marriage Registrar than one, to the Senior Marriage Registrar of the district;

Issuing certificate authorizedly forbidden; or knowingly and wilfully issues any certificate the issue of which has been forbidden, under this Act, by any person authorized to forbid the issue;

Solemnizing marriage authorizedly forbidden. or knowingly and wilfully solemnizes any marriage forbidden by any person authorized to forbid the same;

shall be punished with imprisonment for a term which may extend to four years, and shall also be liable to fine.

74. Unlicensed person granting certificate pretending to be licensed. Whoever, not being licensed to grant a certificate of marriage under Part VI of this Act, grants such certificate intending thereby to make it appear that he is so licensed, shall be punished with imprisonment for a term which may extend to five years ,and shall also be liable to fine.

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[1][Whoever, being licensed to grant certificates of marriage under Part VI of this Act, without just cause refuses, or wilfully neglects or omits, to perform any of the duties imposed upon him by that Part shall be punished with fine which may extend to one hundred rupees.]

75. Destroying or falsifying register-books. Whoever, by himself or another, wilfully destroys or injures any register-book or the counterfoil certificates thereof, or any part thereof, or any authenticated extract therefrom,

or falsely makes or counterfeits any part of such register-book or counterfoil certificates,

or wilfully inserts any false entry in any such register-book or counterfoil certificate or authenticated extract,

shall be punished with imprisonment for a term which may extend to seven years, and shall also be liable to fine.

[1]Ins. by the Indian Christian Marriage Act (1872) Amdt. Act, 1891 (2 or 1891), s. 9.

76. Limitation of prosecutions under Act. The prosecution for every offence punishable under this Act shall be commenced within two years after the offence is committed.

PART VIII
MISCELLANEOUS

77. What matters need not be proved in respect of marriage in accordance with Act. Whenever any marriage has been solemnized in accordance with the provisions of sections 4 and 5, it shall not be void merely on account of any irregularity in respect of any of the following matters, namely :—

(1) any statement made in regard to the dwelling of the persons married, or to the consent of any person whose consent to such marriage is required by law:

(2) the notice of the marriage:

(3) the certificate or translation thereof:

(4) the time and place at which the marriage has been solemnized:

(5) the registration of the marriage.

78. Correction of errors. Every person charged with the duty of registering any marriage, who discovers any error in the form or substance of any such entry, may, within one month next after the discovery of such error, in the presence of the persons married, or, in case of their death or absence, in the presence of two other credible witnesses, correct the error, by entry in the margin, without any alteration of the original entry, and shall sign the marginal entry, and add thereto the date of such correction, and such person shall make the like marginal entry in the certificate thereof.

And every entry made under this section shall be attested by the witnesses in whose presence it was made.

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And in case such certificate has been already sent to the [1][Registrar General of Births, Deaths and Marriages], such person shall make and send in like manner a separate certificate of the original erroneous entry, and of the marginal correction therein made.

79. Searches and copies of entries. Every person solemnizing a marriage under this Act, and hereby required to register the same,

and every Marriage Registrar or [1][Registrar General of Births, Deaths and Marriages] having the custody for the time being of any register of marriages, or of any certificate, or duplicate or copies of certificate, under this Act,

shall, on payment of the proper fees, at all reasonable times, allow searches to be made in such register, or for such certificate, or duplicate, or copies, and give a copy under his hand of any entry in the same.

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[1]Subs by the Births, Deaths and Marriages Registration Act, 1886 (6 of 1886), s. 30 (b), for "Secretary to the L. G."and "Secretary to a L. G." respectively.

80. Certified copy of entry in marriage-register, etc., to be evidence. Every certified copy, purporting to be signed by the person entrusted under this Act with the custody of any marriage-register or certificate, or duplicate, required to be kept or delivered under this Act, of an entry of a marriage in such register, or of any such certificate or duplicate, shall be received as evidence of the marriage purporting to be so entered, or of the facts purporting to be so certified therein, without further proof of such register or certificate or duplicate, or of any entry therein, respectively, or of such copy.

[2][**81. Certificates of certain marriages for Federal Government.** The Registrar General of Birth, Deaths and Marriages [3]* * * shall, at the end of every quarter in each year, select, from the certificates of marriages forwarded to [4][him] during such quarter, the certificates of the marriages of which [5][the Government by whom he was appointed] may desire that evidence shall be transmitted to England, and shall send the same certificates, signed by [4][him], to the [6][Federal Government].

82. Provincial Government to prescribe fees. Fees shall be chargeable under this Act for—

receiving and publishing notices of marriages;

issuing [7][certificates for marriage] by Marriage Registrars, and registering marriages by the same;

entering protests against, or prohibitions of, the issue of [8][certificates for marriage] by the said Registrar;

searching register-books or certificates, or duplicates of copies thereof;

giving copies of entries in the same under sections 63 and 79.

The [9][Provincial Government] shall fix the amount of such fees respectively,

and may from time to time vary or remit them either generally or in special cases, as to it may seem fit.

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83. Power to make rules. The [9][Provincial Government] may make rules[10] in regard to the disposal of the fees mentioned in section 82, the supply of register-books, and the preparation and submission of returns of marriages solemnized under this Act.

84. [11][Power to prescribe fees and rules for Acceding States.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and IInd Sch.

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[1]Subs. by the Births, Deaths and Marriages Registration Act, 1886 (6 of 1886), s. 30 (b), for "Secretary to the L.G." and "Secretary to a L.G.", respectively.
[2]Subs. by the Indian Christian Marriage (Amdt.) Act, 1911 (13 of 1911), s. 2, for the original s. 81.
[3]The words and figure "and the officers appointed under section 56" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981(27 of 1981), s. 3 and 2nd Sch.
[4]Subs. *ibid.*, for "them, respectively".
[5]Subs. by A. O., 1937, for "the G.G. in C.".
[6]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was subs. by A.O., 1949, Sch., for "Secretary of State for India".
[7]Subs. by the Repealing and Amending Act, 1903 (1 of 1903), s. 3 and 2nd Sch., for "certificate of marriages".
[8]Subs. *ibid.*, for "marriage certificates" .
[9]Subs. by A. O., 1937, for " L. G.".
[10]For rules made under s. 83 by different Govts. *see* the different Local Rules and Orders.
[11]This section was amended by A. O.,1937 and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch.

85. Power to declare who shall be District Judge. The [1][provincial Government] may, by notification in the official Gazette, declare who shall, in any place to which this Act applies, be deemed to be the District Judge.

86. [2][Powers and functions exercisable as regards Acceding States.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and IInd Sch.

87. Saving of Consular marriages. Nothing in this Act applies to any marriage performed by any Minister, Consul or Consular Agent between subjects of the State which he represents and according to the laws of such State.

88. Non-validation of marriages within prohibited degrees. Nothing in this Act shall be deemed to validate any marriage which the personal law applicable to either of the parties forbids him or her to enter into.

SCHEDULE I

(See sections 12 and 38)

NOTICE OF MARRIAGE

To

a Minister [or Registrar] of

I hereby give you notice that a marriage is intended to be had, within three calendar months from the date thereof, between me and the other party herein named and described (that is to say):—

Names	Condition.	Rank or profession.	Age.	Dwelling place.	Length of residence.	Church, chapel or place of worship in which the marriage is to be solemnized.	District in which the other party resides, when the parties dwell in different districts.	
James Smith	*Widower.*	*Carpenter.*	*Of full age.*	*16, Clive Street.*	*23 days*	*Free Church of Scotland Church, Calcutta.*		
Martha Green.	*Spinster.*	…	*Minor*	*20, Hastings Street.*	*More than a month*			

Witness my hand, this day of *seventy-two*.

(*Signed*) **JAMES SMITH**

[The *italics* in this schedule are to be filled up, as the case may be, and the blank division thereof is only to be filled up when one of the parties lives in another district.]

[1]Subs. by A. O., 1937, for " L. G.".

[2]This section was amended by A. O., 1937, Act 38 of 1920 and Act 26 of 1951.

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SCHEDULE II

(See sections 24 and 50)

CERTIFICATE OF RECEIPT OF NOTICE

I, do hereby certify that, on the day of, notice

Names	Condition.	Rank or profession.	Age.	Dwelling place.	Length of residence.	Church, chapel or place of worship in which the marriage is to be solemnized.	District in which the other party resides, when the parties dwell in different districts.
James Smith.	*Widower.*	*Carpenter.*	*Of full age.*	*16, Clive Street.*	*23 days*	*Free Church of Scotland Church, Calcutta.*	
Martha Green.	*Spinster.*	…	*Minor*	*20, Hastings Street.*	*More than a month*		

was duly entered in my Marriage Notice Book of the marriage intended between the parties therein named and described, delivered under the hand of one of the parties (that is to say) :—

and that the declaration, [1][or oath] required by section 17 or 41 of the Christian Marriage Act, 1872 (XV of 1872) has been duly made by the said (James Smith).

THE PAKISTAN CODE

The issue of this certificate has not been prohibited by any person authorized to forbid the issue thereof.

Date of notice entered
Date of certificate given
Witness my hand, this day of seventy-two

(Signed)

This certificate will be void, unless the marriage is solemnized on or before the day of

[The italics in the schedule are to be filled up, as the case may be, and the blank division thereof is only to be filled up when one of the parties lives in another district.]

[1]Ins. by the Repealing and Amending Act, 1903 (1 of 1903), s.3.

SCHEDULE III
(See sections 28 and 311)

FORM OF REGISTER OF MARRIAGES

Quarterly Returns

of

MARRIAGES

for

The Archdeaconry of [2]* * *

I, , Registrar of the Archdeaconry of [2]* * * do hereby certify that the annexed are correct copies of the originals and Official Quarterly Returns of Marriage within the Archdeaconry of [2]* * * as made and transmitted to me for the quarter commencing the day of ending the day of in the year of Our Lord

[Signature of Registrar]

Registrar of the Archdeaconry of [2]* * *

MARRIAGES solemnized at [2]* * *

When Married			Names of Parties		Age.	Condition.	Rank of profession.	Residence at the time of marriage.	Father's name and surname.	By banns or license.	Signatures of the parties.	Signatures of two or more witnesses present.	Signature of the person solemnizing the marriage.
Year.	Month.	Day.	Christian.	Surname.									

SCHEDULE IV
(See sections 32 and 54)

MARRIAGE REGISTER BOOK

Number.	When Married.			Names of parties.		Age.	Condition.	Rank or profession.	Residence at the time of marriage.	Father's name and surname.
				Christian name.	Surname.					
1	Day.	Month.	Year.							
				James Martha.	White Duncan.	26 years 17 years.	Widower Spinster.	Carpenter …	Agra Agra.	William White John Duncan.

[1]Subs. by the Second Schedule of the Amending Act, 1891 (12 of 1891), for the original reference.

[2]Names of certain cities (Indian) omitted by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s.3 and 2nd Sch.

Married in the

This marriage was solemnized between us James White, Martha Duncan in the presence of us *John Smith* *John Green.*

CERTIFICATE OF MARRIAGE

Number.	When Married.			Names of parties		Age.	Condition.	Rank or profession.	Residence at the time of marriage.	Father's name and surname.
				Christian name.	Surname.					
1	Day.	Month.	Year.							
				James *Martha*	*White* *Duncan*	26 *years* 17 *years*	*Widower* *Spinster*	*Carpenter* …	*Agra* *Agra*	*William White* *John Duncan*

Married in the
,
This marriage was solemnized between us James White, Martha Duncan, in the presence of us *John Smith.* *John Green,*

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SCHEDULE V.—[ENACTMENTS REPEALED.] Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Sch.

Date: 11-09-2024

THE CHILD MARRIAGE RESTRAINT ACT, 1929

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. [Omitted]
4. Punishment for male adult above twenty-one years of age marrying a child
5. Punishment for Solemnising a child marriage
6. Punishment for parent or guardian concerned in a child marriage
7. Imprisonment not to be awarded for offences under section 3
8. Jurisdiction under this Act
9.
10. Preliminary inquiries into offences under this Act
11. [Omitted]
12. Power to issue injunction prohibiting marriage in contravention of this Act

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THE CHILD MARRIAGE RESTRAINT ACT, 1929

ACT NO. XIX OF 1929

[1st October, 1929]

An Act to restrain the solemnisation of child marriages

WHEREAS it is expedient to restrain the solemnisation of child marriages;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Child Marriage Restraint Act, [1][1929].

[2][(2) It extends to the whole of Pakistan and applies to all citizens of Pakistan wherever they may be.]

(3) It shall come into force on the 1st day of April, 1930.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "child" means a person who, if a male, is under eighteen years of age, and if a female, is under [3][sixteen] years of age;

(b) "child marriage" means a marriage to which either of the contracting parties is a child;

(c) "contracting party" to a marriage means either of the parties whose marriage is [4][or is about to be] thereby solemnised; [3][*]

(d) "minor" means a person of either sex who is under eighteen years of age [3][,]

[5][(e) "Union Council" means the Union Council or Town Committee constituted under the law relating to local government for the time being in force.]

3. [3][Omitted.]

4. Punishment for male adult above twenty-one years of age marrying a child. Whoever, being a male above [3][eighteen] years of age, contracts a child marriage shall be punishable with simple imprisonment which may extend to one month, or with fine which may extend to one thousand rupees, or with both.

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[1]Subs. by the Repealing and Amending Act No. VIII of 1930, s.2 and 1st Sch.
[2]Subs. by the Central Laws (Statute Reforms) Ordinance No. XXI of 1960, s.3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[3]Sub. and Omitted by the Muslim Family Laws Ordinance No. VIII of 1961, s.12 (with effect from the 15th July, 1961), applicable to all Muslim citizens of Pakistan wherever they may be.
[4]Ins. by Act No. XIX of 1938, s.2.
[5]Subs. by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s.3 and Sch.,II.

5. Punishment for solemnising a child marriage. Whoever performs, conducts or directs any child marriage shall be punishable with simple imprisonment which may extend to one month, or with fine which may extend to one thousand rupees, or with both, unless he proves that he had reason to believe that the marriage was not a child marriage.

6. Punishment for parent or guardian concerned in a child marriage.—(1) Where a minor contracts a child marriage, any person having charge of the minor, whether as parent or guardian or in any other capacity, lawful or unlawful, who does any act to promote the marriage or permits it to be solemnised, or negligently fails to prevent it from being solemnised, shall be punishable with simple imprisonment which may extend to one month, or with fine which may extend to one thousand rupees, or with both:

Provided that no woman shall be punishable with imprisonment.

(2) For the purposes of this section, it shall be presumed, unless and until the contrary is proved, that where a minor has contracted a child marriage, the person having charge of such minor has negligently failed to prevent the marriage from being solemnised.

7. Imprisonment not to be awarded for offences under section 3. Notwithstanding anything contained in section 25 of the General Clauses Act, 1897 (X of 1897), or section 64 of the Pakistan Penal Code 1860 (XLV of 1860), a Court sentencing an offender under section 3 shall not be competent to direct that, in default of payment of the fine imposed, he shall undergo any term of imprisonment.

8. Jurisdiction under this Act. Notwithstanding anything contained in section 190 of the Code of Criminal Procedure, 1898 (V of 1898), no Court other than that of [1][* * *] a [2][Magistrate of the first class] shall take cognizance of, or try, any offence under this Act.

[2][**9.** No Court shall take cognizance of any offence under this Act [3][except on a complaint made by the Union Council, or if there is no Union Council in the area, by such authority as the Provincial Government may in this behalf prescribed, and such cognizance shall in no case be taken] after the expiry of one year from the date on which the offence is alleged to have been committed.]

10. Preliminary inquiries into offences under this Act. The Court taking cognizance of an offence under this Act shall, unless it dismisses the complaint under section 203 of the Code of Criminal Procedure, 1898 (V of 1898), either itself make an inquiry under section 202 of that Code, or direct a Magistrate of the first class subordinate to it to make such inquiry.

THE PAKISTAN CODE

[1]Omitted by A.O., 1949.
[2]Subs. by Act No. XIX of 1938, ss.3-4.
[3]Ins. by the Muslim Family Laws Ordinance No. VIII of 1961, s.12, (*with effect from 15th July, 1961*), applicable to all Muslim citizens of Pakistan wherever they may be.

11. [1][Omitted.]

[2]**[12. Power to issue injunction prohibiting marriage in contravention of this Act.**(1) Notwithstanding anything to the contrary contained in this Act, the Court may, if satisfied from information laid before it through a complaint or otherwise that a child marriage in contravention of this Act has been arranged or is about to be solemnised, issue an injunction against any of the persons mentioned in section 3, 4, 5, and 6 of this Act prohibiting such marriage.

(2) No injunction under sub-section (1) shall be issued against any person unless the Court has previously given notice to such person, and has afforded him an opportunity to show cause against the issue of the injunction.

(3) The Court may either on its own motion or on the application of any person aggrieved rescind or alter any order made under sub-section (1).

(4) Where such an application is received, the Court shall afford the applicant an early opportunity of appearing before it either in person or by pleader; and if the Court rejects the application wholly or in part, it shall record in writing its reasons for so doing.

(5) Whoever knowing that an injunction has been issued against him under sub-section (1) of this section disobeys such injunction shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to one thousand rupees, or with both:

Provided that no woman shall be punishable with imprisonment.]

THE PAKISTAN CODE

RGN Date: 06-05-2024

[1]Omitted by the Muslim Family laws Ordinance No. VIII of 1961, s.12 (with effect from the 15th July, 1961), applicable to all Muslim citizens of Pakistan wherever they may be.
[2]Subs. by Act No. XIX of 1938, s.6.

THE ARYA MARRIAGE VALIDATION ACT, 1937

CONTENTS

1. Short title and extent

2. Marriage between Arya Samajists not to be invalid

THE PAKISTAN CODE

THE ARYA MARRIAGE VALIDATION ACT, 1937

ACT No. XIX OF 1937

[*14th April, 1937*]

An Act to recognise and remove doubts as to the validity of intermarriages current among Arya Samajists.

WHEREAS it is expedient to recognise and place beyond doubt the validity of inter-marriages of a class of Hindus known as Arya Samajists ;

It is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the Arya Marriage Validation Act, 1937.

[1][(2) It extends to the whole of Pakistan and applies also to all citizens of Pakistan wherever they may be.]

2. Marriage between Arya Samajists not to be invalid. Notwithstanding any provision of Hindu Law, usage or custom to the contrary no marriage contracted whether before or after the commencement of this Act between two persons being at the time of the marriage Arya Samajists shall be invalid or shall be deemed ever to have been invalid by reason only of the fact that the parties at any time belonged to different castes or different sub-castes of Hindus or that either or both of the parties at any time before the marriage belonged to a religion other than Hinduism.

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THE PAKISTAN CODE

Date: 22-07-2024

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3. and 2nd Sch.

THE ANAND MARRIAGE ACT, 1909

CONTENTS

1. Short title and extent
2. Validity of Anand marriage
3. Exemption of certain marriage from Act
4. Saving of marriages solemnized according to other ceremonies
5. Non-validation of marriages within prohibited degrees

THE PAKISTAN CODE

THE ANAND MARRIAGE ACT, 1909

[1]ACT No. VII OF 1909

[22nd October, 1909]

An Act to remove doubts as to the validity of the marriage ceremony common among the Sikhs called Anand.

WHEREAS it is expedient to remove any doubts as to the validity of the marriage ceremony common among the Sikhs called Anand; It is hereby enacted as follows:-

1. Short title and extent.—(1) This Act may be called the Anand Marriage Act, 1909 ; and

[2][(2) It extends to the whole of Pakistan.]

2. Validity of Anand marriage. All marriages which may be or may have been duly solemnized according to the Sikh marriage ceremony called Anand shall be, and shall be deemed to have been with effect from the date of the solemnization of each respectively, good and valid in law.

3. Exemption of certain marriage from Act. Nothing in this Act shall apply to–

(a) any marriage between persons not professing the Sikh religion, or

(b) any marriage which has been judicially declared to be null and void.

4. Saving of marriages solemnized according to other ceremonies. Nothing in this Act shall affect the validity of any marriage duly solemnized according to any other marriage ceremony customary among the Sikhs.

5. Non-validation of marriages within prohibited degrees. Nothing in this Act shall be deemed to validate any marriage between persons who are related to each other in any degree of consanguinity or affinity which would, according to the customary law of the Sikhs, render a marriage between them illegal.

THE PAKISTAN CODE

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Date: 11-09-2024

[1]For Statement of Objects and Reasons, *see* Gazette of India, 1908, Pt. V, p. 357; for Report of Select Committee, *see ibid.*, 1909, Pt. V,p. 1034; and for Proceedings in Council, *see ibid.*, 1908, Pt. VI, p. 156, and *ibid.*, 1909 Pt. VI, pp. 156, 161 and 165.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October*, 1955), for the original sub-section (2) as amended by A.O., 1949.